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VAJIRAM AND RAVI

POLITICAL SCIENCE

OPTIONAL

INDIAN POLITICAL THOUGHTS

(PART–I)

HANDWRITTEN CLASS NOTES

2017

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BY SUBHRA RANJAN

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① Indian Political Thought (V. R. Mehta) → philosophy

② Indian Political Thought – Vidyut Chakra Varti – no ancient only modern

③ Indian Political Thought – V. P. Varma

④ O. P. Gauba

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INDIAN POLITICAL THOUGHT

Lecture 49

14 | 02 | 2017

Q Do you agree that Indians lacked Political thinking? Give arguements in support of your point of view.

Q. Why western world does not recognise existence of Indian political thought.

Q. Do you agree that Indian Political thought exists? If yes then what are the components of Indian Political thinking?

Q. Suggest how Indian thinking differs from western Thinking.

Thought = Thinking of an Age.

- Indian cultural and Civilisational values
  - Toleration
  - Pluralism
  - Accomodation
  - Cosmopolitanism
  - Spiritualism
  - Pessimistic

In the western world there is a debate on the existence ~~on western~~ Indian political thought. According to western scholars, India lacked Political Thinking. Indian Philosophy has been more concerned with the Spiritualistic rather than Materialistic sphere of life. Indians have neglected the Material World. India is a place to learn spiritualism rather than political ideas.

Pessimistic - thinking that something bad will happen.

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However, it is not correct to say that Indians lacked political thinking. We can give the examples of scholars like Manu and Kautilya. According to Western Scholars like Max Muller, Nowhere in the world mind has dealt with the problems of life with such depths as in case of India. According to Alas Dair MacIntyre, if west overlook the existence of Indian Political Thought, it will reflect the ethnocentric attitude of western scholars. Neglect of Indian political thinking will result into the impoverishment (weakness) of the west.

According to Professor, V R Mehta, West fails to recognise Indian thinking because there is a big difference in how west look at the things and how Indians look at the things. If west look in terms of Dichotomies (Polarity) Indians looks in terms of continuity. West made seperation between Individual and Community, nature and culture, self interest and the interest of others, National interest & the interest of Humanity. Indians have always looked in terms of continuity. Unlike west Indians have not seperated Ethics from politics or Dharma from Rajniti. In Indian texts Dharma and Dand is present together. There is no text which can be considered as purely political.

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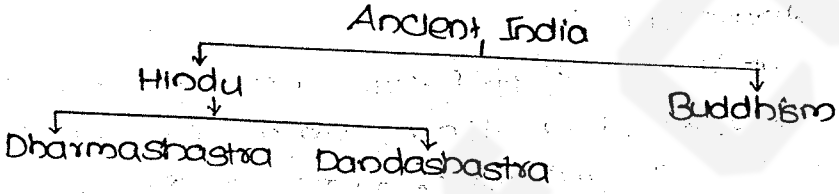
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Characteristic Features of Indian Thinking-

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1. Communitarian
2. Spiritualism
3. Cosmopolitan Approach
4. Non-Critical
5. Regressive View of History
6. Pessimistic

Q. What are the major traditions in Ancient Indian Thought do they reflect continuity or change, or continuity with change?



According to Bhikhu Parekh India reflect more of a continuity than change. The 2 traditions Hindu & Buddhist tradition do not differ in a big way. Buddhism shares some basic assumptions with Hinduism. Eg. the concept of Soul, Karma, Rebirth. It is better to describe Buddhism as Rebel child of Hinduism or the protestantism of the east.

Hindu Tradition-

According to Bhikhu Parekh, the 2 core concepts of Hindu traditions are Danda and Dharma. Both the ideas are present in Both texts. The difference in Dharmashastra and Dandashastra is only in degree rather than kind.

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In Dharmashastra, Dharma is core idea discussed and discussion on Danda is peripheral. Similarly in Danda-Shastra core discussion is on Dandaniti and Dharma is a matter of peripheral interest.

Q. What are the salient Ideas present in Manusmriti?

Who is Manu?

Manu is known as Manas Putra of Brahma.

Who is Brahma?

Brahma is a creator of Universe.

Manu is known as the 1st king and the law giver.

It is believed that Arajakta or Anarchy was prevailing.

What is Anarchy?

Arajakta means Matsyanyaya which means Big Fish eating the small fish. Hence, people requested God or Brahma and Brahma has created Manu.

Why?

Manu will establish Dharma. Manu will tell what Dharma is.

What is Dharma?

According to Rigveda 'Prithvim Dharmam Dhritam'. Dharma is what holds the earth. Because of Dharma Earth sustains, Adharma will lead to the Arajakta or Pralaya.

What is the source of Dharma?

Source of Dharma is Rta (Riti)..

What is Rta (Riti)?

Rta (Riti) means cosmic or Natural law ie. law given by Brahma means law of universe.

Rta governs Universe, Dharma governs human society.

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- Source of Cosmic Law :

Source of Cosmic law is Shruti.
Shruti means vedas & vedas are revealed knowledge.
Smriti's are based on Shruti.
Hence, Manusmriti is a part of Vedic culture.
Manusmriti deals with Dharma. 1st in General then in specific context. Some of the main ideas present in Manusmriti can be enumerated as :

Concept of Purushartha

Purushartha means four goals of life.
ⓐ Dharma ⓑ Artha ⓒ Kama ⓓ Moksha.
Hindu coay of life has been a balanced view of life which includes Material and Spiritualistic goals.

(ii) Concept of Ashrama

There are 4 stages in life & there is a specific goals in all phases.
ⓐ Brahmacharya ⓑ Grahastha ⓒ Vanaprastha ⓓ Sanyas

(iii) Concept of Sanskara

Sanskara means rituals. There are 16 Sanskara's.
From Garbhadhan to Antyeshti (Cremation).

(iv) Concept of State & Discription of Raj Dharma-

Chapter 7 of Manusmriti deals with State & Raj Dharma.

- Origin of State-

Quasi Contractual Theory.
It is Quasi Contractual because the contract is between Man & God. People requested God to bring them out of Anarchy & hence God has created king.

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Qualities of a King-

The Manusmriti talks about Hereditory Monarchy or Kingship. King has to be from Kshatriya.

Manusmriti talks about Four Varna's ie.
(a) Brahmin (b) Kshatriya (c) Vaishya (d) Shudras.

What is the Most Important role of the State-

King has to ensure that all varna's follow their Varna Dharma that is why state has power of Danda. King represent divine personality. Different God's gave the part of their personality to the King. King combines Indra, Agni, Vayu, Varun, Chandra, Surya, Yama, and Kuber.

People should obey the king. Though king had divine personality but king did not had divine rights. King was not above dharma. King has to follow his RajDharma. According to Manu, the king who does not follow Dharma goes to hell. Manu also tell the qualities of the king and the Routine of the king. King should learn vedas, King should respect Brahmins, King should get up early in the Morning, King should worship Brahmin, King should not sleep during the day time, King should not indulge too much in Hunting, Gambling, Drinking, Dancing. King should not also indulge much with women.

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Duties of the King-

(i) Rakshan and Palan

(ii) King should help his subjects to achieve Yogshem. Yogshem means helping his people to achieve the 4 purusharthas.

(iii) Manusmriti give a detailed view on the principles of taxation. 1/6th of the produce of the fertile land belongs to the king. 1/8th of the less fertile and 1/10th of the least fertile should go to the king.

King also has the right to possess the 1/6th of other produces like Milk, Honey, Meat, Butter and other commodities.

Manu also gives a detailed view of a system of Punishment. Punishment varies according to varna. Lower is the varna higher is the punishment.

Manusmriti remains a controversial work. In Modern India one of the greatest admirer of Manusmriti was Dr. S. Radhakrishnan. whereas greatest critic of Manusmriti was Ambedkar, Ramaswami Naikar, Dr. Ambedkar suggested to put Dynamite on Veda's and Manusmriti. Manusmriti is also critisised by Feminist scholars for subordinate status of women given in Manusmriti. It is to be noted that there are Multiple interpretations of Manusmriti, Manusmriti remains a highly contested work.

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KAUTILYA

- Saptang Theory
- Kautilya on Foreign Policy and Diplomacy -

① Mandal Siddhant

Agunya Siddhant

Parison between Kautilya and Machiavelli

utilya's Idea on Corruption.

ecture 50
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Kautilya represent the realist tradition in Indian Political Thought.

Introduction of Arthashastra -

Arthashastra primarily deals with statecraft. Hence, it is categorised as the book of Public Administration rather than political philosophy. Arthashastra was 1st discovered by Shama Shastry. The 1st publication of Arthashastra of Kautilya in English wrote in 1909.

What does Arthashastra means?

Arthashastra describes Dandaniti

What is the most important goal of the state according to Kautilya ?

The most important goal is to achieve the Material well being ie Artha. In the words of Kautilya. Material well being is supreme, spiritual good and sensual pleasure - Dharma & kama all depends upon material well being.

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Hence, state has to create the means for material well being. ∞

What is the source of wealth in Ancient times? Land. Hence, the duty of the King is to protect his land and to acquire the land of neighbours. Hence, Neighbours are natural enemy. and the relations between states are the relations of war. Inter state politics is in the state of war where the strength of lion prevails.

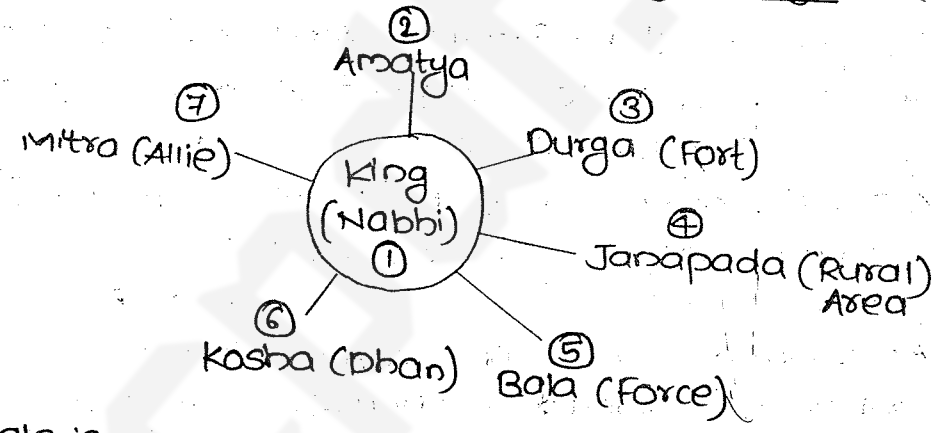
- Prominent Ideas given in Arthashastra.
- Origin of state-

Same as Manu.

- Duties of king-

Same as Manu.

- Organisation of the state- (Saptang Theory).



State is a system. System is a set of elements in the state of Interaction.

State is a ~~by~~ set of seven elements. These seven elements are known as the seven elements of sovereignty. Above theory can be called as organic Theory of the state.

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① King (Nabhi)

King is Nabhi, or centre. King plays the most important role. If King is weak & other elements of sovereignty are strong they cannot act as determinant of power. However, if other elements are weak & King is strong, wise King will convert even the weak elements into the elements of strength.

According to kautilya King is Important but king should understand the importance of other elements because - Single wheel cannot turn the chariot. Kautilya also Suggest that king should treat his subjects as his children and in the happiness of the subject lies the happiness of the king. 'Praja Sukham Sukhe Rajya'

② Amatya's

Senior ministers are known as Amatya's.
Amatya's should be Brahmin. Amatya's should have the knowledge of Veda's King should consult Amatya's but king should keep on testing the integrity of Amatya's towards King from time to time. The most important person after king is Ambassador. Ambassador or Envoy's are the mouth piece of king. Hence, Ambassador should be choosen with great care. Ambassador should be handsome, man of integrity. If Amatya Ambassador is mouth piece of king spies are the eyes and ears of the king. King can use the spies to check the integrity of Amatya's from time to time. kautilya also suggest that king should keep 3 Amatya's Because 2 can conspire easily against the king.

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③ Durga (Fort)

Durga is a symbol of offensive as well as Defensive power of the state. Kautilya has given detailed Ideas with respect to different types of forts like Hill Forts, Desert Forts, Water Forts.

④ Janapada (village/ Rural Areas)

Janapada is where the subjects live. King has to take care of Janapada as Janapada is a source of strength. It is a source of revenue and other necessary commodities

⑤ Bala (Force)

Kautilya suggest the Hereditary army of Kshatriya's. other Varna's can be considered in some exceptional situations.

⑥ Kosh (Treasury)

Kosh should be sufficient so that king can take care of the welfare functions. Kosh should be sufficient to meet any emergency or Natural calamity.

⑦ Mitra (Allie)

Mitra's have symbolic importance. It is the symbol of the strength of the king. More no. of Mitra's means more powerful the king because everyone wants to be the friend of the power-ful.

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Kautilya's Ideas on Foreign Policy-

The Focus of Arthashastra is on acquiring land. According to chanakya, King should aspire to become Chakravarty samrat. He calls king as Vijigishu. means one who aspires for victory. War is Kshatriya Dharma. After coronation (રાજ્યાભિષેક) King has to start expansion. Hindu texts mention various rituals like Ashwamedh Yagya. Yagya means sacrifice. (Rajsuya Yagya)

→ Kautilya gives following Siddhant's:

(i) Four Fold Policy

Sam, Dam, Danda, Bhed.
(Peace, Economic Diplomacy, Force, Spies).

(ii) Shadgunya Niti (Six Fold Policy)

Sandhi - Treaty
Vigraha - Break the Sandhi / Treaty.
Aasan - Stationing of ~~fourth~~ troop near the territory of Enemy.
Yana - Mobilisation of forces, Military exercises.
Samashrya - Join hands with those who have similar objectives.
Dvaidhbhava - Dual policy.

(iii) Mandal Siddhant -

Mandal Siddhant is a theory of Geo strategy. It tells us about the strategy of war. Mandal comprise of 12 kings. 12 kings multiplied by 7 elements of sovereignty means 84 elements.

Vijigishu has to take into consideration the 84 elements before starting the war.

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① Vijigishu - Main king.

② Kings in Front

ⓐ Ari - Neighbour is a natural enemy.

ⓑ Mitra - Ari's immidiate neighbour is the mitra of vijigishu

ⓒ Ari mitra -

ⓓ Mitra Mitra -

ⓔ Ari Mitra Mitra.

③ Four kings in the back (Parshva)

ⓐ Parshva Nigrah

ⓑ Akrand - Friend in the back

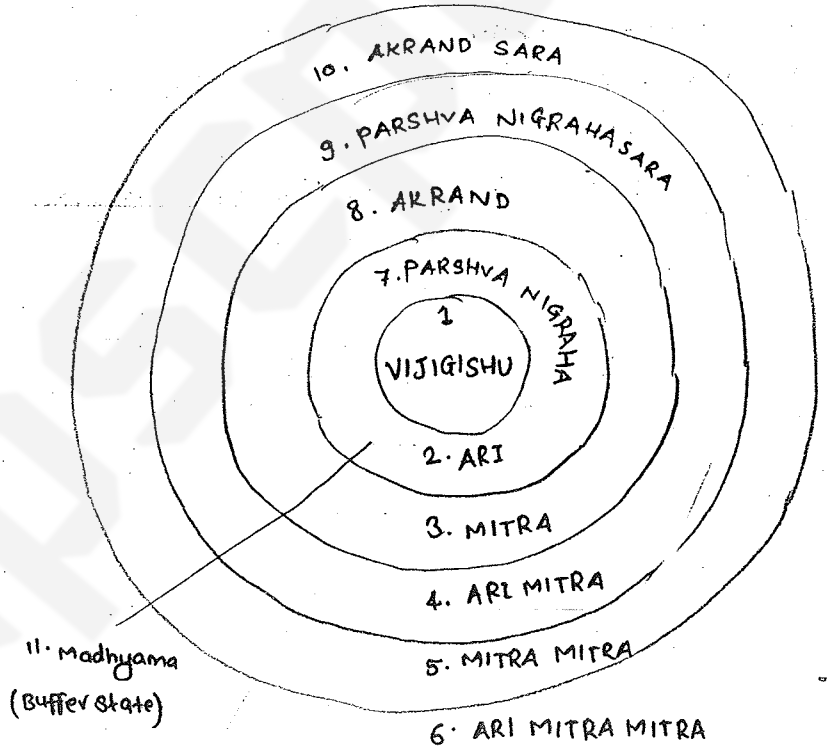
ⓒ Parshva Nigrah sara -

ⓓ Akrand sara

→ Kautilya mentions 2 more kings:

ⓐ Madhyama - Buffer state
- vijigishu should try to bring Madhyama on his side.

ⓑ Udasin (Neutral state)
- Vijigishu should try to bring udasin also under his control.



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- **Significance of Mandal Siddhant :**

(i) **In Academic Sense-**

Mandal Siddhant is India's contribution to the discipline of Geopolitics. It is Indian version of Balance of Power.

(ii) **Practical Relevance-**

Kautilya's Theory may not have relevance in present times in regions like western Europe or North America. But it does have a significance for Regions like South Asian.

- **Kautilya has given 3 types of Wars :**

(i) Parakram Yudh
(ii) Kuta Yudh (Guerilla war)
(iii) Tushnim Yudh (Proxy war)

- **Kautilya has mentioned 3 types of victories-**

(i) Dharma Vijay (Battlefield)
(ii) Lobh Vijay (Economic)
(iii) Asur Vijay (unfair means)

Kautilya suggest King to use religion in the affairs of the State. King can send Sadhu to the enemy King who can tell that his bad times have come. to weaken him psychologically.

He has also given importance to Ambassadors as well as spies.

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Kautilya on Corruption -

According to kautilya corruption is use of public office for private ends.

Why corruption is to be tackled ?

Corruption will make state weak internally as vulnerable externally. corruption impacts the morale of the people. Foreign powers can manipulate disaffection towards the king and provoke his subjects for rebellion.

According to kautilya, corruption is inevitable fact of the political-administrative life.

Why?

Honey on the tongue, it is not possible, not to taste it. Public officials deal with public resources that one cannot assume them not to use resources for their personal ends. At times they themselves may not be aware.

According to kautilya the ways em ezzlement are forty

It means there are many ways officials can do corruption. kautilya himself listed atleast 40 ways eg.

Eg. (i) Public officials may take money out of public fund but they may not enter it.

(ii) they make take money earlier but do entries later.

(iii) they may purchase goods at a lesser price but may enter higher price.

(iv) They may sale states resources at lesser price than the actual value.

(v) They can manipulates weights & measures.

Why it is difficult to tackle corruption?

It is difficult to deal with corruption because it is very difficult to detect corruption & establish corruption. According to him it is easy to detect the movement of birds flying in sky but it is not easy to detect the misappropriation of funds.

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According to Kautilya, Fish swimming in the water we cannot say it has taken /drunked water inside.

→ should corruption be tackled?

How to tackle corruption?

(i) Right sizing the Bureaucracy

(ii) Transfers at regular intervals before person understands all the loopholes of his office.

(iii) kautilya mentions about whistle blowers or suchak's (Informers). kautilya suggest king should grant protection and reward the informers.

(iv) Fine and Punishment of the corrupt officials. He also suggest public humiliation.

(v) compensation to the person whose interest has been impacted because of the corrupt officials.

(vi) Don't punish just the official, punish the entire chain. Chain means Dayak one who gives money.
Pratigraba - one who recieves money.
Nidhayak - one who keeps the money.

(vii) kautilya suggest reward honest officials, strengthen surveillance mechanism.

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Comparison between Kautilya & Machiavelli

There has been a tradition to compare Kautilya with Machiavelli. Even Pandit Nehru in his book discovery of India called Kautilya as Indian Machiavelli.

Scholars like Bottazi, Winternitz, has compared Kautilya's thought with realist thinkers of west like Thucydides and Machiavelli.

→ Points of similarities

(i) Both had similar concern about their motherland.
(ii) Both wanted Improvement in Internal conditions and protection from foreign invasions.
(iii) Both belong to realist tradition
(iv) Whether it is Prince or Arthashastra the subject matter is statecraft, both internal as well as external.
(v) Both explain politics in terms of power.
(vi) Both suggest that human nature is selfish.
(vii) Both want king to rule with iron hand.
(viii) Both permit king to use religion
(ix) Both believe that material welfare is a supreme goal.
(x) Both supports expansionists policies.

For above reasons we can say that there are lot of similarities between Kautilya & Machiavelli. However, it is to be noted that they differ in time and space. Kautilya belong to east & Machiavelli belongs to west. In Kautilya king is never above Dharma on the other hand the prince is above morality. Machiavelli was unfortunate that he could not find his prince who could implement his ideas into practice. Kautilya was fortunate to find his vijigishu & Kautilya could see his ideas being implemented during his time.

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Max weber in his book 'Politics as Vocation' has mentioned that Kautilya was more Machiavellian than Machiavelli. If we look at Kautilya's king, Machiavelli's prince appear Harmless.

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BUDDHIST POLITICAL THOUGHT

Buddhism is other worldly religion whereas Politics belongs to the material world. The status of Buddha as a political philosopher remains contested. Buddha left his own kingdom. However, many kings at that time used to visit Buddha to take advice on good Governance. Scholars like Professor Gopal Guru and Gail Omvedt considered Buddha can be considered as Political Philosopher

What are the salient ideas of Buddhism.

→ There are 3 basic principles -

(i) Anicca (ii) Anatta (iii) Dukha

- Anicca means nothing is Permanent
- Anatta means denial of self interest.
- Dukha means world is full of sorrow.

● There are 4 noble truths.

(i) World is full of sorrow.
(ii) Ignorance greed & hatred is the cause of sorrow.
(iii) Liberation from sorrow means liberating oneself from ignorance.
(iv) To liberate oneself from ignorance follow 8 fold path.

- Right thinking, Right Aspiration, Right Speech, Right Conduct, Right beliefs, Right efforts, Right source of livelihood, Right contemplation and meditation.

Q. Discuss the Buddhist ideas on the state & statecraft -

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In Buddhism origin of state is linked to the origin of private property. With the origin of private property social conflict started. It made state necessary. People entered into the contract to select the king. In Hinduism the contract is between Man and God. whereas in Buddhism the contract is among Men. According to Buddhism people elected 'Noblest of All as Mahasammat' on the other hand in Hinduism king is suppose to have divine personality Hinduism supports heredetory Monarch whereas Buddhism supports Republican tradition.

→ Buddhism suggest following qualities of the king:

(i) king has to be Noble, Gentle, Modest, selfless & liberal.

→ Ashoka has added few more ideals & duties:

(a) king should live as per Dhamma.

(b) king should serve Humanity.

(c) king should promote the spirit of toleration among different religions.

(d) king should construct public utilities.

(e) king should forbid cruility towards animals.

(f) Adopt the policy of non agression towards neighbours.

(g) send envoys with the message of peace.

In Hinduism king should aspire to become chakravarty samrat. Buddhism talks about world Monarch. chakravarty samrat acquires land, world monarch ~~wins~~ win hearts. Chakravarty samrat represent force world monarch represent love. The chakra in Buddhism is not the chakra of chariot but Dhamma chakra.

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The other politically relevant ideas in Buddhism are: the ideal of equality as Buddhism opposed caste system Buddhism also stands for Gender equality. Buddhist sangha were the earliest examples of Deliberative Democracy.

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MODERN INDIAN POLITICAL THOUGHT

SIR SYED AHMED KHAN

Time - 18 - 1898

Q. Short Note- The Role of Sir Syed Ahmed khan as a social reformer or as a modernisor.

Q. Why Sir Syed Ahmed Khan has been a controversial figure?

Q. Discuss the transition of Sir Syed Ahmed khan from the Prophet of Hindu muslim unity to the person in whose thought we trace the origin of two nation theory.

Sir Syed Ahmed Khan has the similar position among Muslims like Raja Rammohan Roy among Hindus. Sir Syed Ahmed khan has seen the decon-fall of Mughal Power in India. He could understand the state of frustation through which his community was going through. He understood that Britishers are emerging force in India. He realised that there is no point challenging British because Britishers are going to stay. He was convinced that the only way muslims can improve their situation is through Education. He was the critic of outdated customs and rituals. He aimed at Modernisation of Muslim community through his Magazine Tehzib-Ul-Akhlaq. He has attacked outdated customs. He founded scientific society at Gazipur in UP which was later on shifted to Aligarh He also brought a journal titled 'Indian Institute Gazette' for promotion of scientific research. He believed that Islam can easily adopt science & scientific way of life. His message to the Muslim youth was to carry Quran in one hand and the book of science in the other hand.

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Sir. Syed Ahmed Khan came under criticism from the Orthodox section in the Muslim community. He was also controversial because of his advice to the Muslims for not joining Indian National Congress.

There is a transition in the thoughts in Sir Syed Ahmed khan. Initially he was an advocate of Hindu Muslim unity. He even adviced Muslims not to eat beef taking into account the sentiments of Hindu neighbours.

However, there is a change in his ideas after the language controversy in Awadh. Urdu in Persian script was the official language of the province. There was a demand to make Hindi in Devnagri script as official language. He became convinced that neither Hindus will agree to what Muslims want, nor Muslims will agree to what Hindus want. He believed that differences are going to increase and it is better that they stay as seperate community. Thus Syed Ahmed khan is known as the originator of two nation theory which resulted into the partition of Subcontinent.

Sir Syed Ahmed khan wanted to get British support for promotion of the Education among Muslims. In his book Asbab - i - bagawate hind (causes of revolt of 1857) He has clarified that the real cause of revolt of 1857 was not the conspiracy by muslims by rather the wrong policies of British administration. In his article titled 'the loyal Mohammaden's of India' He has given assurance about the loyalty of muslims towards the British. He was successful of getting the support of ~~MMs~~ Britishers which has led to the establishment of Mohammeden Anglo oriented college which later on became Aligarh University

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Though Sir Syed Ahmed Khan remains a controversial figure yet he is such a leader which is the need of the Muslim community in present times facing similar type of frustation & exclusion.

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AUROBINDO GHOSH

Time - 1870 - 1950

Aurobindo Ghosh is known as Prophet of Indian Nationalism R. Tagore held that the world will get the message of India through Aurobindo Ghosh. He is known as a great Synthesizer. He has synthesized the philosophy of east with west. He held that East needs west & west needs east. East has neglected material developement where-as west as neglected spiritual developement. Aurobindo Ghosh wanted to establish India as 'spiritual guide to Humanity. He held that independence of India is not just for the benefits of Indians it is for the benefit of Humanity. However India can give the message only if India is free. He was influenced by Neo-vedanthism of Vivekanand and the ideal of Bharat Mata. Proposed by Bamkimchandra Chaterjee in his book 'Anand math'.

Prominent ideas of Aurobindo Ghosh -

(i) Theory of Nationality.

(ii) Ideal of Human unity -

(iii) Concept of Freedom -

(iv) Concept of Integral Yoga.

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Lecture 52
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(1) Theory of Nationalism :-

Aurobindo Ghosh is known as the Prophet of Indian Nationalism. He is the only person who gave theory of Indian Nationalism Bold theory of Nationalism.

→ Context of the Theory

The Idea of India as a Nation has remained contested. Colonial administrators & Historians have always challenged the legitimacy of Indian National Movement. According to them, India is nothing but a Geographical expression. The response of early Nationalists to the British challenge was too mild. They accepted that India is not a Nation but as Surendranath Banerji held that India is Nation in making. Moderates believe that under the influence of Modernisation India will emerge as a Nation. They believed Britishers as a source of Modernisation. They looked at British rule as blessing in disguise. Moderates didn't want to antagonise the British. Hence, they adopted mild constitutional methods like Prayers, Petitions and Protest. They believed that the task of Indian National Congress is to develope awareness & that is why Congress session were organised annually at different places.

It was the efforts of moderates/early leaders that there was a growth of Nationalist consciousness in the country. Aurobindo Ghosh entered into Indian politics when the foundations of Nationalism were already laid. Aurobindo realised that National movement requires a bold theory of Nationalism. He could understand the pulse of the nation.

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He felt that youth are looking for much stronger idea c nation. He was also convinced that freedom cannot be achieved without making Indian National movement is a Mass Movement. To make Indian National Movement a mass movement we have to speak what youth wants to hear. Aurobindo Ghosh criticised Moderate Approach towa rds Nationalism and the methods of Moderates. It was Aurobindo Ghosh who for the 1st time talked about com- plete freedom. Aurobindo was the 1st person to define swa rajya as complete liberation even Tilak has not talked about complete independence. Tilak interpreted swaraj as Suraaj or Good Governance. According to Tilak Suraaj requi res the rule by Natives. Ghosh has delinked swaraj and surac Swaraj not for suraaj but swaraj is a value in itself. Aurobindo Ghosh in the series of articles publishen in 'Indupra- kash' with the title 'New lamps for old' He has criticised Moderates view of Indian Nationalism. Moderates have faile to see the spirit of India. Moderates think that Nationalism will emerge out of Congress Pandals. Indian Nationalism is not dependent on Congress Sessions. India is not a Nation in makin India was always a nation. Nationalism is not a Geographical expression. Nation is not a piece of land. Nation is not the collection of Human Beings. Nation is not figure of speech. Nation is not the creation of mind. Nation is not the figment of peoples imagination. Nation is not a political programme. Nation is also not a intellectual passtime. Nation is a faith, Nation is a religion. Nation is a spirit, Nation is Divine, since. Nation is divine no one can suppress the spirit of Nation. Nationalism can never be coppressed. It will emerge on its own.

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Nationalism is not a political programme. Nation is a religion. He was inspired by Vivekananda who held that Nationalism should be the supreme goal of youth in India. Vivekanand appealed to arise, awake & don't stop till the goal is achieved. Aurobindo Ghosh also held that Nationalism should be the religion of youth in India. The type of commitment we have towards the religion same commitment & the spirit of sacrifice is required for Nationalism. Ghosh was against the constitutional methods he called it as Mendicancy (Beggary). constitutional methods have no relevance because British rule is not responsible towards Indians. Instead of Prayers we require resistance. Either resistance or revolution. He was not against the use of violence. However He suggested to use the methods according to circumstances., He himself had links with revolutionary societies like Yugantar. Aurobindo Ghosh held that we need those methods which strike at the root of Colonial state. So long Britishers will be able to maintain benefit from India they will not leave it. He also asked moderates to stop calling British rule as a blessing in disguise. Foreign rule is never a Blessing. It only leads to the exploitation. If moderates will keep on repeating foreign rule as a blessing it will weaken the morale of the people fighting against the foreign rule. He suggested to adopt direct methods like boycott and Swadeshi. Not only Boycott british goods but also Boycott british administration, Judicial System & Education System. Boycott of British administrative machinery is needed to show that Indian can live without British. Indians can manage their own affairs. He was against British schools. British schools only teach how to become loyalist. British school kills Nationalist sentiments. Hence, he called for National education.

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Aurobindo Ghosh has based the theory of Indian Nationalism on the ideals of Neo-Vedantism. (Sanatan Dharma) Neo-Vedantism was propounded by Vivekananda. Vivekananda attacked Brahmanism and caste system. Brahmanism is a reason for lack of unity in India. Vivekananda held that amidst the diversity there exists a fundamental unity in India. This fundamental unity is the basis of Indian Nationalism. The fundamental unity comes from the ideal of sanatana Dharma about the unity of Mankind. We all children of one God. We all are part of the universal spirit. Aurobindo Ghosh has also built the theory of Nationalism and Patriotism on the basis of the idea of Mother India given by Bankimchandra Chatterji. India is a Nation because all of us are the children of the mother India. He appealed for Patriotism, He appealed youth to free mother India from the bondages & chains of slavery.

He presented Mother India in Bengali tradition of Goddess Shakti. He challenged British that Mother India or Goddess Shakti is representing the Shakti of millions of awakened Indians. It would not be possible to suppress spirit of Nationalism now.

Thus Aurobindo Ghosh has spiritualised the concept of Nationalism He projected Indian Nationalism as a divine mission. According to him, God has given the special mission to India. The mission is to protect the Humanity. Humanity can be protected only through India. No other culture or civilisation has such values which can protect the Humanity. India cannot accomplish the mission without political freedom. Rise of India as Nation is inevitable.

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It is inevitable because it has to fullfil divine mission. Rise of India is not for Indians alone it is for the benefits of Humanity Hence, all should support the rise of India. Hence, Nobody should stop.

② Ideal of Human Unity-

Indian thought has always been cosmopolitan. Though Aurobindo Ghosh is Prophet of Indian Nationalism yet neither his nationalism nor his patriotism is against Humanity. According to Aurobindo Ghosh, 'Aggregation is the law of universe. 'we cannot solve our problems if we will not come together. The basis of Human unity is the Universal Spirit. According to him, either we learn to co-operate or nature will destroy us. Even India's rise as a nation is not for its own interest. rather promotion of such values which are necessary for protection of life on this earth.

③ Concept of Freedom (Swaraj).

Swaraj is Indian version of Freedom. Swaraj has been the goal of freedom struggle. The meaning and content of Swaraj kept on evolving. Initially swaraj was good governance or Suraaj and dominion status. It was Aurobindo Ghosh who talked about the complete independence. Aurobindo Ghosh has not just discussed the idea of freedom with respect to the independence of a Nation. He also talked about a freedom at the level of Individual.

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Aurobindo Ghosh tried to find the answer of the question as to how we can achieve freedom in a manner that is not against the wider interest of the society. He was against the capitalist idea of freedom. He found it too mechanical. According to him, if liberty become a device to satisfy our natural impulses. without taking into consideration the natural impulse of others. It will result into chaos. He also does not support the socialist concept of freedom as it results into oppressive state system. According to him, there should be Harmony between Individual, Nation & Humanity. The Gospel of Humanity is based on the triangle of Liberty, Equality & Fraternity. According to Aurobindo Ghosh, the longing for freedom is lodged so deep in the human heart that thousands of arguements are powerless to uproot it. According to him, ~~there is~~ goal of human life is to attain freedom. Freedom consists in understanding the reality. Freedom is freedom from ignorance. Freedom means the realisation of the universal spirit. He gives the concept of Sat + Chit + Ananda. The real freedom lies in the understanding of God it is possible when we achieve the state of supermind. Supermind is possible through the integral yog. Integral Yoga combine Dharma Yoga, Raj Yoga, Hath Yoga, Gyan Yog, Bhakti Yog, Karma Yoga.

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tap
↓
samrifice

According to Aurobindo, Integral yog requires Tap, sadhana and Yoga. Integral Yog enables us to move from fragmented, disoriented state to a much sharper clearer understanding of self.

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M. K. GANDHI

Introduction -

Gandhi is rightly called as rightly called as Father of Nation. According to the survey, conducted by Times Magazine, Gandhi is the second most popular and liked personality after Jesus Christ.

Prominent Ideas of Gandhi

According to Prof. Humayun Kabir, Gandhi is not a politica philosopher in conventional sence. Gandhi was not a philosopher but a politician. He was a politician with exceptional understanding of Mass psychology. According to Bipin Chandra Gandhi was master strategist who left Britishers clueless.

Gandhi himself never acknowledged the existence of Gandhism. Gandhi never claimed to know the truth. Gandhi called his life as experiements with truth. Gandhi was a Man of Action. However we cannot deny the existence of Gandhism. There are large no. of people who consider themselve as Gandhian. this itself shows the existance of Gandhism.

(i) Non-violence
(ii) Satyagraha
(iii) Swaraj
(iv) Sarvodaya
(v) Critic of Modern Civilisation
(vi) Gandhi on state.
(vii) Gandhi on ends & means
(viii) Gandhi on rights & duties.

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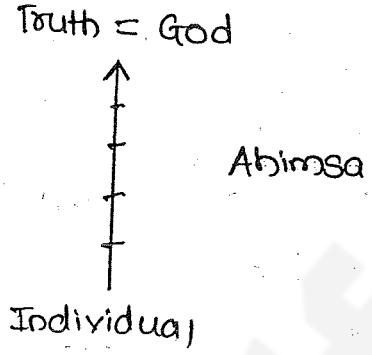
Influences on Gandhi -

(i) He was influenced by his mother. Gandhi's inclination towards religion was because of his mother.

(ii) Gandhi was influenced by Vaishnavism, Jainism, Christianity as well as other religions.

(iii) Gandhi was also influenced by Leo Tolstoy, Plato, Thoreau, Socrates, John. Ruskin.

(1) Theory of Non-violence.



End and means of God
Eg. Jesus christ (Slap)

Sacrifice, love

What is Ahimsa?

Ahimsa is the foundational principle of Gandhism. According to Gandhi, the objective of life is to understand truth or God. Gandhi never claimed to know the truth. Gandhi suggested that he can tell the path on the basis of which man can reach to the truth. Ahimsa is the path.

Why Ahimsa is the correct path?

Gandhi believes in the continuity of ends and means. If the end is to attain the God. means have to be those implied by God. God is a symbol of love & sacrifice. Hence, for Gandhi Ahimsa is not just not using violence, Ahimsa is much deeper. It is based on the feeling of love & fraternity.

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According to Gandhi, My enemy is the part of myself. I cannot be free from the responsibility. I have to own my enemy. I have to suffer because I must have done something that has made other person as my enemy. only by self suffering i can convert my enemy into my friend. I can suffer only when i have a feeling of love to the other person. only when i accept other as a part of my self. Gandhi advocated Ahimsa not only of action but even of thoughts and speech. Ahimsa has to be practiced not only towards the human beings but also towards Animals, Environment.

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② Theory of Satyagraha.

Gandhian technique is known as satyagraha. Gandhi has 1st implemented the technique in South Africa later on he applied at local level. Eg. At Champaran and Kheda. Agitation against Rowlett Bills was against 1st All India level Experiement. Gandhi kept on improvising techniques Eg. Non-cooperation, Civil Disobidience.

Gandhi was a great Political & a mass psychologist. He created such idioms of Indian politics with which Masses could easily associate. He establish that freedom Movement is not an ordinary struggle it is satyagraha based on Indian concept of Dharmayudha. The movement was not against British it was against the evil empire which british have established in India. Satyagraha is a battle between Good & Evil, Ram & Ravan, God & Saitan. If it is a Dharmayudha those who are fighting for ~~them~~ truth are bound to win. Gandhi made difference b/w satyagraha & passive resistance.

Note- Passive Resistance - non-violent opposition to Authority.

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According to Gandhi,

(i) In passive resistance, not using violence may be determined by the conditions which are not conducive for the use of violence. In Indian context Aurobindo Ghosh proposed passive resistance. He was not against the use of violence. For Gandhi non-violence was an article of faith and not shaped by conditions.

(ii) In passive resistance person may have enimity towards whom passive resistance is employed. However, Satyagrahi has no enemity or ill feeling towards anyone. Satyagrahi is against the evil and not against the evil doer. If fight is satyagraha the means is going to be non-violence and the essence is feeling of love & ability to make sacrifices.

(iii) According to Gandhi, satyagraha is not the weapon of weak. It is a weapon of strong. It is a weapon of those who are morally strong and not just physically strong.

(iv) According to Gandhi, ~~if~~ ~~there~~ If there is a choice between violence and cowardice. He will choose violence.

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③ Theory of Swaraj

Swaraj was the goal of freedom movement. Content of Swaraj kept on evolving. Till Aurobindo Ghosh Swaraj was understood as Political freedom. Aurobindo Ghosh has added the dimension of freedom of an Individual. Liberation of a person in spiritual sense. There was a continuity between Ghosh & Ideal of Gandhi. Gandhi's ideal was also not limited to freedom in political sense only. Gandhi was influenced by ideal of Swaraj given in Mundak Upanishad. In Mundak Upanishad swaraj is controlled on oneself ie. control on one's desir Swaraj at the level of individual was necessary for the Holistic attainment of swaraj. Gandhi described swaraj at different levels.

(i) At Individual Level.
It means self control

(ii) At the level of society. Swaraj will come only when we can abolish evil practices like untouchability, communal violence

(iii) At cultural level
According to Gandhi - keep the windows of your house opened but door closed. Let the winds from all sides come to you but you should not get uprooted. One should respect cultures of others but one should not forget own roots. One should have respect in one's culture.

(iv) Swaraj in Economic sense -
Gandhi has proposed the revival of cottage industries, Production by Masses rather than Mass production, dignity of labour and trusteeship.

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(v) At political level.

Gandhi proposed the concept of oceanic circles of power. Swaraj in political term does not mean transfer of power from one set of elites to other set of elites. Swaraj means empowerment of masses. Gandhi proposed Panchayati Raj based on democratic decentralisation and Gram Swaraj

(4) Theory of Sarvodaya

Gandhi's concept of Sarvodaya is influenced by John Ruskin's book 'Unto this last'. Sarvodaya is Gandhi's approach towards socialism. Sarvodaya has following components:

(i) Bread Labour.
(ii) Trusteeship
(iii)

(i) Bread labour:

Purpose is to understand the dignity of labour.
How?
According to Gandhi everyone should take Bread only after performing some amount of physical work.
Why?
Only when we will perform the physical work we can understand Hardships of those who are involved in Manual (शारीरिक) labour. Only in this way we can develope respect towards those who perform physical labour.

According to Gandhi' if we cannot make people equal in terms of income we can definitely can make people equal in terms of dignity. According to Gandhi' work of a Barber is as important as the work of lawyer.

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(ii) Trusteeship

Gandhi did not support Marxist approach with respect to the relationship between labour and capital. Gandhi did not believe in the theory of class struggle. Gandhi believe in the possibility of Harmony between classes. Like early socialists Gandhi believed in appealing the conscience of the capitalists. According to Gandhi capital is social production, capitalists should not consider himself as the owner of the capital. Capitalists should consider himself as the trustee of the capital. According to him, capitalists can keep whatever amount he thinks is necessary for running his enterprise & the rest he should donate for the welfare of the society.

Gandhi was not favouring Mechanised production in India because it would result into the displacement of labour. Gandhi favoured the revival of cottage industries. Gandhi ~~fa~~ preferred charkha economy. Gandhi also supported land reforms. According to Gandhi land should belong to the tiller.

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⑤ :- Gandhi's Critic of Modern Civilisation.

Gandhi in his book Hind Swaraj has criticised Modern civilisation. Gandhi called it Satanic civilisation.

Gandhi was influenced by Edward Carpenter. Edward carpenter has shown the negative consequences of Modern medicine on human health. Gandhi is not the only person nor the 1st person to criticise modernity. Gandhi has criticised modernity not just because it is western in origin. He has criticised modernity because Modernity is based on the values of the Materialism, Utilitarianism, Consumerism, Militarism, and individualism. According to Gandhi, imperialism and fascism are not different rather two manifestations of Modernity. Modernity undermines human dignity. It's values reduces Human Being to the level of animal who is just concerned with the satisfaction of Appetite. According to Gandhi, modernity made us animals or Saitans. Our soul is sleeping when we exploit & use force against fellow human being.

Gandhi was critical of the manner in which the western world has gone for developement in last 100 years. According to Gandhi the path of developement which was adopted by the west in the last 100 years, if others also adopt the same path of developement atleast 9 more earth's will be required.

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What is true civilisation according to Gandhi

True civilisation does not teach man How to fullfill his wants rather how to minimise his wants. True civilisation makes a person a better Human being and not animal.

Why Gandhi critiased Modern Civilisation?

The Critic of Modern civilsation was Gandhis attempt to establish counter hegemony. It was Gandhis assertion. Britishers have legitimised their imperialism in the name of civilising mission or white man's burden. Gandhi challenged civilising mission because Britishers themself do not know the meaning of civilisation. Indians need not to take any lessons from them.

⑥ Gandhi's Theory of State

Gandhi was influenced by Leo Tolstoy. Leo Tolstoy in his book 'kingdom of god within you' has held that Man can control himself and there is no need for exteernal agency like state. Gandhi called state as 'soulless machine' According to Gandhi, state is not compatible with the principles of Non-violence even the minimal state require some element of coersive force. State cannot understand Ahimsa because it does not have soul. According to Gandhi presence of state reminds him of his weakness. Presence of state is not compatible with the concept of Swaraj. Hence, Gandhi proposed democratic decentralisation. Gandhi's Ramrajya is a stateless society.

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Gandhi's ramrajya comes near to Marx utopia of communism. In both collective life is managed through self help Groups.

(7) Gandhi on Ends and Means-

Gandhi was extremely critical of Machiavellinism Machiavelli has seperated politics and ethics. Gandhi was influenced by Gokhale. Gokhale was advocating for bringing ethics into politics. According to Gandhi, Politics without Ethics/ Religion is like a "Death Trap." Gandhi rejected the seperation of ends & means. Gandhi rejected the theory that ends justify the Means. Gandhi emphasised on purity of means. He emphasised on primacy of the purity of means. He believed that we cannot reach to the right ends through wrong means. In his book Hind swaraj he suggest that it is illogical to expect Rose flowers by sowing the seed of Babul.

Thus Gandhi empasised on spiritualisation & purification of politics. We can see continuity between Gandhi's thought & the thoughts of ancient Greek thinkers like Plato & Socrates who never seperated Good life & Good political life. Gandhi has applied his ends & means theory in choosing the methods in freedom Struggle. If freedom Struggle is to be satyagraha. means emplied has to be non-violent

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(8) Gandhi's Concept of Rights and Duties.

Gandhi's conception of Rights & Duties is based on the philosophy of Geeta. Geeta emphasised on Nishkama kamma. According to Gandhi we should focus on our duties. If we focus on our duties we automatically get the reward. Rights are present in duties in embryonic form. When we perform our duties we automatically get the rights. Rights cannot be independent of duty.

→ Gandhi on Women-

According to Gandhi, Seeta & Draupadi should be the ideal of women in India. Seeta & Draupadi represent Moral force or soul force. Seeta is a symbol of moral strength. It was the Moral strength of Seeta that Ravan could not touch Seeta.

→ Gandhi on Education-

Gandhi gave the concept of 'Nayee Taalim'. According to Gandhi we should learn from the book of life rather than learning about life from books. Gandhi believe that the education should be a life long process. He suggested 'Earning while Learning'. Person should be able to finance his own education rather than being dependent on others. Hence Gandhi suggested/emphasised on Vocational education. Gandhi favoured teaching Home Science, Nursing, Forestry.

→ Relevance of Gandhi - Articles written by.

(i) Ashish Nandi
(ii) Ramchandra Guha.
(iii) Bhikhu Parekh
(iv) Dennis Dalton

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M.N. ROY

Time- 1887 - 1954

M.N. Roy is known as the contemporary critic of Gandhi. If Gandhi was a politician, M.N. Roy was a philosopher. Sudipto Kaviraj calls M.N. Roy as Remarkable Failure. There is a transition to the ideas of M.N. Roy.

- Ideational Journey of M.N. Roy-

Phase I

M.N. Roy as a Revolutionary.

M.N. Roy was influenced by Jatin Das. He was a member of Anushilan Samiti. He was sent abroad to procure arms for revolutionaries. He visited USA. He got chance to attend the meeting which was addressed by Lala Lajpat Roy. He asked the question as to what strategy Indian national congress has for the upliftment of poors. He was not convinced with the answer. He started his journey to search for a satisfactory answer. He came to know about Karl Marx. He became admirer of Marx & critical of revolutionaries. According to him, Revolutionaries are not going to be successful because they lack the scientific programme of action. Revolutionaries are relying on individual acts of revolution. Revolutionaries lacked support and base among masses. He was convinced that India requires Mass revolution. M.N. Roy became the founding member of Communist party of Mexico. Very soon he was recognised an important personality in International communist movement because of his understanding of Marxism.

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When M.N. Roy was Marxist he became critic of Gandhi and Indian National Congress. According to M.N. Roy Gandhi was the leader of Bourgeoise class. Gandhi was fooling masses. He was extremely critical of Gandhi's decision to call on Non-cooperation Movement after Chauri Chora incidence. According to Gandhi called of movement because Gandhi was fearful that power will go to the hands of masses. According to him, Gandhi's Non-violence was actually violence on masses. He had no faith in Gandhi's programme of charkha. He called Gandhi a medieval man, a reactionary; a conservative person.

M.N. Roy was invited to attend communist international (2nd communist International by Lenin) Lenin wanted to decide the strategy of communist international with respect to the National Movements going on in colonies. Lenin suggested that we should be supporting National Movements & Nationalist parties & after achievement of freedom we can help masses to establish communism. M.N. Roy did not support to stage revolution. M.N. Roy was against supporting the Nationalist parties. According to him, Nationalists will join hands with emperialists. He held that masses in India are ready for revolution. He held that a parallel mass movement is going on independtly of the Nationalists. Hence Communist international should support communist parties, workers & peasant parties & people's struggle.

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M.N. Roy was expelled out of communist international.

Phase II

M.N. Roy became sympathetic to Gandhi. M.N. Roy joined Indian National Congress with the aim to radicalise congress from within. He formed the league of radical congressmen He acknowledged the positive role of Gandhi towards the masses. Gandhian movements helped raising the consciousness. M.N. Roy became critic of Marxism.

- M.N. Roy's criticism of Marxism-

M.N. Roy has criticised the basic principles of Marxism as given in communist manifesto. Even when he was criticising Marxism he continued to believe himself as Marxist. He continued to believe that marx was greatest liberator of Humanity.

Marxist Principle and M.N. Roy's Criticism

(i) Historical Materialism-
Marx has underestimated the role of ideas shaping History.

(ii) Dilectical Materialism-.
He held that dilectical materialism is not the real materialism it is idealism.

(iii) Class Struggle-
Unlike K. Marx who believes that History is the product of class struggle. M.N. Roy held that History is a product of class co-operation

(iv) Surplus Value-
Marx considered surplus value as a source of exploitation whereas M.N. Roy held that surplus value in itself is not the source of exploitation rather lack of equitable distribution is a source of exploitation.

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(v) Revolution

Marx suggested changing the mode of production.

M.N. Roy suggested changing the mode of thinking.

True revolution is not the revolution in the material structure

True revolution is mental revolution.

M.N. Roy tried to give humanist interpretation to Marxism.

Phase III

→ M.N. Roy as a Radical Humanist -

Goal of Radical Humanism -

Freedom in Absolute Sense

Freedom is not just political independence, freedom is also not just ending the social and economic deprivations. Freedom means freedom in complete sense. Freedom even from supe rstitions & the fear of supernatural powers. We can achieve freedom through scientific rationality. Science can liberate Man.

Why it is called as Humanism & what is the meaning of Humanism?

Humanism is a philosophy which keeps Human Being at the centre. Greek philosophy was Humanism. Humanism came under decline during medieval time when religion became the centre of universe. Humanism reemerged at the time of Renaissance.

M.N. Roy called his Humanism earlier as new humanism.

What is new Humanism?

New Humanism is more refined Humanism than the Humanism at the time of Renaissance. It is the humanism based on the experience of centuries.

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later on he changed the title from New Humanism to Radical Humanism.

What does Radical imply?

Radical means Man in the original sense.

According to M.N. Roy, none of the existing ideologies liberate Man in true sense. If fascism suppresses Man in the name of Nation, Marxism suppresses Man in the name of class.

Radical Humanism talks about the cosmopolitan union of truly liberated persons.

According to M.N. Roy, Radical Humanism is a philosophy of social life which is based on the philosophy of nature. M.N. Roy aims to create a new society where a man can achieve freedom in real sense. Society which is based on scientific way of life. According to M.N. Roy there are 3 components of Radical Humanism.

(i) Freedom (ii) Reason (iii) Ethics.

(i) Freedom

According to M.N. Roy Freedom means freedom from all sorts of fear & insecurities.

(ii) Reason

According to M.N. Roy every person is rational, though some may appear irrational. It is the presence of reason in Man which can become the basis for Human Solidarity.

iii According to him, Reason is not spiritualistic or meta physical reason is materialistic in origin.

How?

Reason developed as a result of Man's struggle for survival.

Man's struggle for existence is still continuing & can be the basis of rationality.

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(iii) Ethics

What is Ethics?

Ethics are principles governing our social life.

According to him origin of ethics is not in scriptures or book of religion. Origin of ethics is in the reason of man During Man's struggle for survival whatever Man found is rational, desirable, it became the basis of ethics or social norms.

Radical Humanism suggest to reject outdated customs and traditions. It suggest to rationalise the principles governing our life.

Radical Humanism is Materialistic. Radical Humanism can be considered as existentialism. M.N. Roy is a source of inspiration for rationalists.

M.N. Roy has formed a party to contest elections to promote the ideology of Radical Humanism. Later on he ended the party became the critic of party politics. He held that parties go for immoral politics. Hence he started the movement known as Radical Humanism. M.N. Roy wanted to establish Radical Democracy rather than parliamentary democracy. M.N. Roy also presented people's plan as a blue print of future economic organisation for India. He favoured industrialisation, modernisation. However, he wanted industries to be owned by people. He believe that Parliamentary democracy results into deligation of power hence he supported grass root democracy.

He called himself as Humanist & distanced himself from crude materialism & determinism of orthodox marxism.

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- Influences on M.N.Roy -

He was influenced by Humanism of Protagoras, Materialism of Hobbes, secularism of Locke, Utilitarianism of Bentham & Ethics of Spinoza.

- Compare Gandhi with M.N. Roy

(i) Both were contemporary

(ii) Gandhi was politician & M.N. Roy was philosopher.

(iii) Gandhi was most successful during freedom struggle. M.N. Roy was remarkable failure.

(iv) Gandhi was more influenced by Indian religion & philosophy. M.N. Roy was influenced by western philosophy.

(v) Gandhi was spiritualist & M.N. Roy was Humanist.

(vi) There is a evolution in the ideas of both but there is a big change in basic ideas of M.N. Roy. In Gandhi, we see not much change in Ideas, only refinement in techniques.

(vii) M.N. Roy was Materialist Gandhi rejected it.

(viii) There are some similarities as both supported partly less democracy, grass root democracy, Still M.N. Roy had a difference with Gandhi w.r.t. Industrialisation.

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B.R. AMBEDKAR

Time - 1891 - 1956

According to Dhananjay Keer, Ambedkar is tallest leader among dalits. No one before Ambedkar or after Ambedkar could achieve what he could do for members of his community Ambedkar is a controversial figure. He is often criticised as the leader of his community rather than a leader of nation. He was criticised because of his demand for his seperate communal electorate. He was critic of Gandhi he adviced Dalits not to participate in congress led freedom movement. He opposed quit India movement. He supported Jinna's demand for Pakistan. He wanted Britishers to stay in India.

Arun Shourie in his book 'Worshipping False Gods' critiased Ambedkar for his anti-national stand. He calls Ambedkar Anti-national because of his attitude towards the freedom movement. Ambedkar openly opposed Purn Swaraj ressolution in 1929. on 8th August 1930 during his adress at the conference of all India depressed classes in Nagpur he openly held that he opposes the project of independence. Like Jotiba Fule who held that British Raj was better than Peshwa Raj. Ambedkar also held that depressed classes should appreciate the efforts of British as they delievered them from the long age of tyranny by Orthodox Hindus. In 1939 Ambedkar made his stand clear that whenever there will be a conflict of interest b/w country & untouchables he will give preference to untouchables.

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Ambedkar collaborated with colonial powers, Ambedkar joins defence Advisory Committee rejecting quit India Movement. He also joined ~~to~~ viceroy's executive council Defence Advisory Committee & Viceroy's Executive Council was established to gain legitimacy for British war efforts of involving Indians in the 2nd world war.

Christophe Jaffrelot has defended Ambedkar and suggest that it is absurd to call Ambedkar anti-national. According to him, Ambedkar was the leader of the community which formed the Majority of Indian Society, the Bahujan Samaj, which includes the untouchables, shudras, Tribals, Minorities, workers. According to him a person who has constantly worked for the wellbeing of the majority cannot be treated as anti-national. Ambedkar like Jyotiba phule had practicle approach. He could not understand how people devided into so many castes can constitute a Nation. It is true that Ambedkar has rejected the Idea of India as a Nation. He held that Nationalism is an ideology which becomes a weapon in the hands of elite to delegitimise any protest by the weaker section. However, in the heart of Ambedkar there was always a desire that India should emerge as a Nation. Hence he held that sooner we recognise that we are not a one nation better it is. Because we can start the process of becoming Nation. We can challenge those things which stop us from becoming a Nation.

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During his address to a constituent Assembly in December 1946. Ambedkar held that, "i know today we are devided politically, economically & socially. We are group of warring camps. I myself is a leader of one such camps. However iam convinced that a day will come when we will forget these differences and become one nation."

Ambedkar belong to community of untouchables in Maharashtra. He got an opportunity to get education in the prominent universities in the west. He earned degree in law and started practicing in Bombay. Because of his community people did not approach him for his services as a lawyer. He realised that till untouchability is practice there is no scope for members of his community to lead a life of dignity. He became active in politics. He started organising Dalits. He tried to raise consciousness among the members of his community. He brought magazines like 'Mukh Nayak' (leader of dumb - who cannot speak) he also formed 'Bahishkrit Hitkarni Sabha'. He organised Mahad satyagraha in 1927. He was disappointed because he could not get the support of Gandhi for his satyagraha. Gandhi held that satyagraha's use should be limited against the foreign rule. Ambedkar also founded Indian Labour Party, later on scheduled caste Federation and renamed it as Republican Party of India.

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His main concern was to give life of dignity to the members of his community Hence he tries to understand the origin of untouchability and how to end untouchability

lecture 5
22/02/2017

- Works of Ambedkar -

Anihilation of Caste

Who were shudras

The untouchables

Ideas of Ambedkar

① Ambedkar on Caste system

② Ambedkar on Hinduism

*③ Ambedkar's debate with Gandhi

④ Ambedkar on Democracy.

⑤ Ambedkar on Women.

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① Ambedkar on Caste System :-

Ambedkar wanted to know the origin of caste System. He wanted to understand how caste system but specifically, more urgently untouchability can be eradicated.

Ambedkar was not satisfied with the theory of caste system as given in Purushsukta of Rigveda. He went for scientific – Anthropological account of origin of caste System. According to Ambedkar, initially there were only 3 varna's. i.e. Brahmin's, Kshatriya's & Vaishya's. He link caste system with the settled life. Till society was Migratory / Mobile there was no caste system.

According to Ambedkar, Shudra's were Kshatriyas. However those Kshatriya's who developed differences with Brahmin. Brahmins ~~take~~ stopped Upnayan Sanskar for this group. Upnayan sanskar symbolise the purification. Thus Shudra's were the Kshatriya's who were not purified.

Regarding untouchables Ambedkar suggest that they were not the part of Varna system. Hindu Texts consider them as avarna's, Chandals, Antyaj. He calls untouchables as 'Broken Man'. They were seperated from Hindu community. They were living outside the main village. According to Ambedkar, they were followers of Buddhism. Those Buddhists who accepted the Hegemony of Brahmin were brought back in the caste system. However, those who preferred to continue as Buddhist were segregated, subjected to exploitation & untouchability was enforced on them.

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Why untouchability was enforced?

So that they continue to serve the other castes. It is because of Untouchability that even when untouchables take up any other professions, members of other caste do not take up their services. It forced them to continue with the traditional jobs. Since all castes were benefited, so all castes started practicing untouchability.

How to end untouchability?

According to Ambedkar, remaining Hindu, it is not possible to end untouchability or caste system. Only by leaving Hinduism it is possible for untouchables to lead a life of dignity. only when we put dynamite on Veda's and Manusmriti Annihilation of caste is possible. He gives the examples of Bhakti saints & earlier social reformers who tried to end untouchability but could not end. According to him, even Gandhi will not be successful. Gandhi is a political leader. He is not a religious or spiritual leader. People will respond to his call in political sphere. They will not respond his call in social sphere. According to Ambedkar, Hindu's are not bad people but they are extremely religious people. and the problem lies in Hinduism. Ambedkar held that it was not in his choice to be born as Hindu. But it is in his power not to die as Hindu. on 14th November 1956 he converted in Buddhism in a grand ceremony. He held that by disowning the religion of my birth i am reborn. I reject Hinduism, I reject the religion which discriminates between Man & Man. and which treats me inferior.

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According to Ambedkar, Religion which force someone t remain poor, which force illiterate to remain illite. rate, which allows human beings to touch cow dung but not to touch fellow Human being is not a religi on but madness. Hinduism has nothing for the nourishment of soul. In other societies inequality may be existing in practice but in Hinduism inequalit exist even in philosophy. According to him. Hindus are the race of loosers. Hindus can never face the challenge of other religions like Islam & Christianity. Hindus are warring castes they can never be united. and hence they will always be defeated.

② What is Hinduism according to Ambedkar?

There is nothing called as Hinduism. Even the word Hindu is of foreign origin. Hinduism is actually Brahmanism it is an ideology to establish Hegemony of Brahmins. Hinduism is heaven for Brahmins & hell for lower castes. Hinduism is based on two basic principles:

① Endogamy ② Purity & Pollution.

In order to establish their supremacy Brahmins, have started exclusive practices. They started excluding other They started the practice of Endogamy & stopped Exogamy. once Brahmins have started endogamy other castes also followed Brahmins. Thus, society got devided into closed groups. Ambedkar has criticised the myth of pure blood. In India no one can claim to be of pure blood. Inter mixing has already taken place even before the origin of caste system. It is endogamy which sustains Brahmanism. Brahmins advocated endogamy to ensure purity of Blood.

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Brahmanism started differtiating b/w pure & impure. ∴ Those who were purer were higher in the hierarchy. and those who were most polluted were the lowest. In order to emphasise on purity Brahmins stopped eating Beef. They adopted the practice of vegetarianism. This was to establish their exclusiveness from the others. Meat eaters become impure. Since Brahmins were highest in the hierarchy other castes also started imitating Brahmins. A process described by M.N. Srinivas as Sanskritisation.

Thus, untill & unless Endogamy ends, it is not possible to end caste system. However if endogamy ends, Brahmanism ends, Hinduism ends. Hence only by destroying Hinduism we can end caste system & untouchability.

③ Gandhi-Ambedkar Debate

Ambedkar was critical of Gandhi, Ambedkar had no faith in Gandhi's constructive programme to abolish untouchability.

※ Gandhi & Ambedkar had disagreements over following issues

(i) Gandhi supported Varna system. Gandhi held that Varna system is the division of labour. Every society has some principle for functional specialisation. Gandhi believed in Varna system but was against caste based discrimination & untouchability. According to Gandhi caste system is not original feature of Hinduism. Hinduism does not prescribe untouchability. A

Sanskritisation - lower castes adopting way of life of upper castes.

Endogamy - marrying within community

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According to Ambedkar there is a lack of clarity in Gandhi over Varna & caste. Gandhi's view is textual (Bookish). Varna is textual whereas caste is contextual. Varna system is an ideal but its practide form is caste system. Varna system is based on Worth but caste system is based on Birth. Varna system is division of labour caste system is division of labourers. Varna is the textual view. Gandhi himself is an example. Gandhi is not observing his own Varna dharma.

(ii) Ambedkar was critical of Gandhi using the term Harijan for untouchables. Harijan is a misleading term. Untouchables are not those who are loved by God rather untouchables form the most exploited section of Hindu society. Instead of Harijan Ambedkar has used the term Dalits or the depressed sections of the society.

(iii) Ambedkar was critic of Gandhi's Harijan Sevak Sangh. Gandhi has not accepted the proposal of Ambedkar to include the members of Dalit community in the management of Harijan Sevak Sangh. Gandhi held that the objective of Harijan Sevak Sangh is that the members of upper caste should serve dalits should work in the interest of dalits. Ambedkar compared Harijan Sevak Sangh with Mythological 'Putana'. Harijan Sevak Sangh is not to help dalits but to distract them from the reality so that they are continued to be expolted.

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(iv) Ambedkar was critical of Gandhi as Gandhi neither supported Mahad satyagraha nor ever kept any fast for abolition of untouchability though Gandhi has kept fast unto death to stop seperate electorate for dalits.

(v) Gandhi & Ambedkar also had debate over conversions. Gandhi was against conversion. Gandhi believed that there is some divine wish that a person is born in a particular religion, person should stick to his religion though person can take good things from the religion and culture of others.

Arundhati Roy in her work titled 'the doctor and the saint' has shown the debate between Gandhi & Ambedkar.

Though Gandhi & Ambedkar had lot of differences over the eradication of untouchability. However, the goals of both remained same, there was only the difference with respect to the means & approach. Even Ambedkar believed in non-violent methods. Initially Ambedkar adopted the method of satyagraha but later on shifted towards constitutional methods.

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Compare thoughts of Ambedkar with that of Marx and Marxism-

Ambedkar was influenced by Liberalism as well as Marxism. However in case of India he felt that Marxist Method of struggle will not work. Ambedkar accepted Marx concept of class struggle. He even accepted the exploitative nature of private property. Ambedkar also stood for the rights of working classes. However. Ambedkar believed that Marxist principle of Historical materialism is not relevant in Indian situation. The basis structure of Indian society is not economic but ideological. It is the ideology of Brahmanism which forms the basic structure of the society. Hence even with change in the material structure there will be no change in the status of dalits without changing the ideology of Brahmanism or Manuwad.

Ambedkar did not support Marx View of state- Marx held state as an instrument as evil. According to Ambedkar society is bigger evil than state. Society can be more exploitative. He viewed state as an agency. through which we can address social injustices. He was supporter of affirmative action policies by the state.

Ambedkar did not support Marx view on religion. According to him religion is not just the opium of masses. Religion is a necessity of Human beings. Marx has not read all religions Buddhism is not opium of masses. Buddhism has lot for nourishment of Human soul.

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Ambedkar did not support violent revolution. He only supported constitutional methods.

Ambedkar was a supporter of liberal democracy even for a transitional period he was not ready to accept dictatorship of proletariat.

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Que. Compare Arthashastra & Dharmashastra with reference to state power.

- Explanation of Dharmashastra & Arthashastra.
- Two traditions of Ancient Indian thoughts (Hinduism)
- According to Bhiku Parekh, there is more of continuity than change. The difference is only of a degree rather kind.
- Dharma & Dand are two issues which are discussed.
- W.r.t. the state power there is a remarkable similarity b/w these 2 texts. Both believe in - quasi contractual theory of origin of state, the system of hereditary monarchy. the objective of king is to help people in achievement of Yogkshem. (4 purushartha's).
- With reference to the state power both believe that the most important role of the state is to ensure all castes of observed their Dharma. Hence king has danda, though king has power to exercise Dand but king is not above Dharma. He has to exercise his power according to the Dharma as given in Shruti's & Smriti's. Manu has given an elaborate view over the duties of king. Principles of punishment.

Que. Significance of Dharma in Ancient Political thought

Dharma is Architonic principle governing Hindu way of life. the concept of Dharma is - Prithvim Dharmam Dhritam one who holds the earth. Source of Dharma is Rita (Rta) Rta is a cosmic law. In Hindu texts every varna has his Dharma. In Hindu texts there is interdependence b/w Dharma & Danda. Even king is under Dharma. If Dharma is not followed it will lead to Arajkta.

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INDIAN GOVT AND POLITICS.

I

INDIAN NATIONALISM

@ Political strategies of India's Freedom struggle - Constitution to Mass Satyagraha.
Non-Co-operation, Civil Disobedience, Militant and revolutionary Movements, Peasant and Workers Movements.

● Constitutionalism as a strategy.
What is constitutionalism?
What methods come under constitutional methods?
Why early nationalists adopted constitutional methods?
Critical evaluation

What is constitutional Method.

Constitutionalism is based on the ideology of liberalism. According to liberalism Human Beings are rational. Hence conflicts can be resolved through dialogue. There is no need of any street politics or violent method.
Gokhale in his address to Allahabad session of Indian National Congress in 1907 described, constitutional methods as method adopted to bring desired changes through the action of constituted authorities. It includes bringing resolutions in assembly, sending memorials, prayers,

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petitions & appeals to justice.

On the basis of above we can say that constitutional methods exclude direct actions. Eg. Passive Ressistance, Satyagraha, Non-cooperation, Dharna, Hadtal, Civil Disobedience, Boycott, Rebellion, Mutiny, terrorism, Criminal actions & aiding foreign invasions.

Why ~~Congress~~ Early Nationalists adopted Constitutional Method

① Ideological Reasons-

Early Nationalists were influenced by liberalism. they considered British rule as blessing in disguise. They held British rule as divine intervation to eradicate the evils of the misrule of the past. Ranade thanked British for introducing for introducing rule of law. Surendranath Banerjee appealed to introduce institutions that are truely British in character so that Indians can rejoice in permanent union with British. Dadabhai Nauroji held that British are justice loving people. Indians have to communicate their demand in a reasonable manner. Ranade held that British rule is source of inspiration hope, confidence & we are fortunate that we are under their rule than any other ~~imperialist~~ power.

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② Historical Reasons

At that time it would not have been appropriate to go for direct action. According to Gokhale, the time is not right because direct actions require emense preparation. According to C.Y. Chintamani, Before introducing direct method we have to adress internal division & disunity.

According to Bipin Chandra, such action is possible only when masses are organised, unified & have common consciousness of the common end. The objective conditions of the colonial rule was bringing Indians together but subjective consciousness which was required was missing. Moderates were leaders as well as learners. There was no readymade critic of Imperialism available. British did introduced some good practices. All evil features of the empire was not on the surface.

→ Criticism of Constitutional Methods.

① Tilak According to Tilak, Constitutional methods are inadequate because India does not have constitutional Govt. In the words of Tilak, Constitutionalism in front of Alien Bureaucracy is political suicide.

Aurobindo Ghosh called constitutional methods as intellectual Bankruptacy of Moderates

Pandit Nehru held that constitutional methods are not possible without constitutional Governance.

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Assessment by Bipin Chandra -

Though Moderates did not carry Mass struggle but they carried struggle at Ideological level. They presented the critic of colonialism. They laid the foundation of the most spectacular mass movement. According to Ranade, the memorials are not addressed to the British govt. they were addressed to Indians.

According to Gokhale, we are at such a stage when our achievements are bound to be small & our failures too frequent. We must contain ourselves by serving our country by our failure. It is through these failures that the strength will grow.

- DIRECT ACTIONS

① Extremists phase

The term Extremism & Militant Nationalism is used to denote the young leaders Lal, Bal, Pal.

Why they were called as Extremists -

They appeared more militant or extremists in their Ideas when compared with the early Nationalists who appeared moderates.

→ Comparison between Moderates & Extremists -

With the exception of Aurobindo Ghosh who talked about complete freedom, rest of the leaders were asking for dominian status. The only difference was the pace. The young leaders were satisfied with the extremely slow pace of the political reforms

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Moderates were for the gradual reforms & extremists were getting impatient and want it immidiately. There was difference in their methods as Moderates believed in constitutional method and extremists were for the direct action. Tilak rejected the method of petitions he asserted swaraj as a Birth right ~~as a~~ of Indians. He even held that Indians have right to resist or Praja Droh. Because Britishers have established exploitative governance.

Causes of rise of extremists-

(i) Foundation was laid by the moderates.

(ii) No concrete achievement of moderates.

(iii) British govt. started rolling back the reforms and representations of Indians. Eg. Calcutta Corporation Act 1899 & Indian University Act, 1904.

(iv) Political ~~A~~tmosphere was charged with Anti-British feeling Because of the British Attitude towards famines & epidemics. Britishers have actually withdrawn the relief from affected areas. Partition of Bengal was the final blow to moderates. Indian National Congress officially adopted the programme of Swadeshi.

Evaluation of Extremists-

It was the next logical step once moderates failed to make any achievements. It was necessary to maintain the credibility of congress. Extremists created the foundation for the launch of Gandhi's Mass Movement.

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What are the unique features of Gandhian strategy? Compare Non cooperation with civil disobedience movement

Do you think that the Quit India Movement was most un Gandhian of all Gandhian Movements Substantiate your views.

According to Bipin Chandra, Indian National Movement is not the only example of mass movement. Other examples include French, Russian & Chinese revolution. However, it was unique mass movement The largest mass movement reaching to its logical end He calls it as most spectacular movement that even today we can feel the warmth of National Movement.

→ Mass Movements can be categorised as:

(i) controlled & uncontrolled.

French revolution was spontaneous uncontrolled out-burst whereas Indian, Russian & Chinese revolutions have been controlled mass movements.

(ii) Protracted or overnight Mass Movement.

Russian & Chinese movements were overnight whereas Gandhian movement was protracted fight. Gandhi new that Indians have to fight at two levels:

(a) War of Position

(b) War of Maneuver.

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Why two stage revolution ?

British have established their image in the minds of Indians that they have established rule of law' Better law & order, social reforms, introduction of modern education. There was a perception that British rule was better than the rule by native princes. Hence, Gandhi needed time to show the real character of the British rule.

Gandhi was also a great psychologist who knew that Masses have limited capacity Hence Gandhi used to call off the movement before the weakness of the movement come to surface.

According to Bipin Chandra, Gandhi was also a great strategist. Gandhi knew when to start the movement and when to call off. Gandhi never left the ball in the court of opponent. The place & time was always of Gandhi's choice.

Gandhi's movements were not reactive but proactive.

Gandhi's movements had active & passive phases. which Bipin Chandra calls the strategy of struggle, Truce & struggle.. During passive phases Gandhi continued with constructive programmes.

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Non-Co-operation Movement (1920-22)

Significance -
1st truely Gandhian all India Movement.

Causes -

(i) Suppression of civil Liberties in the name of curbing terrorist violence. (Rowlette Act).

(ii) Extreme paid with Jalian wala Bagh Tragedy & the way British parliament & British public supported General Dyre.

- Dissatisfaction with the report of Hunter Commission
- Economic distressed because of 1st world war.
- Khilafat Movement which Gandhi saw as an opportunity to bring muslims in the national movement though Gandhi was criticised for Communalise otherwise secular movement.
- People were looking for action.

Strategy of Non-co-operation Movement -
Nagpur session of 1920 approved the programme of extra-constitutional mass struggle lead by Gandhi
How Gandhi described Non-co-operation
Right to refuse co-operation with the ruler who misrules.
Goal of Non-co-operation Movement -
Attainment of swaraj within a year.
Programme of Non-co-operation.

(i) surrender of titles & honours.
(ii) Boycott of govt. schools, courts, colleges & foreign clothes
(iii) No tax campaign though it was optional, left on provincial leaderships.

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(iv) opening of National Schools, colleges Panchayat Courts, promotion of Khadi, Maintaining Hindu-Muslim Unity, Giving up Untouchability and observing strict non-violence.

(v) Congress to reach to Mohalla level.

How congress described Non-Cooperation Movement - Peaceful & legitimate means for attainment of swaraj rather than legal & constitutional means.

End of the movement -

Movement was ended abruptly after chauri-chora incidence in February 1922.

Analysis of Gandhi's decision -

It was shocking for everyone. Even P. Nehru questioned Gandhi. M.N. Roy was extremely critical. He held that this shows that Gandhi was fearful of masses.

Analysis by Bipin Chandra -

(i) Gandhi was looking for graceful exit.

why?

(a) Hindu-Muslim solidarity was breaking down. Some violent incidents took place like Mappila revolt in Malabar.

(b) Masses were also getting tired.

Gandhi thought it is better to call off the movement before the weaknesses appear on surface. Govt. would have retaliated with massive force after Chauri-chora which would have impacted the future mass movement.

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Assessment of Non co-operation Movement.

(i) Movement was failure in terms of the promises made by Congress and Gandhi. Still Gandhi got what he wanted

(a) He wanted to test the capacity of masses.

(b) He wanted to establish that Congress does not represent the microscopic minority. Masses response to the call of Congress. including Muslims. M

Movement acquired multi-class character.

There was some visible success also in the form of Burning of foreign clothes & Boycott of the visit of Prince of Wales.

Gandhi knew that Swaraj was not possible in a year. His promise was just to motivate the masses.

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Civil Disobedience Movement (1930-31)

Nature of Civil Disobedience-

Non-co-operation was directed against the economic base of the raj. Civil disobedience was direct challenge to the authority of the govt. Non-co-operation was mild. It was not co-operating with the govt. Civil Disobedience was more offensive it was opposition of laws made by the govt.

How Gandhi described civil-Disobedience-

He was influenced by Thoreau who described Civil Disobedience as peace ful protest against unjust laws by civil society.

Reasons-

Seven years have already been passed & Gandhi was looking for the new movement. He found atmosphere favourable as it was surcharged with Anti-British feeling because of Simon Commission, Death of Lala Lajpat Ray & economic depression. Gandhi put forward 11 point demands:

(i) Abolition of salt Tax.
(ii) Total Prohibition on liquor.
(iii) Reduction of land revenue by half.
(iv) Reduction of Military Expenditure by half.
(v) Reduction in the salary of higher officials.
(vi) Hike in the tariff of the imported clothes.
(vii) Release of political prisoners.
(viii) Abolition of CID
(ix) License to use firearms in self defense.
(x) Rationalisation of Ruppee-Pound sterling ratio.
(xi) Coastal tariff regulation bill.

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Analysis of Gandhi's strategy -

It was more offensive & strategic in nature. It has put govt. in dilemma. If govt. uses force on non-violent protesters it will explode the myth of benevalent dispotism, if it does not use force it was direct challenge to the govt. Govt took unnecessary long time in arresting Gandhi. Gandhi could complete his march once Gandhi completed the March, similar marches started throughout the country making it more difficult. Govt. had no option but to arrest Gandhi. Arrest led to more ~~edge~~ vigourous protest. Ultimately govt had no option but to release Gandhi. Gandhi was released which led to the Gandhi-Erwin Pact of 1931. Govt. accepted most of the demands of Gandhi. It has strengthened credibility of Indian National congress. It has placed congress at an equal footing with Govt.

- Quit India Movement / August Revolution 1942.

Introduction.

Most Militant least controlled & most ungandhian of Gandhian movement.

Why ungandhian?

(i) Uptill now Gandhi was suggesting that his movement was against evil & not evil doer. Now Gandhi straight away asked British to Quit India.

(ii) Gandhi allowed the use of Arms in self defence. Use of arms is justified against the stronger and well equipped aggressor.

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(iii) Gandhi called for do or die but don't remain alive to see the country in the state of slavery. He held that nations survive only when people are ready to die for Nation.

(iv) Gandhi held that it is the last struggle of his life. Any delay in freedom in injurious & humiliating.

(v) He made it clear that he will not call off the movement.

(vi) He even permitted to take control of police stations if needed.

(vii) He refused to condemn violence by the people. He called it as a reaction to the bigger violence.

(viii) Congress clarified that it is prescribing no restrictions as in previous movements. Everyone is free to choose his own methods. There was no need to bow heads & suffer stokes but pull the sticks & defend yourself.

(ix) Quit India movement was most spontaneous once top leadership was arrested grassroot leadership emerged. Common man became the leader. This is what Gandhi wanted.

(x) It was gandhi's war of movement.

Why Gandhi Permitted to use of violence -

According to Francis Hutchins, Gandhi was afterall a politician. He was a strategist. The purpose of using non-violence was to bring masses within the fold of national movement. Once masses joins national movement non-violence was no more required.

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Response of other groups towards Quit India Movement.

(i) Ambedkar called a madventure of Gandhi.
(ii) Muslim league opposed.
(iii) Hindu Mahasabha called it Injurious to Hindu cause.
(iv) Indians should support British Because Britishers are fighting for Democracy.
(v) C Rajgopalachari. He was fearful that it will lead to anarchy.

- Revolutionary Movement -

Difference in Revolutionary & terrorists.

Revolutionaries use violence against oppressors. whereas terrorists go for the indiscriminate use of violence. The core strategy of terrorism is to kill civilians, innocent persons to create terror.

Sources of influence -

(i) Bamkimchandra Chaterjii's Anandmath.
(ii) Sachindranath Sanyal's book Bandi Jeevan.
(iii) Bhagvaticharan Vohra's book Philosophy of Bomb.
(iv) Irish Nationalists, Russian ~~Nationalists~~ Nihilists (Individual acts) Russian Revolutionaries.

Contribution -

According to Bipin chandra, Revolutionary lacked mass base they were dependent on individual acts of heroism They could not get support of INC. They thought organising mass revolution will be a uphill task. Hence they tried to inspire the youth by individual acts. They have awakened the patriotic sentiments.

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Removed the fear of authority, displayed remarkable Heroism & revived the lost pride of manhood to Indians.

- Peasants Movements

Peasantry - It represent the poor - subsistence farmers, landless labourers & Bonded labourers,

the History of peasant movement in India is much older than the History of National Movement. one of the most well known peasant revolt was the Indigo revolt of 1860.

Causes of Peasant Movement -

(i) Britishers have changed the pattern of land use.
(ii) Britishers have forced change in land relations.
(iii) British policies of land settlement has resulted into the loss of land & concentration of ownership in the hands of Zamindars.

Phase I
Peasant Movement of 1920s.

Initially INC did not take up peasant issue. That is why communists called Congress as Bourgeoise Party With the advent of Gandhi congress started taking up the concerns of peasants. Gandhi's earliest satyagrahas were for the cause of peasants. Gandhi's approach was conciliatory. whereas communist approach was based on the protest.

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Phase II 1930s

Peasant Movement of 1930s.

Congress started organising peasantry. Kisan Sabha's started emerging. In 1936 All India Kisan Sabha was formed under the leadership of Swami Sahajanand. The main demand of peasants was for land reforms. Peasant movement also developed autonomous character. Though peasants participated in National movement in large no.s yet they had no concrete success land reforms remained unfinished goal even today.

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Phase III

Peasant Movement of 1940s.

Towards 40s independent peasant movement started developing & it was more dominated by the communist or with leftiest ideology. The two prominent movement were Tebbage & Telangana Movement.

Overall assessment of peasants movement.

Peasants movement have not resulted into any concrete gains for the peasants. Despite constitutional commitment for land reforms it has remained an unfinished agenda for long peasant movement remained devided on the lines of caste & religion. Dissatisfaction with Indian State has given rise to left wing extremism based on the ideology of maoism.

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Trade Union Movement.

Trade union movement even in contemporary India remains a weak movement. From the very beginning trade unions have been junior partners allied with one or the other political party. Niether before the independence nor after autonomous trade movement could develope. Even workers remained devided on lines of caste & religion. There has been lack of leadership.

Chronology of Trade union Movement.

(i) Modern workers started emerging in the 2nd half of the 19th century. With the introduction of railway post & telegraph. Initial protest were some esporedic unorganised events.

(ii) Organised labour movement was started by philanthrophists like S.S. Bengali & Shashipada Banerjee.

(iii) The 1st labour organisation was Bombay Mill hands association formed by K.N. Lokhande

(iv) Lala lajpat ray & Gandhi took special interest in the workers issues Gandhi led the protest of Ahmedabad textile Mill workers.

(v) In 1920 All India Trade union Congress came into existence with Lala Lajpatray as the 1st president. AITUC was infiltrated by Communists.

(vi) Later on communists came out of AITUC & formed red flag trade union.

(vii) Communists again joined AITUC.

(viii) Again left during Quit India movement

(ix) Again joined but this time Congress left & formed its seperate Union Indian National Trade union Congress (INTUC).

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Perspectives on National Movement

Context of the debate -

Imperialists Historians & administrators like lord Curzon, Duffrin always challenged the existence of India as a Nation & claims of congress as a representative of Nation. According to them India is nothing more than Geographical expression. Imperialists historians (Cambridge school Eg. Percival Spear), Louis Namier and Anil Seal suggest that the political activities happening on the subcontinent b/w 1857 to 1947 cannot be called as National Movement.

Why?

Nation has to exist before National Movement.

How do they describe these activities?

They call it as communal movement they call the leaders as power brokers. They were interested in getting British favours for the members of their community. There was no grade idea behind political activities, activities were guided by Animal extincts. It was a communal politics & formation of Pakistan is the logical outcome of the communal politics. The nature of politics in contemporary India is also not changed.

→ Nationalists Interpretation -

Nationalist leaders & Historians reject the imperialists discourse. Early Nationalists like Surendranath Banerjee accepted that India was not a Nation but he also held that India is 'Nation in Making'

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cultural Nationalists like Aurobindo Ghosh was not satisfied with the mild & defensive approach of early nationalists. He rather established that India is not a Nation in making but India was nation from the beginning. He combined Nationalism & Patriotism to challenge British Discourse.

Nationalists Historians like Dr. Tarachand & R.C. Majumdar have given following arguements :

(i) It is wrong to suggest that Congress led movement was not a National Movement.

(ii) It is also wrong to suggest that the agenda of Congress was exclusive.

(iii) It is wrong to suggest that no grand idea was inspiring the political leaders at that time.

There was a definite desire among Indians to emerge as a Nation. Congress was a National Party and its leadership was Nationalist.

Survival of India as a Nation against all odds & enormous external & internal challenges suggest that we cannot dismiss the existence of India as a Nation.

→ Marxist Interpretation -

According to Benedict Anderson Nationalism is 'Invented Tradition'. Nationalism is a instrument of the Bourgeoise class.

Marx himself has analysed the revolt of 1857.

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Unlike Savarkar who established Revolt of 1857 as the 1st war of Independence. Karl Mark has suggested that it was the revolt by feudal elements.

M. N. Roy in his book 'India in Transition' has analysed the political activities under congress & Gandhi & has established that congress was Bourgeoise Party & Gandhi was Bourgeoise leader.

A. R. Desai in his book 'Social Background of Indian Nationalism' and R. P. Dutt in his book 'India Today' has expressed similar opinions.

Sumit Sarkar in his book 'Modern India' has coarned the Marxist scholars for taking casual approach. According to him, it is true that congress programme was not in the interest of the masses nor congress struggle benefited masses but it is also true that congress had no conscious or planned strategy against masses. It is also true that Indians were not so sharply devided that they could not be united.

Bipin Chandra despite being Marxist has suggested that the movement led by Congress can be called as a National Movement. It was not only a National Movement but most spectacular mass movement whose warmth is still felt.

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→ Dalit Perspective -

Dalit perspective is represented in the works of many Dalit leaders & scholars. We can also call it as Subaltern perspective. One of the earliest expression about the British Raj was given by Jyotiba Phule Jyotiba Phule was critic of Brahmanism. He held that Peshwa Raj was worse than British Raj. He appreciated British for establishing the rule of law for the 1st time.

~~Ambedkar~~ Ambedkar was influenced by the Ideas of Jyotiba Phule. Ambedkar rejected the Idea of India as a Nation. He rejected congress led movement as a National Movement. His idea of Nationalism was influenced by French Revolution. According to him, a nation is built on the feeling of fraternity. He never joined INC never participated in congress led movements, supported Jinna's demand, opposed Quit India movement & wanted that British should stay.

We can also bring the perspective of E.V. Ramasamy Naikar, popularly known as Periyar. Naikar initially joined INC but left congress in 1925 on the presumption that congress is the party of Brahmins. There is no scope for the members of other community. He joined justice party. He initiated self respect movement against Brahmanism. He also supported Jinna's demand for Pakistan. He formed a political Party Dravid khadgam (DK). He put forward demand for seperate state for Dravidians.

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Later on leaders like C. M. Annadurai & EVK Sampat came out of DK & formed DMK.

→ Socialist Perspective -

Socialist Perspective was influenced by Russian Revolution. Revolutionaries like Bhagat Singh, Congress leader like Nehru, Subhashchandra Bose have introduced socialism in Congress. Some radical congressmen known as Young turks like JP Narayan, Acharya Narendra dev & Minno Masani lead the foundation of Congress socialist party in 1934. They didn't opposed Congress they only wanted to radicalise the political programme of Congress. They were also influenced by Gandhi.

→ Radical Humanist Perspective.

M.N. Roy considered Congress as a Bourgeoise Party & Gandhi as a Bourgeoise leader.
M.N. Roy has given the philosophy of Radical Humanism. According to him, Nationalism suppresses Man, there is a need to build cosmopolitan union of liberated persons.

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Capitalist Encirclement

Stalin proposed revolution in one country. whereas lenin favoured expansion of revolution.

Why?

Revolution in Russia will not be secured if incircled by capitalist countries.

Stalin wanted to avoid the conflicts with western world so he gave socialism in one country.

Trotsky was contemporary of stalin who challenged stalin's idea in his book 'Revolution Betrayed' & has proposed permanent revolution. Like lenin he was also fearful of capitalist encirclement.

Just like capitalist Encirclement theory exist in communist Domino theory exist in Capitalism Against Soviet Expansionism USA proposed containment of communism. Domino's theory came w.r.t South East Asia It suggested that if one country will fall to communism other will also fall.

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Legacy of the British Raj -

What does legacy means?

Legacy show the continuity of 'the Raj' even after the independence.

Why legacy?

Unlike chinese Revolution, Indian Revolution is not a revolution in true sense. It is actually the transfer of power. We see the continuity of the raj in almost all aspects of Independent India.

Constitution of India itself is based on Govt. of India Act 1935.

Rabindranath Tagore was correct when he had that Britishers are going to leave India one day, that is sure. However, when they will leave India they will leave so much dirt & filth that generations of Indians will not be able to clean the mess. One of the worst legacy of the British Raj is the partition of the subcontinent. the partition of subcontinent is still considered as the worst human tragedy in terms of loss of the life & violence on the subcontinent. It is the British legacy that South Asia & Middle East remained the least integrated of all regions. We can analyse the legacy of the raj as following

In political sphere, parliamentary democracy, centralised federation also the extremely powerful, Bureaucracy & weak institutions of local self govt. It is the legacy of the british rule & the preference of the elites that India also remains 'overdeveloped state'.

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Lack of transparency, corruption & the image of India as a soft state is also a colonial legacy.

In social sphere the politics of caste & the politics of the religion can be considered as the worst legacies of the British Raj.

There is a legacy of British Raj on ~~ed~~ Indian Education system. Britishers have introduced the Education system which aims to produce clerks & emphasise on memorisation rather than critical thinking.

Rural poverty, poverty, mass poverty, lack of balanced regional developement also show the colonial legacy. India's linkage with International economy continuous to be colonial. India continues to be the suppliers of Raw Materials. C Rajamohan has compared the foreign policy of Nehru in the subcontinent with the foreign policy of Lord Curzon. India has continued with the tradition of the British India in dealing with the neighbours.

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Making of the Indian Constitution -

Q. To what extent it is appropriate to say that constituent assembly did not represent the general Will of the people in India. Give Arguement to substantiate your view.

→ Context of the Debate.

There has always been a question mark on the representativeness of the constituent assembly as well as the legitimacy of the constitution. Those who challenge the representativeness & the legitimacy give following arguements. On

(i) constituent assembly was not directly elected by the people.

(ii) Constituent assembly had two categories of members.

(a) Those who were represeting princly states. they were nominated by the princes.

(b) Those who representing British provinces they were indirectly elected by the members of provincial legislative assemblies by proportional representation It is to be noted that at that time only 5% of Indians had right to vote.

(iii) Even after constituent assembly framed the constitution it has not been subjected to the referendum to know the will of the people as happened in France. (Constitution of 5th republic).

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(iv) Constituent Assembly was dominated by the members of congress & that is why certain groups of India considered it as a congress constitution.

(v) In terms of caste & class constituent assembly was not representative. In the words of winston churchill it was assembly of Brahmins.

(vi) Constitution has amended for more than 100 times in less that 100 years of its existence. Whereas the constitution of USA has been amended so far only 27 times.

(vii) No. of times there has been lack of clarity on various provisions in the constitution. One of the most contested issue in contemporary time is the nature of secularism.

(viii) Within the first year of existence of republic constitution has been amended.

Though above arguements may have factual correctness but it would not be appropriate to suggest that Indian constitution does not represent the will of the people. One of the strongest defence has come from Granville Austin who is considered as the authority on the Indian constitution. In his book 'Indian Constitution the cornerstone of a nation'. He has established the legitimacy of the Indian constitution & representativeness of the assembly. He consideres constitution of India as a 'Cornerstone of the Nation'.

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Constitution of India can be given the credit for survival of India as a nation despite all odds. He admits that it was 'one party assembly' but he suggest that it was one party assembly in the one party state. He held that Congress was India & India was Congress. Not only Congress was the representative of the Indians. Congress has co-opted the members of other political parties like Hindu Mahasabha, RPI, Constitution of India is a consensus document with the few exceptions rest of the provisions were adopted with consensus.

We can give following arguements in support of the legitimacy of the constitution & the representativeness of the assembly:

(i) The composition of 1st loksabha after the 1st general election in 1952 show that there is hardly any change in the composition of 1st loksabha & constituent assembly

(ii) The conditions were not conducive for the conduct of referendum

(iii) Govt. of India has appointed different commissions fr- om time to time including National commission for the review of the working of the constitution which was set up by non-congress govt. Even the commissior has not suggested any changes in fundamental princip

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SC in Keshvanand Bharti case has settled the matter that it accepts that the constitution is given by the people to themselves. Court accept the written words Factual correctness cannot be questioned. As preamble mentions that the constitution is given to us by ourselves we have to accept it as correct. Court further suggested that anyone knowing the composition of the assembly will never challenge the fact that member did not represent the voice of the people of India.

Indian constitution is an organic document. It has been evolving formally by the process of amendments & informally by the interpretations of Judiciary. We cannot imagine the existence of India as a Nation without the corner stone of the Nation.

Some facts associated with constituent assembly.

(i) In 1922 Gandhi held that Swaraj will not be the free gift of the British. Swaraj will be the expression of Indians.

(ii) In 1934, Congress working Committee adopted a resolution that Constituent assembly will be elected on the basis of Universal Adult franchise.

Conclusion -

Pratap Bhanu Mehta in his article 'What is constitutional morality' has suggested that the understanding of the constitution & constituent assembly has been too much shaped by Granville Austin's description.

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No serious attempts has been ever made for the scientific Historiography of the assembly & the constitution.

Historiography → Art of studying History.

In the words of Pratapbhanu Mehta, despite the centrality of our social & political life the constitution has been ill served by our Historical imagination. There has been no serious & deep Historiography associated with our constitution. which can put it in proper Historical & philosophical perspective.

- Aditya Nigam in his article 'A text without Author: locating constituent assembly as an event.' He has argued that there was no 'particular set of values' that guided the constitution, no single author & no perceived notion of a nation. The Hegemonic notion of the Nation glossed over the differences that were prevailing in the assembly

- Different Social and Political Perspectives :

Constituent assembly was deliberative platform & the various provisions of the constitution have been adopted after long debates.

Some of the prominent debates were :

(i) Between Gandhian's & Modernists.
Gandhians wanted panchayati Raj whereas Nehru & Ambedkar favoured representative democracy.

(ii) There was debate on nature of federalism. whether India should go for model given in Cabinet mission plan or centralised federation.

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(iii) Debate for Presidential Vs Parliamentary system. K.M. Munshi favoured presidential system, Nehru favoured parliamentary system.

(iv) There was a long debate on the relations b/w FR & DP specially long debate on right to property.

(v) The system of appointment of judges was also extremely criticised as some members proposed appointment by Judges. Ambedkar has opposed judges appointed judges.

(vi) leaders like Usha Mehta, Rajkumari Amrit kaur, Minno Masani favoured enforcement of Uniform Civil code. Mehbood Ali Baig, Ismail Saheb opposed uniform Civil code & wanted explicit inclusion of personal laws in freedom of religion.

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PREAMBLE

Q Describe prominent judgements of SC with respect to the Preamble.

Q Critically evaluate different ideals & their relevance in Indian context which are mentioned in preamble.

Q. Discuss the idea of secularism as mentioned in the constitution. Why secularism remains a matter of debate.

Q. Do you think constitutional secularism can arrest the rising tide of communal violence in the country.

Q. Do you agree that secularism is the western ideal not suitable for highly religious civil society in South Asia.

→ What is Preamble?

Preambles are attached to a law as an introduction to understand the essense of the text.

Judiciary has to deal with following questions with respect to the Preamble.

① Whether Preamble is the part of constitution?

~~A.K. Gopalan case, 1950~~

Berubari case 1960.

SC held that Preamble is not a part of the constitution.

Why?

SC has taken the Precedent of USA. According to US SC preamble is not the part of the constitution.

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Keshvanand Bharti case.

In KB case SC accepted that it has overlooked that it has overlooked fact associated with, preamble.

what fact?

Preamble was adopted by constituent assembly by the motion which suggest that it is being adopted as the part of the constitution.

(ii) Whether Preamble can be amended or not?

In KB case SC has clarified that though preamble is not the provision of the constitution yet it is not outside the purview of the amending power of the parliament.

Why? According to SC Preamble of Indian constitution does not walk before the constitution as in case of USA. It walks with the constitution. SC has given special emphasis on the fact that preamble was adopted by the constituent assembly in the last.

Why?

To ensure the harmony b/w the main text & ideals present in the preamble. they should not walk on separate tracks.

Judiciary wanted to avoid the situation where preamble comes in conflict with the main body. It may happen that because of amendment the conflict comes b/w the ideals of preamble & the amended constitution.

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(iii) Whether Preamble is aid in the interpretation of the constitution

In 1950 in A.K. Gopalan case, SC rejected the view that preamble should be "The Guiding star in the interpretation of the constitution". SC clarified that Preamble can be used as an aid in the interpretation of the Constitution only where there is a lack of clarity.

In Berubari case 1960, SC again clarified that preamble will not be used if the language of the provision in the constitution is clear. Only when terms are ambiguous & capable of two meanings, preamble to be used. Preamble shall not be the source of any power if it is not explicitly given in the constitution nor preamble is a source of prohibition if any power is explicitely given in constitution.

→ Keshvanand Bharti case.

SC held that Preamble furnish valuable guidance in the matter of Interpretation of the constitution & constitution should be read & interpreted in the light of the grand & noble vision expressed in the preamble.

→ Preamble as a Horoscope of Constitution. Comment. (K.M. Munshi)

Horoscope tells about the characteristic features of a personality. Horoscope also tells about the future of a person.

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Preamble also tells the fundamental characteristics of Indian state. It also suggest the future direction.
(a) Unity & Integrity of the nation.
(b) Human Dignity.

→ Discuss the impact of Globalisation on the sovereignty of India as mentioned in the Preamble.
- Explain sovereignty.
- Globalisation.
- Conflict b/w sovereignty & Globalisation.
- Mention ideas of David ~~Held~~ Held that globalisation has weakened the Nation state, so far highest representative body.

→ Globalisation & its impact on India's sovereignty-
(i) India is a responsible member of International community.
(ii) India is a major power.
(iii) If there is any dilution of the sovereignty it is only with the consent.
(iv) Global norms have not been imposed on India from outside. India has been a active participant in the formulation of Global norms.
(v) We have not adopted those obligations which we consider as inimical to the interest of our country.
(vi) Globalisation has actually strengthened India's capacity. Earlier India had only ideological power to assert its sovereignty but now India has economic & Military power & is in a better position to safeguard its sovereignty or national interest.

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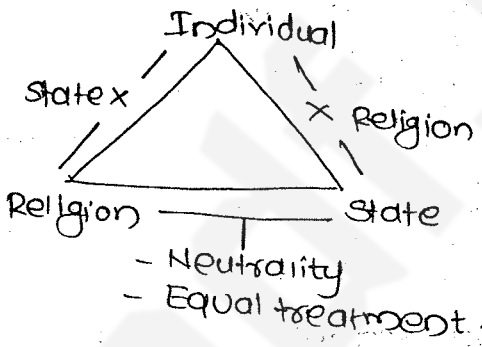
(vii) Globalisation expect nations to act in concert with each other. Globalisation expects nation to go for more responsible use of sovereignty. Globalisation has given rise to the concept of 'Pooled sovereignty'.

Lecture 59
27/02/2017

SECULARISM

Q What is secularism?
Q. Nature of Indian Secularism
Q. Constitutional Provisions related to secularism.
Q. Debates on secularism in India
Q. Relevance of secularism
Q. Is secularism is western ideal not practical in Indian situa"

Hinduism → is a philosophy → not religion.



Secularism → undefined in Indian constitu"

Introduction -

The term secularism was coined by George Jacob Holyoke in 1851. He defines secularism as a social order. wher religion is niether actively criticised nor actively promote

Secularism is a western concept. It is considered as the child of christianity & Gift of modernity.

wrote lastly but should be 1st while giving introduc"

* Indian secularism continues to be misunderstood its nuance, complexity, distinctiveness remains painfully illusive. (Rajiv Bhargav)

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In western world secularism emerged as a result of the experience of the religious wars. Machiavelli suggested seperation b/w church & state. Within christianity there has been a internal reform movement by which a sphere of God has been made limitted to the personal sphere. Hence, scholars like T.N. Modan suggest that it is wrong to impose western secularism on people in South Asia where civil society has not been secularised. In societies where religion shaped all spheres of life.

secularism remained a highly contested except not just in India but even in western countries. Rajiv Bhargav has given 3 Models of secularism:

① Ultra (extreme) Substantive Model. (FRANCE)
Model is found in the countries where secularism is based on the substantive values like autonomy, human dignity, freedom of choice.

② Ultra Procedural Model. (USA)
Ultra Procedural Implies that state adopts strictly neutral approach as far as the religion is concerned State & Bureaucracy is based on complete rationality.

③ Contextual Model. (IND)
It means politically negotiated model. He calls Indian model as a contextual model. Indian model is not based on any single overarching idea.

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According to Rajiv Bhargav, Indian model is neither the model of religious neutrality nor equal treatment of all religions. (Equidistance) He calls Indian Model as 'Principled Distance' or in the words of Pratap Bhar Mehta it is asymetrical intervention of state in different religions. Principled distance means a contextu Model. depending on the context state will exclude or include religion. There is a simultaneous existence of engagement & disengagement. Principle distance allowas differential treatments.

→ Rajiv Bhargav has given seven essential features of Indian Model –

(i) State is not completely identified with particular religion yet state is not averse with the use of religious symbo

(ii) No strict boundaries rather porus boundaries. (State to religion ; religion to state)

(iii) No active hostility towards religion & no passive indifference.

(iv) Different religions are the foundations of the state.

(v) No overarching idea.

(vi) secularism is dependent on the ideas of Liberty, equality, fraternity & is considered as integral componen of democracy.

(vii) Politically negotiated contextual model.

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- Constitutional Features / Provisions.

(1) Preamble.

Though there were proposals in the constituent assembly to introduce the term secularism but it was not adopted. However, secularism has been introduced in the preamble by 42nd amendment act 1976. The act of introducing secularism in the preamble itself remains controversial.

Why controversial?

(i) It was introduced when emergency was imposed & opposition was behind the bars.

(ii) It is redundant because it is present in the preamble or not it does not alter the status as india as a secular state.

On 26th January 2015, Ministry of Information & Broadcasting has issued advertisements which have shown original preamble without secular & socialist words. Some political parties like Shivsena suggested to bring amendment & delete the term.

→ According to Prof Upendra Bakshi,

(i) There is nothing called original preamble.

(ii) Though when Indira Gandhi govt. introduced, it may have political motives but inclusion have served constructive purpose.

(iii) It has made our commitment towards these goals explicit.

(iv) Since Keshvanand Bharti case SC has interpreted the constitution in the light of the ideals given in the preamble.

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(v) It has made govts. conscious of their constitutional obligation.

No purpose is served if we delete the term from the preamble. It will make govts. more relaxed & non-responsive.

(vi) It will increase the sense of insecurity among minoriti

(2) Article 14. Equality Before Law
Article 15. State shall not discriminate on the basis of religion.

However in practice above ideals is not followed. There have been many cases where minorities have accused that administration has not adopted religious neutrality specially during riots.

Art. 25-28. Every article is controversial.
Art. 25- Freedom of Religion but it is not absolute freedom, it is subjected to public morality, order, health. It gives freedom of conscience, freedom of profess, confest & propagate religion., freedom of practic
Even in the constituent assembly some members obje cted for such a comprehensive approach towards freedom of religion. Neither the members of majori ty nor minority community are satisfied. As faras freedom to practice religion is concerned SC has invented 'Essential Practices Doctrine'.

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Freedom of religion is available only in essential practices not in non-essential practices. Eg. SCheld that Tandav Nrutya is not a essential practice of Hinduism. What is essential practice is determined not by any priest but by Judiciary.

SC has upheld the validity of many state laws which bans conversions. According to the christian missionaries it restricts freedom to propagate religion. Freedom to propagate religion ultimately means freedom to convert.

Art. 25 (2) It permits intervation of state in Hindu religious customs for the purpose of reforms. Hindus consider it as appeasement of Muslims. For above provision Sikhs Jains, Buddhists are also treated as Hindus.

Art. 26. Right to establish, administer, religious institutions by any religious denomination.

However in case of its management govt. has right to intervene.

Art 27. In above context there have been a controversy w.r.t. subsidies which govt. gives to Huj yatras as well as Hindu Pilgrims (Kailas Mansarovar Yatra).

Art. 28. Right of Minorities to establish educational institutions of their choice.

Art 29 & Art. 30 Special Rights to Minorities.

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Hindu Rightiest Group call it minority appeasement. According to Arun Shauri in secular state principle of Equality has to be followed. If something cannot be extended to all it should not be extended to any particular group.

Art. 44. Established the Constitutional ideal of achieving Uniform civi code.

It has become extremely containtious issue. India is secular if India adopts UCC & or it is secular if it does not adopt UCC.

Art. 325. It abolishes seperate communal electorate & introduces universal Adult franchise.

- Ideal of Secularism found in Indian Constitution.

In the constituent assembly there were 3 major approaches:

① Nehruvian Approach

It was a modernist approach based on religious neutrality. Nehruvian approach also comes near to the Hindu rightiest groups (religious neutrality).

② Gandhian Approach.

Sarva Dharma Sambhav it does not mean equal treatment for all religions. It means equal respect for all religions.

③ Ambedkar's Approach.

Ambedkar was concerned with the rights of minority.

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All ideals have been included in the Constitution.

Analysis of India as a secular state -

One of the earliest book on India as a secular state is of D.E. Smith. in his book 'India - a secular state' published in 1962.

D.E. smith provides 3 features of a secular state:

① Freedom of Religion
② Citizenship & Right to equality.
③ Seperation of state & Religion.

According to him, India has 1st two features but not the last feature. D.E. smith's explaination of the India as a secular state with few features & not all features has been criticised by Mark Gallanter. According to him. It is wrong to evaluate Indian model from the perspective of American model. India has its own unique model.

There has been dissatisfaction among both the minorities as well as majorities. According to Hindu Rightist group the model of constitution is Sudo secular. A word popularised by Advani who suggest that secularism of Congress it is nothing but political Euphemism which is just a vote bank politics.

→ Minorities are under the dual burden:

① Charge of appeasement.
② Neglect & Exclusion from the process of developement.

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Minority also question the neutrality of Administration. The members of minorities are made targets of Preventive Detaintion Laws.

Neo-Gandhians like Ashish Nandi has written 'Anti-secularist Manifesto' He is against the necessity of secularism in Indian situations. He calls secularism is a scientific manggement of the public sphere. Secularism is not based on the understanding of the real role of the religion in the life of persons in South Asia. He supports the tradition of Akbar & Ashoka. He recommends the recovery of traditional religious tolerance. According to him there should be continuous dialogues b/w religions. There should be promotion of religious education. Religion has entered into the public life through the backdoor. People are not ready to seperate religion from Public sphere. Secularism has become an Absurd search for modernity. Traditional societies had internal principles. which helped them to live together. (Principle of toleration)

T.N. Madan :- South Asia is a Multi-religious society and majority of people living in S. Asia are believers in some religions They cannot make sense of life without their religion. Hence, secularism will not work. He calls it as an act of arrogance & a political folly.

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Achin Vanaik, is critical of the arguements of Neo-Gandhians & suggest that religion based public morality will be dangerous. The root cause of communalism is religion itself. Hence, secularism is needed.

Akeel Bilgrami suggests secularism should be the product of dialogue. He suggests bottom up approach rather than imposed from above.

Gurpreet Mahajan, she suggest secularism should ensure that no one should suffer or is disadvantaged because of belonging to a particular religion.

Romila Thapar, suggests that we require to bring Secularism out of its ~~tatted~~ pale shadow found in Indian Constitution & we should follow some bold model of secularism.

Above debate show that there is dissatisfaction not just theory but practice of secularism in India.

Charles Tailor in Rajiv Bhargav's edited book Secularism and its critics has mentioned that secularism is a necessity for a democratic life of a religiously diverse society.

Suggestions:

1. There is a need for Public debate.
2. Amendment in electoral laws.
3. Judicial reforms
4. Reform in criminal justice system
5. Punishment of officials found guilty of dereliction of duties
6. Media should play constructive role.

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Pratap Bhanu Mehta on Indian Secularism & Principled Distanced Model

Lecture 60
28/02/2017

P.B. Mehta suggests that we have to come out of the majority & Minority Complex. Congress secularism (Constitution Model) has been a balancing act of the politics of placating one group & the other according to the need. Principled Distance model ideologically legitimise Vote bank politics with the distinctive name of secularism. In theory Principled Distance may appear rational but in practice it ha lot of scope for plausibility. Flirting with all religions is no longer a viable political option. Principled distance is "Misleading metaphor, casting secularism in terms of Competitive politics leaving all communities feeling insecure all the time.

Q. Minorities are Natural Custodians of Secular State. —D.E. Smith.

→ What is the idea of D.E. Smith?

He suggest that protection of Minorities has been the dominant feature of Indian Secularism. Historically the idea of India as a secular state is associated with the idea of Pakistan as a seperate state for Muslims. According to Iqbal it is irreligious for Muslims to live under man made laws. Muslims are supposed to live under shariyat laws. India's Majoritarian Democracy will force Hindu way of life on Minorities, considering it as rational. Hence the Strongest Idea behind Indian Secularism has been the assurance to the minorities that they can live according to their customs & traditions. Hence, According to D.E. Smith, Minorities are the custodians of Secularism in India. Because

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Indian State is dominated by Hindus. More minorities are organised conscious & active. They can ensure that India remains a secular state.

Q. Secularism's place should be taken in future by Pluralism. Comment

(i) Rajiv Bhargav's statement of illusive concept.
(ii) Status of India as a secular state is a contested Idea.
(iii) D.E. Smith says India has few but not all features.
(iv) Marc Galentor Criticise that Indian model should not be evaluated on the basis of Us model.
(v) There has been debate on Indian Secularism
(vi) Why? Because (S) has not been defined.
(vii) Indian model comprise of many overlapping & at times paradoxical features. It recognises autonomy of an Individual as well as community based rights.
(viii) All provisions related to secularism in constitution remain contested.
(ix) Hindu rightist group call it pseudo-secular & minorities are also burden.
(x) Rajiv Bhargav explains uniqueness of the concept as principled distance' P.B. Mehta calls Principled distance as misleading metaphor.
(xi) Neo Gandhians like Ashish Nandi & T.N. Madan believe that secularism is a western concept a child of Christianity & Gift of Modernity. Little chances of success without secularisation. Ashish Nandi suggest to take inspiration from the idea of pluralism & tolera" based on Indian Tradition & implemented by Ashoka & Akbar.
(xii) Marxist scholars like Achin Vanaik are sceptical of bringing religion in public sphere.
(xiii) Akeel Bilgrame suggest negotiated bottom up approach Romila Thapar suggests the need for debate & more bold view of secularism.

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Role of Religion in Politics-

Religion has been present in politics since beginning. The presence of religion in politics is also a universal phenomena. Since the end of cold war there has been the phenomenal rise in the role of religion around the world. Clash of ideologies has been replaced with clash of civilisation there has been the growth of ethnic conflicts around the coorld. Though the History of modern India has never been free from the influence of communalism But there has been the phenominal rise in communalism in India since 1990s. Since 1990s Mandal & Kamandal have become the major idioms of Indian politics. Thomas Blom Hansen in his book 'the saffron wave' has explained the rise of Hindutva & BJP's position as a symbol of growing influence of religion in politics.

What type of politics is the Politics of Religion?

Politics of Religion is considered as the politics of identi

Features of the Politics of Identity?

(i) Politics of identity is not the politics of reason but politics of passions.

(ii) Politics of Identity is necessarily violent. Once emotions are raised they become uncontrollable and it culminates into violence.

(iii) Politics of Identity is unethical & Anti-National.

(iv) It is unethical because persons having political ambitions play with the sentiments of the people.

(v) It is anti-national because it is always exclusivist in nature

(vi) Politics of Identity is Anti-developement. It distract the priorities and attentions.

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Mandal politics of caste
Kamandal
↓
saffronisation

Politics of Religion is a politics of identity. India has been the one of the most worst sufferer of Identity of Politics. of all sorts like politics of caste, language, region & ethnicity.

- Origin of communalism in India-

What is communalism?

the use of Religion for political purposes is called as communalism.

Causes of communalism / Explanation of communalism in India-

these 4 schools of thought.

① Essentialists - Louis Dumont (scholar).

According to Essentialists arguements Hindu's & Muslim's are 2 antagonistic communities. The reconcilia of interests — is not possible & hence co-existence is not possible.

② Institutionalists - Asghar Ali Engineer (scholar)

According to him if policies of the state w.r.t the distribution of resources is based on caste or religion communalism is bound to emerge.

③ Instrumentalists - Bipin chandra (scholar)

Elites use religion as an instrument for political purpose.

④ Social constructivists -

According to social constructivists, there may be no real cause of conflict but communities develops some perceptions about each other, mental maps & do not verify their perceptions.

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Origin and Evolution of Communalism in India -

(1) Pre-British Time -

Unlike colonial Historians who gave essentialists arguements scholars like Romila Thapar has shown that communal violence in India was the phenomena asso-associated with the British Raj. There are some examples of sectarian conflicts before British but it was of local nature. However, with the British it became Pan-Indian phenomena.

(2) During British Time -

(i) Britishers started prefential policy towards Hindu's & considering Muslims responsible for the revolt of 1857.

(ii) Sir Sayad A. Khan expressed the loyalty of Muslims to secure their aid for educational empowerment of Muslims.

(iii) Britishers always favoured minorities because majority will always challenge the foreign rule & insecurity of minorities can be manipulated. Eg. they favoured Muslims in India & Tamils in Sri Lanka.

(iv) In 1906 feudal elements among muslim communities formed Muslim League Muslim League started getting started support from British.

(v) In 1909 gave statutory recognition that Muslims are seperate community

(vi) In 1915 Savarkar formed Hindu Maha Sabha in response to the policies of Muslim league.

(vii) In 1919 seperate electorate was extended for other religious communities.

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(viii) In 1923, Savarkar gave the theory of Hindutva & his theory of Nationalism. According to Savarkar persons spiritual & land & father land has to be one. In response to Savarkar's Hindutva come Iqbal's Theory of Muslim Ummah or Muslim Brotherhood. He held that Islam does not believe in the territorial concept of Nation. He also held that it is Unislamic for Muslims to live under Man made laws.

(ix) In 1925 RSS was formed (Keshav Baliram Hedgewar) as a reaction to aggressive pan-Islamism. Its objective was to overcome the Hindu sense of vulnerability & inferiority complex that Hindu's are weak race. RSS promoted militant form of Hinduism.

(x) In 1932, Britishers announced Ramsay McDonald award. Upto now they have devided different religious communities, now the attempt was to devide Hindus.

(xi) Above developements ultimately led to the communal violence in the country culminated into the tragedy of partition.

(3) After Independence-

Phase I- Till 1960s no major incidence of communal violence though bitterness of partition continued. One reason for absense of communal violence was that Nehru Govt. banned communal organisations.

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Phase II- 1960s.

Selig Harrison calls 60s as 'Dangerous Decades' India has already come under the challenge of linguistic Nationalism. but now there was re-emergence of communal violence. In 1961 the 1st major communal riot took place in Jabalpur followed by riots in Rand Nagpur, Aligarh and Ahmedabad.

In 1960s communal riots have been an urban phenomena located in Industrial towns.

Nehru's Response—

His response was to form National Integration Council. write History

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Phase III - communalism during Indira Gandhi :-

During the time of Indira Gandhi we see the coarst consequence of the use of religion which led to the terrorism in Punjab. During the time of Nehru communalism was limited to urban areas but now it has started spreading to rural areas against the politics of Akali's Congress started supporting the Dalit's in Punjab. the politics of religion culminated into the tragedy of the operation of Blue star. Assassination of Indira Gandhi followed by Anti-Sikh Riots. Primarily in North India violence continued for 8 consecutive days in capital itself and justice is still not served.

Phase IV - Communalism during Rajiv Gandhi

Rajiv Gandhi started double appeasement. He permitted the opening of Ramjanma Bhumi gate & Shila nyas Pujan. To appease orthodox muslims govt. brings a law nullifying the progressive judgement of SC. in Shah bano case. Appeasement of Hindus made BJP insecure. BJP started Ram Mandir issue.

Phase V - V. P. Singh Govt.

V. P. Singh was unable to manage coalition govt. nor he was able to manage eco. difficulties terrorism in Punjab & Kashmir. Hence in order to consolidate his political position He made announcement of Mandal's commission's implementation. BJP became more insecure of loosing Hindu vote bank. BJP was not left with any option but to start Rathyatra which culminated into the demolition of Babri Mosque followed by Mumbai riots, followed by Godhra incidence, followed by Gujrat

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riots, followed by Muzaffarnagar Riots.

→ Analysis of Communal Riots in India - (Paul Brass)

• Conventional view of communal riots in India.

Conventional view is represented by Ashutosh Varshn According to him, communal riots are spontaneous outbursts. Paul Brass has challenged above approach & held that riots in India are well planned organised events. According to Paul Brass, complete 'Riot mach nery exists'. Environment is never free from communa violence. He gives 3 steges -

(1) Preparatory stage - He calls riots as 'staged Dramas'. There is a proper division of labour. there are rehersc in this stage major role is of 'fire tenders'. They are the persons who keep on giving provocating statement so that communalism remains in air all the time.

(2) Precipitation stage - In this stage there is a role of conversion specialists. It is the stage when violence actually erupts. Most sensitive periods are near elections.

(3) Explainatory stage - It is a post riot situation when blame game starts. The reality is everyone is benefited Because it results into consolidation of vote bank of all parties.

Most of the persons hired for precipitation stage belongs to the lower strata.

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they are also recorded in public functions.

Prof. Dibankar Gupta has mentioned the concept of Picnic Riots.

→ Analysis of communalism in India -

① C. P. Bhambri -
According to him, politics of caste is responsible for politics of religion. When one party uses the card of ~~religion~~ caste other party uses the card of religion. According to him, Nehru was not balanced in his approach as Nehru considered minority communalism as lesser evil and majority communism as fascism.

② Thomas Blom Hansan - Book - The Saffron Wave.
Rise of BJP is not a religious phenomena nor strictly political phenomena. It is happening in the backdrop of the democratic transformation taking place in country. It is a reflection of 'Plebianisation of Indian Democracy. As lower castes & OBCs started mobilising themselve. amorphous middle class became anxious Hindus from lower middle classes got attracted towards BJP's majoritarian rhetoric constructed in the name of Nationalism, cultural ~~right~~ pride, order & developement.

③ James Manor -
The decline of congress has led to the rise of BJP people had two options Left or Right. left lacks in ideology which can attract imagination, left also lacked leadership. Right appeared as better option, better org. / leadership, attractive ideology. BJP has been beneficiary of Globalisation Because it got support from NRI looking for cultural rights.

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Lecture 61
01/03/2017

Q What is the significance of Preamble to the Constitution? Bring out the philosophy of Indian constition as inshrined in the preamble?

Q Preamble embody the fundamental values & phirosophy and which constitution is based.

① Preamble is like intro. to consti" to understand themain text. In case of Indian consti" Preamble has a special position. Pandit Thakurdas Bhargav in constituent assembly He called Preamble as Jewel set (Precious).
K.M. Munshi called the preamble as the horoscope.
Ernst Barker one of the prominent political scholar has held that Preamble of India sums up of its entire philosophy for which he has written a book of 300 pages.
Unlike other constitutions preamble of Indian constitution is a sacred document considered by SC as a integral part of consti" containing elements of Basic Structure.
SC held that preamble express the noble vision which inspired us during the National Movement & should be considered as Fundamental in interpretation of constitution

Preamble tells the philosophy of Indian Political system.
Granville Austin in his book Indian Consti" cornerstone of nation considered Preamble along with Part III & IV of the consti" forming the conscience of the constitution.
It tells the philosophy of Indian politics. Preamble suggest that the aim of constitution is to establish a society where unity & integrity & human dignity are to be treated as supreme goals it establishes a social order based on very substantive & comprehensive idea of Justice ie. social, economic & political.

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It establishes that India is a welfare state it recognises that Political Democracy without social Democracy will be the contradiction.

———— XOX ————

④ Asgar Ali Engineer in his book communalism & Communal politics in India gives Marxist interpretation He suggest the root cause lies in the uneven development both in terms of regions as well as in terms of class/ persons. He considered communal politics is actually the mask the class conflict.

UNIFORM CIVIL CODE

→ UCC and its necessity.

Q What is uniform civil code?

Uniform Civil code is a western concept which emerged in Europe in Modern Times. Europe has witnessed 30 years of war where religion was one of the primary source of conflict. Hence, European experience has resulted into the recognition of the necessity that the role of religion should be confined to the personal sphere & that is why the european model is based on strict seperation of personal & political, Religion and state. UCC is based on the idea of Universal Citizenship.

UCC not necessarily common civil code. More than common code for all communities it asserts supremacy of the state w.r.t the law. It permits state to make laws governing different aspects of the life of the citizen excluding freedom of conscience.

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UCC is based on the monistic theory of the law. According to which law is command of sovereign. It becomes common code because all laws have to be brought in alignment with the constitutional principle constitution being the fundamental law.

Status of laws in India.

India has combined supremacy of constitution with legal pluralism. there is a common civil code, common criminal code & only in the matters of personal laws there exists different personal laws. In above context the principle of multi-cultural citizenship has be adopted.

(i) Britishers have codified personal laws governing Christians & Parsi's.

(ii) After Independent Parliament has codified Hindu personal laws which are at present applicable for Hindu's Jains & Buddhism.

(iii) Anand Marriage Act governs the personal laws for Sikh community

(iv) Only Muslim personal laws remain outside the purview of the state. In case of Muslims, Muslim personal law Shariyat Application Act 1937 applies. The act probibits the intervention of the state in the matters of Personal laws.

Debate in Constituent Assembly.

UCC has been a debatable issue. Members like Rajkumari Amrit kaur, Hansa Mehta, Minno Masani favoured the introduction of UCC. whereas

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members like Mehbub Ali Beg, Ismail Sahib were in favour of keeping ~~Muslim~~ Personal laws within Article 25.

Ultimately UCC was placed in the Directive Principles Art: 44.

What was the idea?

The idea was that we will move incrementally towards the achievement of Uniform Civil Code.

What is the text of Article 44?

According to Art: 44 state shall endeavour to establish UCC. It means state shall take special efforts to introduce UCC.

It is to be noted that congress Govt. has never taken any special efforts. Beside congress even non-congress govt have not taken any special efforts. Present govt. has reffered a matter for the consideration of law commission. The present govt is suppose to be based on Hindu right-wing ideology & Hence govt's initiative have also become controversial. So far activism in the field of UCC has been from the institutions of Civil society including the associations of muslim women including 'Awaaz-i-nisvaan., Bhartiya Muslim Mahila Andolan. as well as SC. SC has held that non-implementation of UCC not only impeds the rights of Muslim women but also Hindu Women (Sarla Mudgal case). Muslim personal laws have not remained entirely untouched as Rajiv Gandhi govt has brought Muslim women protection of right in divorce act 1986 diluting Shahbanu Judgement of SC.

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Why UCC is required? (In case of Muslims).

(i) To improve the status of women among Muslims. It is argued that Non-implementation of UCC violates the fundamental principle of Right to Equality.

(ii) According to certain sections UCC has linkage with the National Unity & Integration though it is difficult to know how?

(iii) Flavia Agnes has highlighted the following problematic aspects w.r.t. UCC.

(a) UCC is a directive.

(b) U/Art 29 Minorities enjoys Fundamental Rights w.r.t the protection of their culture & way of life. The problematic issue is how to reconcile the Art. 14, 44 & 29.

(c) It also goes against the principles of federalism. Because personal laws come under concurrent list.

(d) Ethnic communities in North East also enjoy special protection w.r.t their customary rights.

(e) There is a lack of clarity whether muslim personal laws will be treated as law under article 13(2). In State of Bombay Vs Narasu Appa Mali judiciary has held that personal laws are treated as laws within the definition of Art 13(2) which mentions about 'laws in force'. Recently SC has decided to constitute a constitutional bench to determine the legality of Triple Talaq, Bench will also give its opinion on the status of the personal laws w.r.t. Art. 13(2).

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- According to Flavia Agnes, the discourse on UCC is based on the myth of the perfection of Hindu laws. In many contexts the Rights of women are better protected under Shariat laws. Just because Hindu personal law has abolished poligamy. It does not mean that Poligamy does not exist among Hindus. Atleast the Rights of the 2nd wife are protected under Muslim personal laws. According to Flavia Agnes, state should adopt incremental approach & that is what the constitutional directive is.
- Nivedita Menon also suggest that UCC is not about the rights of women. It is all about politics & it is not clear how it has links with Nationalism.
- Zoya Hasan, in her book 'Forging Identities, Gender communities and state in India. Cautions against treating Muslims as Homogenous community. There are 4 promdnent schools of interpretation of Quran and Shariat. There are different communities among muslims. Any single organisation eg All India Muslim Personal law Board cannot be considered as the sole voice of muslims. Besides AIMPLB which represents Orthodox Sunni sect there exists all India Shia Muslim Personal law Board. All India Muslim women Personal law Board.

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ROLE OF CASTE IN INDIAN POLITICS

What is caste?
Evolution of cast politics in India.
Impact of caste politics.

Introduction-
It is said that in India people do not cast their vote they vote their caste. According to M.N. Srinivas caste is present among Indians even at sub conscious level.
According to Christophe Jeffrelot caste forms the mosaic of Indian politics.
According to Rajni Kothari, In India it is not just caste has influenced politics but politics has also influenced caste.

What is caste?
The term caste comes from Portugese word casta which is the Europeans translation of Indian term Jati
One of the earliest study on the caste system is of Louis Dumont. He described caste system as the unique system of social stratification found in India based on the principles of Purity and Pollution. He describe it as a rigid system based on Birth which does not permit social mobility.

M.N. Srinivas has challenged Dumont's understanding on caste. According to M.N. Srinivas Indian system of caste & the western system of class are not entirely opposites. Class system in effect is as rigid as caste.

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It is also wrong to think that Indian caste system was entirely rigid. He gives the concept of sanskritisation. He considers Dumont's view as textual. He has coined the concept of 'Dominant caste' to explain the reality of the caste in India. In different regions caste system is not uniform It is not that in all regions Brahmins are the most privileged. In different regions different castes are dominant Eg. Yadav's in Bihar, Jats in Haryana or Maratha's in Maharashtra. Dominant caste has two features -

(i) Numerical Majority
(ii) Ownership of land.

Origin of caste politics can also be traced during to the British time. Throughout National Movement Congress was considered as party of upper caste & specially Brahmin's. Congress was opposed by Ambedkar who has formed Republican party of India representing Bahujan Samaj. In South Ramaswami Naikar has built the opposition to congress & the party of OBC's challenging the domination of Brahmins. One of the major issue of caste politics in India has been -

(i) Reservations
(ii) Land Reforms & Agrarian politics.

After Independence -

Though pandit Nehru had a vision for India which is free from caste & communalism, it is surprising that Indian constitution only abolish untouchability and does not abolish caste system.

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on the other hand caste became the basis for public policy. After Independence Reservation issue has dominated the politics of caste. Different scholars have analyzed the role of caste & the impact of caste in Indian politics.

① Andre Beteille has done one of the earliest studies in the role of caste in Indian politics. specially in Tamil Nadu. According to him, caste may enter into politics in no. of ways.

ⓐ Appeal is made to cast loyalties in general election.
ⓑ Network of inter-personal relations are activated to mobilise caste.
ⓒ Caste associations seek to articulate the interest of different castes in organised manner.

** ② Rajni Kothari has appreciated the role of caste in Indian Politics. He links the role of caste with the success of Democracy in India. Caste was a factor for mobilisation of people & bringing them to the electoral system. He suggest that caste has not only influenced politics but has also been influence by politics. In the words of Rajni Kothari not only politics has become caste ridden, but caste has become politicised.

What is politicisation of caste?

Today caste is not so important for ritual purposes, caste has become important for acquiring secular benefits like access to education & employment. we can call it secularisation of caste.

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He has explained the relationship b/w caste consciousness & politics in three aspects.

(i) Secularisation of caste -

Secularisation of caste has happened through their political involvement. It has altered traditionally maintained rigid features. Resulting into the Breakdown of social political order. this enables the process of alignment & realignment. of various strata & gradually embracing the process of social morality.

(ii) Integration Dimension -

Caste System not only differentiate ~~on the~~ individuals on the basis of their caste or social identity but also on occupation & economic roles. At the same time it is an integral structure of a specific type namely one that is more intense in its small group orientation & particularistic loyalties & ~~were~~ where wider ~~the~~ loyalties operate only when they are structured through prevailing differentiation.

(iii) It is related to the consciousness ie. caste enters into politics through consciousness & then gets politicised in turn.

(3) Rudolph and Rudolph -

They has analysed the role of caste associations in Indian Politics in their book 'Political Role of caste Associations'. They call caste association as Democratic incarnation of caste. They have also explained role of caste in 3 forms of mobilisation:

(i) Vertical mobilisation -
When lower caste is lead by upper caste in the process

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they got some concession. This happens in the initial phases.

(ii) Horizontal Mobilisation -
When lower caste develops their own relationships independently of upper caste.

Differential Mobilisation -
It points towards intra-caste rivalries. It is a prominent feature of Tamil nadu politics.

According to Rudolph & Rudolph the role of caste in politics has resulted into 'modernisation of tradition' and traditionalisation of Modernity'. Modernisation of tradition means secularisation of caste. Traditionalisation of modernity means democracy acquiring traditional features of caste & religion.

In their book 'Pursuit of Lakshmi' they have mentioned the increasing role of caste since Green Revolution. Green Revolution has strengthened the position of intermediate castes or OBCs. They refer OBCs as Bullock capitalists

(4) Presently the politics in all states is dominated by OBCs.

Yogendra Yadav has explained the evolution of Democracy & caste politics in terms of 'Democratic Upsurge'. 1st Democratic Upsurge took place in 1960s which has resulted into the OBC factor of Indian Politics. The 2nd democratic upsurge took place in 1990s. Symbolised by the rise of Dalits represented by BSP. 1st Democratic Upsurge & 2nd Democratic Upsurge is responsible for the decline of congress. Today the prominent politics is b/w OBC's & Dalits like Rajni Kothari he also looks at the increasing role of caste as the natural outcome of deepening of democracy in India

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Christophe Jeffrelot - has interpreted the politics of state formation in India with the politics of caste. The linguistic reorganisation was the result of the caste politics. Different castes wanted to consolidate their position Eg. As a result of linguistic reorganisation Marathha's became Dominant caste in Maharashtra, Vokkaliga's & Lingayats became dominant caste in Karnataka, Reddy's & kamma's became dominant in Tamilnadu A.P. Every regional party is actually a caste party. There is a greater role of caste at a state level. Democratic upsurge is one of the factor for the decline of congress & the emergence of coalition politics at union level. Coalition politics represent the increasing role of caste.

Plebinisation- participation of common people in democracy

Democratic upsurge - Democracy is becoming weak. (Yogendra Yadav)

Pursuit of Laxmi - Book →

MAJGAR
AJGAR
KHAM - Khshatriya / Harijan / Adivasi / Muslims.

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Lecture 62
02/03/2017

Consequence of caste & Politics -
According to some scholars like Andre Beteille, Pratap bhanu Mehta, CP Bhambri bringing caste in politics has not been in the long term interest of country. Because it promotes seperatist trend it also leads to populist policies on the other hand, scholars like Rajni kothari, Yogendra Yadav look at caste in terms of deepening of democraky & democratic upsurge.

REGIONALISM IN INDIAN POLITICS

- Integrationist tendencies and regional aspirations.

What is Region?
What is Regionalism?
Nature of Politics.
Is regionalism a threat or opportunity or challenge?
Types of Regional Movements in India.
Record of GOI in handling regional movement.
Approach of GOI to deal with regional challenges.

- Introduction -

According to Paul Brass, Regionalism has been the long term trend of Indian politics whereas nationalism is a temporary phenomena.

According to Prof Yogendra Yadav, In India what is more relevant is not the category of nation state but the 'category of state Nation'.

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According to Sanjiv Baruah, the identity of our existence as a nation is very new in comparison to our identity of the member of a particular cultural religious or linguistic group. It is natural for sub continental size polity and a new nation like India.

What is a region?

Region is a Geographical concept by which different regions are demarcated on the basis of tropographical features, climate etc.

However, in politics region is not just a territorial unit It gets combined with other expressions like language culture, religion. Eg. Regionalism in Kashmir & Punjab has been based on religion, Regionalism in Tamilnadu has been based on language. Regional movements can be considered as sub-national movements. Hence, there is always a potential that sub-national movement gets transformed into the movement for 'national self determination' or movement for seperate statehood. There is a greater fear of successionists challenges in peripheral regions. whether movement will sustain for long & whether it will grow into a successionist challenge depends upon the leadership, availability of resources, role of external powers. In a situation where a particular ethnic group is concentrated in a particular territorial space there is a greater possibility of demand for seperate statehood as happened in case of Sri lanka.

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Regionalism & Regional movements are not unique to India. they are also not unique to the post colonial world though almost all the countries in post colonial world face regional movement as a colonial legacy.

→ In western countries also regional & seperatist movemen exist Eg. Movement for seperation of Scotland from UK Catalonia & Basque region from Spain, Qubec in Canada. According to Sanjiv Baruah there is a qualitative difference in the way govts. in the western world tackle these challenges. One of the common method adopted in the western world is putting the issue for referendum. However, referendum is unthinkable in the post colonial countries. though India is democracy & china is authoritarian, yet in both the countries coercive force has been applied to check regionalism.

What is a constitutional provision to deal with the regional aspirations?

though there are examples where GOI has to use 'coercive states Apparates' but at the same time there are many examples where democratic handling has also been done. According to Atul kohli, whether state will go for dealing with these challenges in a democratic manner, it depends on the choice of leadership as well as the stetes of ruling party at centre. He gives the example of Pandit Nehru dealing with the linguistic challenge specially from Tamil Nationalism.

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Pandit Nehru could deal the challenge from the position of strength. Because he enjoy consensus. Pandit Nehru have also consciously adopted democratic method. on the other hand Indira Gandhi had to rely more on force in dealing with challenges in Punjab. Because she suffered from the sense of insecurity.

→ Indian constitution provides enough scope for managing regional aspirations within the framework of the constitution. If secularism was adopted to manage communal challenges federalism was adopted to manage regional challenge. the unique features of Indian federalism.

(I) (i) Federalism with a strong centre.
(ii) Emergency powers of the Union.
(iii) Discretionary powers of Governors.
(iv) The distribution of financial Resources.

All have been in keeping with the view to address the seperatist trend. In the words of Paul Brass Indian constitution is not the product of optimism as expressed in Pandit Nehru's speech of Tryst with destiny, it was actually the product of fear, which emerged because of partition & communal violence.

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② Asymetrical Federalism-

Constitution provides scope for different states to pursue different policies in accordance to customs & traditions.

It has provided 6th schedule, Art. 370 as wellas special provisions w.r.t. various states.

Introduction of 73th & 74th C.A. Act is also guided by the motive to guide the demand for seperate/smaller states.

According to Atul Kohli, most of the regional movement in India have followed the lifecycle which can be presented through 'inverted U curve'

According to Atul Kohli, there is no formal policy of GOI in dealing with regional challenges. However we can discern following trend:

(i) Govt. is ready to negotiate but negotiation has to be within the framework of the constitution not outside.

(ii) No compromise with territorial integrity.

(iii) Govt. is more sensitive if demand has religious overtones. Govt. will not offer any concession. If demand is expressed in linguistic & not in religious term greater scope for accomodation.

(iv) Govt. is ready to talk subject to the condition other party leaves the use of force. If the other party will use force Govt. will retaliate with much greater force.

(v) Govt. is ready for political devolution & economic packages.

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Types of Regional Movements in India-

There has been a varieties of Regional movements.

(i) Successionists movement - Eg. khalistan, kashmir, ULFA, NAGAS movement, MIZOS

(ii) Movement for seperate state within India.
Eg. Gurkhaland, Bodoland, Telangana Movement.

(iii) Movements for greater Autonomy.

(iv) Bhumiputra Movement. Eg.
movement by Shivsena, MNS, Assam Gana Parishad.

Explanation or Causes of Regional Movements in India.

(i) Modernisation of Theory.
Scholar- Rudolph & Rudolph.
Introduction of Democracy in traditional or prismatic societies where elites go for mobilisation on the basis of Identity.

(ii) Culture of Scarcity
Movement in Telangana, many states of North East is linked to the culture of poverty. (also Vidarbha).
Scholar- Marc Jurgensmear.

(iii) Culture of Affluence.
Scholar- Thomas Januzzi
Eg. Punjab.

(iv) Uneven Developement.
Scholar- Robert Hardgrave
Eg. TN, UK, JK

(v) Son of Soil Theory-
Eg. Bhumiputra movement
Scholar- Myron Weinar

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Politics of opposition -
Scholar - Iqbal Narayan.

Is Regionalism bad?
In a country like India Regionalism is unavoidable. The problem is not on regionalism but how regionalism is handled. Regionalism can also result in to the development of neglected a region. Regionalism also reflect the deepening of Democracy. Regionalism should not be seen as crisis of Nationalism. It should be seen as crisis of developement. Regionalism when goes beyond the interest of the nation & is pursued at the cost of nation in that case regionalism is a challenge.

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ETHNICITY IN INDIAN POLITICS

Defining Ethnicity in Indian context.
Nature of Ethnic politics.
Cause of Ethnic Politics,
Solution of Ethnic Politics

According to Donald Horowitz, untill recently the field of Ethnic conflicts has been in backwaters in social science research. It has started attracting the attention since the end of cold war. According to Horowitz, Ethnicity is a term which designates a sense of collective belonging which could be based on common discent language, History, Culture, Race or Religion. D

Differe
Difference Between Ethnicity and Nation.

Ethnicity plus Statehood together constitute a Nation. there may be many ethnic communities without the nation of their own. the classic example is of Kurds in Middle East.

Defining Ethnicity in Indian Context -

James Manor in his book 'Ethnicity & politics in India' has highlighted the two aspects -

(i) It is difficult to determine ethnicity in Indian context there are atleast 4 ways in which we can mention Ethnic movement. Eg. caste, Religion, language & Race.

(ii) Whether Ethnicity is threat to India

Unlike Ugoslavia or former USSR Ethnicity is not threat to India because Indians have overlapping identities. Different basis of ethnicity cut across each other.

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Indians choose ethnicity according to the circumstances. This prevents everlasting fault lines.

Views of S.D. Muni-
India has complex & colourful mosaic. Indians do not have single identity rather they have multi layered identity.

Causes of Ethnic Politics in India -
Rajni Kothari,
Ethnic upsurges & assertions of cultures are the consequences of excessive modernisation & homogenising trend of modern state. It is a response against the excesses of Modernisation project.

Heera Chandoke,
Ethnic identities are not given, ethnic identities are consequences of the type of politics that has been pursued in the subcontinent. In recent time it is a consequence of Globalisation.

Kanchan Chandra,
In her book 'why ethnic parties succeed', she has suggested that the politics of patronage based on ethnic headcount forms the primary factors.

Charles Taylor.
In his book multiculturalism & politics of recognition links ethnic politics with the demand for dignity & justice.

Sarkaria Commission report, 1988 describe sub nationa movements are not just purely ethnic movement rather there is a blend of eco. & pol. deprivations.

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Paul Brass

In his book 'Ethnic groups & the State talks about the struggle at 3 levels.

(i) Struggle within groups.
(ii) Competition b/w ethnic groups
(iii) Competition b/w ethnic groups & the state.

Solutions of Ethnicity-

(i) According to Sarkaria & Punchhi commission, Democratic Decentralisation is the best way to adress Secessionist trend.

(ii) Atul Kohli in his article 'can democracies accomodates ethnic movements' suggest that democracy is a cause of problem as well as part of the solution.
Introduction of Democracy in prismatic societies create sense of insecurity among traditional elites who go for mobilisation on the basis of ethnic identity to ensure their privileged position. However, only democracy offers the solution. He appreciates the way Pandit Nehru has tackled Linguistic Nationalism. According to him, India has lot of Democracy but not right type of Democracy. We need not less Democracy but more democracy.

(iii) Ashutosh Varshney
In his article - ' Ethnic Conflict & Civic Life' suggest the necessity of vigorous civic engagement among different ethnic groups.

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PARTY SYSTEM

Lecture 63

03|03|2017

Nature of Party system in India & How party system has evolved?

How party system shapes federalism?

What was congress system & what is the reason for decline of congress

What is the cause of decline of left?

~~How~~ What is the cause of rise of right?

AAP Phenomena of Indian politics.

Regionalisation of Indian Party System & Role of Regional parties on Indian Politics?

Patterns of coalition politics in India.

Pressure Groups

Electoral Behaviour

Changing social & economic profile of parliamentarians ~~and~~ Or legislators.

The study of political parties is known as statistiology. Political Parties are essential components of Representative Democracy in general & parliamentary form of govt in particular. There has been lack of consensus over the role of political parties. On one hand scholars like Laski suggest democracy cannot be conceded without political parties because political parties not only form govt, offer opposition, create

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public opinion, act: as a source of political educa° and modernisation. On the other hand leaders like George Washington were critical of parties Because parties go for/promote fractionalism & are threat to National unity. Similarly Gandhi, M.N. Roy & J. Prakash Narayan wanted Party less Democracy.

- **Party System -**

Party system does not depend on no. of parties but no. of parties having systemic relevance. Eg. India have multiple parties even at the time of independence but till 4th General Election in 1967 Indian Party System used to be known as one party dominant system/ congress system.

- **Distinctive Features of Indian Parties -**

According to Rajni Kothari, Political Parties in India have some western features as well as some non-western features. Non-western features include, lack of internal democracy & lack of seperation between party and Government.

→ According to Zoya Hassan, political parties in India reflect many unusual features. Eg. (i) No concern for ideology, they are all 'catch all parties'

(ii) Political Parties are disconnected with the people but have growing nexus with the corporate class. The loss of left parties in West Bengal is an example where left have supported the corporate class rather than its own social base.

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(iii) Some parties have unique Nomenclature Eg: AIADMK, National conference

(iv) Non of the party has any grand political design. All parties have some agenda.

→ Paul Brass has explained following paradoxical feature

(i) They blamed modern as well as traditional features. In terms of organisation, they are organised on modern Bureaucratic principle. But in practice they work on indegenous political practices based on families & Dynasties.

(ii) Parties themselves are product of modernisation but they go for traditional basis of political mobilisation based on identity politics.

(iii) Political Parties are vital for democracy in India. But they themselves lack internal democracy.

→ According to Prof. Yogendra Yadav (1) Political Parties in India are going through the process of institutionalisation & deinstitutionalisation. Their capacity to influence & their reach is expanding but the depth & intensity of followers is weakening.

(2) The role of Political Parties have been reduced to the instrumental act of voting & capturing political office and they have abandoned the agenda of Nation building all together.

AIADMK - All India Anna Dravida Munnetra Kazhagam

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Evolution of Party System In India -

Phase I - uptill 1967

This phase is known as the phase of one party dominant system, In the words of Morris Jones. One party Dominant system differs from one party system as found in socialist countries. In socialist countries. one party & one ideology exist & but in one party dominant system many parties can exist with diff. erent ideologies. But other parties will not have any relevance.

Prof Rajni Kothari called Indian Party system during this phase as congress system.

What are the characteristic features of Congress system

Congress was the Hegemonic party, a rainbow coalition or Grand Coalition. Congress enjoyed Hegemonic status because of its loan (role) in national movement & because of its ideology which could accomodate different sections into a strategic alliance.

Rajni Kothari calls congress as 'Party of consensus'

He calls other parties as 'Parties of Pressure'

What is parties of Pressure?

With the exception of communist party in Kerala, other parties were not in a position to form the govt. even at the state level. Hence their status was like pressure groups.

In the words of Rajni Kothari they were working on the margins which means their presence was marginal or peripheral.

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Even the main opposition to the govt. policies came from within the congress rather than from outside. However, according to him still presence of opposition party ensured that congress system remains democratic & does not become authoritarian he gives following reasons for the congress system.

(i) legacy of National Movement.
(ii) Contribution of Gandhi who made congress a mass party with organisational base at the grass root lev
(iii) congress maintained centrist agenda & has rejected communism as well as communalism.
(iv) Contribution of P. Nehru -
(a) Nehru maintained Democratic intellectual climate within the congress.
(b) Nehru Promoted freedom of speech & Expression within the party & culture of toleration.
(c) Nehru promoted culture of accomodation & consensus
(d) Nehru could neutralise social cleavages.
(e) Nehru has shown sensitivity towards minority.

The most important achievement of Nehru was that he could convince ~~that~~ people that congress is critical for survival of India as Nation.

Congress system maintained its democratic character because of :-

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(i) Nehru's commitment towards democracy
(ii) The role of Election Commission.

Phase II - Breakdown of congress system.

Breakdown of congress system started with 4th General election in 1967 as non-congress govts. were formed in 8 states and in the 9th state congress could form the govt only by forming the coalition.

- Suhas Palashikar has provided the chronological and analytical account of the decline of congress.

According to Palashikar the results of 2014, elections do not show the decline of congress but demise of congress. The worst performance ever. Even Congress got more no. of seats in the elections after Emergency. He gives 3 phases in the life of congress.

(i) Phase of Hegemony
(ii) Phase of confrontation
(iii) Phase of survival.

(i) Phase of Hegemony (till 1967)
same as Rajni Kothari

(ii) Phase of confrontation (From 1967 till 1989)
congress suffered following challenges:

(a) Internal challenges.
- Centralisation of power in the hands of one person or family.
- lack of Intra-party democracy.
Internal elections have not taken place since 1972.

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- In order to gain position one has to be the loyalist.
- Congress lost touch with the grass root leaders.
- Congress not open to internal criticism or dissent.

(b) External challenges.

- Nehruvian consensus has not eliminated but only postponed the competition.
- 1st Democratic upsurge as a result of Green Revolution and Linguistic re-organisation. Congress lost the support of OBCs which formed their own parties.
- By this time the failures of the promises of development started emerging.

Phase III - Phase of survival. (since 1989)

In 1984, congress got absolute majority but in 1989 congress could not get even simple majority to form the govt. by this time its organisational weaknesses became more apparent & competition became more pronounced. In 1990s, second Democratic upsurge took place by which majority of Dalits have also left congress.

2014 elections are considered as Demise of congress because congress even lost the so called congress states like MH, HR, DL. Not only congress social base is shrinking its territorial space is also shrinking. From the state of congress system, congress has reached to a situation where majority of the states have become non-congress states.

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Congress does not have soppost from upper caste, OBCs, SCs. Congress also does not have support from the younger generation. However congress soppost base has not changed w.r.t. support from minorities & STs. congress is identified as the party of minorities. & BJP has become the party of majority. Still 36% of the votes of minorities have gone to congress.

→ the major challenge of congress is:

(i) Ideological stagnation, organisational weakness, lack of leadership.

(ii) Congress lack committed cadres. which is available to other parties like BJP & regional parties.

According to Pratap Bhanu Mehta, congress should come out of majority-minority complex. politics is about imagination, crafting coalitions, making alliances. Congress need new social & economic agenda, new social coalition, congress should not remain as party of defense, it should be party of transformation.

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Phase II of Indian Party System-
Started from 1989 onwards. It is known as phase of multi party system or phase of coalition govt.

What do you understand by the regionalisation or fragmentation of Indian party system?
What are the causes & consequences of regionalisation & Fragmentation?
What do you understand by coalition politics? What are the unique features of India's coalition culture? Is coalition desirable for India?

What is Fragmentation?
Fragmentation denotes national parties facing defection & formation of new parties.
Regionalisation denotes the presence of regional parties at National level govt. & politics.
In case of India Fragmentation & Regionalisation are inter linked concepts.
Decline of congress has been due to the delnstitutionalisation of Democracy within the party. As power got concentrated in the hands of central leadership within the party left many regional leaders (satraps) which have been maintained within congress by Nehruvian consensus left the party & formed their regional parties. the process continued during the time of Rajiv Gandhi.

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Thus Indian Party System moved from one party dominant system to extremely polarised multi party system with the presence of regional parties.

Factors which gave rise to Regional Parties

E Shreedharan has given following reasons for the rise of regional parties:

(i) De-linking of the elections of Parliament & assemblies provided more space for local issues, local parties as well as greater scope of bargaining by Regional Parties.

(ii) Growing politicisation of social cleavages

(iii) The rise of intermediate caste because of state reorganisation, land reform & green revolution.

(iv) Suspension of democracy during the time of Ir. Gandhi.

(v) India's Federal Structure where state govts. deal with those issues which are related to the day to day life of the people.

(vi) Growing use of religion.

(vii) Social Heterogeneity getting reflected more & more.

According to Yogendra Yadav, Explained the rise of regional parties & the decline of congress through the concept of 'Democratic Upsurge'. Thus it is a natural process of the deepening of Democracy in India.

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What are the consequences of rise of Regional Parties

There are mixed consequences. As a positive consequence it made democracy more prepresentative the presence of Regional Parties at union level has strengthened the federal axis of Indian Political System. It has strengthened the bargaining power of the state. on the other hand some of the undesirable consequences have been coalition politics. Coalition politics has impacted political stability, resulted into policy paralysis increasing defection, increasing role of money & muscle power, increasing corroption, casteism, communalism, regionalism

not possible in presidential system.

What is coalition politics?

Coalition govt. is a feature of parliamentary form of govt. When no party is in a position to form the govt. on its own, they have to go for forming alliances or coalitions, according to Riker, coalition is 'power sharing arrangement'

History of Coalition Politics in India:

Coalition politics is not new to India congress itself was a grand coalition. Even Janata Party was also the coalition of Anti-congress fractions with little ideological coherence.

Coalition politics is more mature in India at the state level. Eg. KR, WB, than at the National level.

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At National level the formal beginning of coalition politics started in 1989 when congress which had absolute majority in 1984 election could not get even the simple majority require to form the govt. on its own. Between 1989 to 1999 India has seen the phase of political instability. From 1999 onwards coalition politics started becoming mature. Vajpayee lead NDA govt. was the 1st experiment of the successful completion of coalition. followed by UPA I & UPA II. Present govt. is also a coalition govt. though the core/main party has enough seats to form the govt. on its own. Though some scholars predict the era of coalition politics is over but it is too early to say considering 2014 elections not a normal elections but wave election. Coalition is inevitable in a democracy with such a huge diversity.

Unique Features of Indias coalition Culture

According to Prof. Vidyut Chakravarty, coalition culture in India if compared with western countries show many contrasting trends. Eg. coalition in western countries can be called as 'Coalition by design' whereas coalition in India is 'coaltion by political calculation still in search of design.

In western countries parties go for ideological coherence but in India there is a little regard for ideological coherence.

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In western countries coalitions have been formed to run the govt but in India negative coalitions have been formed with the sole objective of keeping someone out of power rather than running the govt. Eg. Janata Party coalition was anti- Indira coalition where socialists & rightiest combined together.

Since coalition is a power sharing arrangement political parties would like to have Minimum partners or in the words of Riker, 'Minimum Winning Coalition'. However, in India there are 'oversized coalitions because any faction may leave the party anytime.

There are some indian innovations also like National Agenda for Governance or Common minimum program

The coalition culture of India comes nearest to the coalition culture of Italy.

Is coalition desirable?

There have been many negative consequences of Coalition Politics in India Eg. Growth of money & muscle power, Growth of corruption, defection, decline of parliament, politicisation of post of speaker, weakening of institution of PM, Policy Paralysis, Judicial Activism, Presidential Activism.

Hence there has been the debate on the desirability of coalition politics.

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There have been suggestions that to avoid political instability. India should go for Presidential form of govt.

The real question is not whether coalition is desirable or not rather 'Is coalition inevitable'. In case of country like India coalition is ~~not~~ inevitable. With the growth of democratic consciousness these are greater chances that coalition becomes a permanent feature. Hence, we have to think how to manage coalition & to minimise the evil consequences & to maximise the benefits. Coalition in itself is not bad coalition actually makes democracy representative deliberative & consociational. Coalition is the regular feature of the countries in the western Europe, Problem emerges when country lacks healthy parliamentary culture. We have to think how to make coalition work following suggestions can be given:

(i) Bringing ethics in politics
(ii) Reform anti-defection law
(iii) Electoral Reform
(iv) Check the use of money & muscle power.
(v) Impose intra party democracy.
(vi) Encourage Transparency in functioning of govt to reduce a scope of bargaining.
(vii) Institutionalise the practice of consultation with coalition partners.
(viii) Introduce constructive vote of no confidence as found in Germany.

Introduction of Presidential system is ~~not~~ neither possible nor desirable Because parliamentary system is declared as Basic structure & nowhere except in USA Presidential system could maintain its democratic character.

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In all countries of third world presidential system resulted into dictatorship.

RISE OF BJP

Q. Discuss the factors responsible for the rise of BJP. do you think that there is a significant change coming in the electoral behaviours of Indians?

History of BJP

BJP is a successor of Jana Sangh which was formed in 1951 by Shyama Prasad Mukherjee. other prominent leader was Dindayal Upadyay.

Objective of Jana sangh.

The founders of Janasangh knew that the cannot come to power hence the basic objective of Jana sangh was to oppose Nehruvian consensus. According to them Opposition is necessary in Democracy.

Bhartiy Jana Sangh could get only 3.1 % vote share in 1st General Elections in comparison to Jana sangh, left parties got 7% vote share. Jan Sangh's vote share jumped to 9.4 % in 4th General Election after death of Pandit Nehru. Jana Sangh formed the part of Janata Party govt. There was objections from the members of Janata Party over Jana Sangh's relations with RSS. Hence Jana Sangh came out of Janata Party took rebirth in the form of Bhartiya Janata Party.

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The prominent philosophical ideas on which Jana-sangh / BJP is based are.

(i) Cultural Nationalism

(ii) Gandhian socialism.

(iii) Integral Humanism - based on the values of sanatan Dharma. given by Pandit Dindayal upadyay. Integral Humanism is a philosophy which integrates mind soul and body. It also has cosmopolitan approach based on Indian values. According to them, India should adopt western science but not western way of life. They are inspired by the modernisation of Japan. They are critics of Nehruvian Modernisation. Western ideas are not the product of Indian History & Hence they do not have relevance in Indian context.

(iv) Hindutva. it denotes the idea of India as a Hindu Nation.

When BJP was formed the leaders have given the idea of Positive secularism. Positive Secularism means party is committed to protect the religious rights of all communities.

(v) National Integration.

- Rise of BJP

(i) In 1984 BJP got 2 seats & 7.4% vote share

(ii) In 1989 BJP got 88 seats & 11.56% vote share.

(iii) In 1991 BJP got 120 seats & 20.95% vote share.

(iv) In 1996 BJP got 161 seats & 20.30% vote share

(v) In 1998 NDA got 182 seats & 25% vote share

(vi) In 1999 NDA got 183 seats & 23.07% vote share.

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(vii) In 2004 NDA got 138 seats & 22.16% vote share.
(viii) In 2009 NDA got 116 seats & 18.80% vote share.
(ix) In 2014 NDA/BJP got 282 seats & 31.50% vote share.

- Explanation for the rise of BJP:

(i) The decline of congress
(ii) Failure of left
(iii) Organisational strength
(iv) Globalisation
(v) The rise of middle class
(vi) Nationalist Rhetoric
(vii) Growth of Ethnic Politics
(viii) Fear of Islamic Fundamentalism
(ix) Strong leadership
(x) Support from NRIs
(xi) Economic Policies ~~with~~ which matches with the philosophy of Globalisation
(xii) Support from foreign countries like USA, Japan.

- View of Christophe Jeffrelot.

According the sense of insecurity among Hindus because of congress policy of minority appeasement has brought Hindu voters to BJP as congress is concerned as party of minority.

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- Thomas Blom Hanson
  Book - The Safron wave.
- Views of Milan Vaishnev of Carnegi Foundation.
  It is not just a shift in public opinion but BJPs ability ~~to~~ to make strategic alliances. BJPs victory can be considered as a watershed in the Behaviour of Indian voters. It show that voters are not just voting for their caste, good economics & good governance is also the consideration.

Decline of left

According Rahul Bidwai, the author of " can India left ~~please~~ its Phoenix movement, suggest that the decline of left is a old story. From being the largest opposition party it has dwindled to the token presence in Indian Parliament. 2014 elections is the worst performance left got just 12 seats & vote share of 4.8% only 8% of landless labourers & only 5% from the working classes vote for the left the best performance of left was in 2004 ~~was~~ when they got 64 seats.

Left front is a collection of communist parties there is a confusion among communist parties as some believe in parliamentary politics & the other believe in revolution.

Left could not gain ground even during National movement. They kept on shifting their stand. L
Left parties

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→ Left parties suffer from following weaknesses:

(i) there is a lack of ideology which suits the ~~id~~ India of 21st century. They have nothing to attract the middl classes. It is paradoxical that in India they failed t communicate with the youth.

(ii) Left also lack leadership. Instead of Grassroot leaders they are student leaders picked up from universities

(iii) Most of the leaders are from elite background.

(iv) Organisational weakness Eg. Democratic centralism & strict party hierarchy does not allow critical debate to understand the mistakes.

(v) Earlier congress has hijacked the left agenda of socialis now AAP has hijacked the agenda for empowerment of masses.

(vi) Left foreign policies outdated. Left has picked up the foreign policy left by the congress. In present times left is the greatest advocate of Non-alignment, anti-west, third world solidarity, pro-china, does not rea ch with India's aspiration.

(vii) Left in India has also played caste & religion card.

(viii) Globalisation has created foot loose labourers - flexible nent organisations cannot be formed with migrant labourers.

(ix) left has not focused on the politics of social movemen they just focus on winning elections.

(x) Left politics in west Bengal has shown the u turn. The sided with adverseries & used force on its ocon support base.

(xi) Left lacks confidence, they do not look themselves as independent force They prefer to be the junior partner of the 3rd front.

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(xi) There is a lack of unity in the left.

(xii) According to Prafull Bidwai left in India has still not come up with the real analysis of Indian society they still depends upon imported doctrines from the west.

(a) there is a lack of clear vision as to what left should aim for, there is lack of clarity what relations it should have with non-left parties.

(b) Left has remained a ~~too~~ aloof from the changing pulse of Indian politics. According to P. Bidwai. Left should leave electoral politics & go for transformational politics, it should start from where it has left.

- Third Front.

Third Front is a fluid category. Its composition keeps on changing it is an alliance of primarily regional parties. It lacks coherence. However, Third Front has a significant presence at the state level. They do have decent ~~dissent~~ vote share. They even formed govt. twice. the national Front Govt. in 1989 with support of BJP & United Front govt. in 1996 with support of congress and CPI-M & However third front could never provide stable govt. Third front itself is not stable. it emerges only before elections In 2008 third front formed United National Progressive Alliance @In 2014, 14 parties formed 3rd front as an alternative to corrupt congress & communal BJP.

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However third Front got dissolved in 24 hrs.
Problems:
Too many leaders.
Too parochial in approach (regional)
Lack Nationalist agenda (opportunism)

Lecture 65
06/03/2017

Aam Aadmi Party (AAP).

AAP is considered as By product of Globalisation.
AAP phenomena is not unique for Indian Politics, similar type of movements have been found in other countries also like Syriza Party in Greece, Workers Party in Brazil, Tehreek-i-Insaf in Pakistan, Peoples movement in Hongkong.

What is the linkage with Globalisation?

(i) Globalisation has increased social & Economic Inequalities.
(ii) Globalisation has increased urbanisation.
(iii) Globalisation has also increased the magnitude of corruption.
(iv) It has increased democratic consciousness.
(v) There is a assertion by urban middle classes as well as poors to have more transparent & equitable growth.

AAP emerged out of Anti-corruption movement.
AAP came into existence in 2012. AAP has been able to form the govt in National Capital Territory. AAP ideology is Anti-politics & anti-ideology, anti-caste, anti-religion
The aim of AAP is not to gain power but to gain power to correct the system.

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It has realised that without entering the system it is not possible to change the system. AAP believes in Swaraj or Grass root democracy. AAP believes in bottom up approach & rejects high command culture. AAP stands for Intra-party democracy, members have Right to recall the members of executive council, no two members of the same family will contest election nor will join executive council. AAP wants to focus on developements & aims to take Indian politics away from caste & religion.

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PRESSURE GROUPS / INTEREST GROUPS

Pressure Groups are known as 'Invisible Empires'. Why?

Pressure Groups or Interest Groups do not join the formal offices, they remain outside but control lot of power in their hands.

Pressure Groups are integral components of pluralist democracy ie. why democracies recognise freedom to form associations. Pressure Groups perform the task of 'Interest Articulation'. USA has the tradition of strong Pressure Group Politics because Political Parties in USA do not differ significantly in terms of ideology. In USA ~~lobby is~~ lobbing is legal. India is not an example of strong Pressure Group Politics. In India lobbing is not legally permissible.

Pressure Group politics in India has been changing. Rajni Kothari has analysed the nature of Pressure Group politics which is more appropriate to determine the politics till 1990s.

(i) There has been the domination of communal Pressure groups based on caste & religion.

(ii) Pressure Groups do not enjoy lot of legitimacy in the eyes of the people.

(iii) Pressure Groups have acted as reservoirs of leadership & agents of modernisation. Are

(iv) Pressure Groups have been junior partners of Political parties.

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Prof. Anand Chakravarti has suggested that govt. of India has not given enough space to the Pressure Groups. Many such associations which have disagreement with the Govt have been banned under ULPA (Unlawful Activities Preven' Act) If govt had given more space & has shown more accomodation it could have been much easier to deal with the Alienation & insurgencies.

Myron Weinar in his book 'Politics of Scarcity', Rudolph & Rudolph in their book 'Pursuit of Lakshmi' have analysed the role of community based political associations (PG). Christophe Jeffrelot has analysed the role of RSS in Indian Politics

The nature of Pressure Group politics is changing. Robert Hardgrave & Stanley Kochanek have analysed Pressure group politics since 1990s.

(i) Pressure Group Politics has become more prominent since 1990s.

(ii) There has been entries in the influence of corporate groups.

(iii) There has been increased influence or presence of foreign lobbies & advocacy groups in India.

(iv) Govt of India has incorporated many such associations into public policy making institutions like NAC (National Advisory Council) under UPA & NITI Aayog at present.

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(v) Now corporate groups also have space in India's foreign relations. Parallel (Business) summits are organised along with political summits.

(vi) The dominance of communal organisations remained intact.

(vii) Student unions & trade unions continue to be aligned with the political parties.

Women organisations, Environmentalists still do not form influential Pressure Groups.

More than poor peasants, rich farmers shape Govts. policy.

According to Robert Hardgrave, & Stanley Kochanek, India has moved away from 'State Dominated pluralism' to more powerful Pressure Group Politics.

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Changing Socio-Economic profile of legislators.

What is the advantage of studying of profile?

(i) Parliament is the mirror of society.
When we study profile we can understand the nature of our society

(ii) Studying profile also helps in understanding the direction of the political developement/change.

Profile of Parliamentarians in India.

It is to be noted that the profile of Parliamentarians & the members of state legislature do not differ in any significant manner. Similarly the profile of members of LS & that of RS do not differ
In case of India. It is believed that upper House represent the assembly of elders. It is said that lower house represent Peter Drunk & upper house represent Peter Sober.

Shanker & Rodriques in their study on Indian Parliament has classified the evolution of Indian Parliament in 8 phases on the basis of profile of parliamentarians.

(1) Phase I - upto 1967
(i) Parliament was dominated by Brahmins.
(ii) Women minorities & OBCs were under represented
(iii) In terms of Profession lawyers formed the biggest group & the 2nd group was of agriculturialists.
(iv) Most of the members were educated from foreign universities including the members from scheduled caste communities.

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② Phase II- From 1967 till 1990s.

This zone is known as the transitional zone of Indian Politics. Green Revolution & state re-organisation has resulted into first democratic upsurge.

Now OBCs came to dominate Indian Parliament, largest no. of members come from Agrarian Background & the 2nd largest no. came from social work

During this phase we see the trend of more youth joining politics because of JP Movement & Sanjay Gandhi who started youth congress. Since, youth joined politics at the time of carrier making, politics became full time career.

Nothing changed w.r.t the representation of women which has stagnated around 8% & representation of minorities. this show that if constitution has not provided reservation for members of SC & ST communities it would not have been possible to increase their no.

③ Phase III- 1990s onwards

plebianisation → common people / ordinary

this phase is known as the phase of plebianisation of Indian Democracy as a result of 1st & 2nd Democratic upsurge. In 1990s also the domination of OBCs remained intact, majority of the parliamentarians come from Agrarian & social Service Background. Profile has not changed much in terms of the members of minorities as well as w.r.t women.

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Women reservation is no where near the in the percentage in Population. They show that India's Democracy is not inclusive if we talk about minorities & women.

→ Profile of Parliamentarians in 16th Loksabha,

So far the most educated LS, 75% are graduates. 42% are Post Graduates, 17% are non matric.

In terms of Age most of the MPs are over 55 years 58% are first timers, in terms of profession 27% are from Agricultural background, 24% social workers, 20% have business background.

Present LS also has largest no. of persons with criminal background. 16% of MPs are accused of Heinous crimes like murder & rape.

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Electoral Behaviour of People in India -

Electoral Behaviour studies have been the major area of research among the behavioural political scientists. Such studies help political parties to shape their policies. According to Milan Vaishnav of Carnegi Foundation it is extremely difficult task to study the voting behaviour of Indians because of the size & diversity. Kenneth Arrow, has given impossibility theorem this suggest that it is difficult to determine preferences when consumer/voter has more than 3 choices.

Mukulika Banerjee has conducted Ethnographic survey to understand the voting behaviour of Indians. Her studies are presented in her book 'why India votes' one of the basic question of the research was why people in India bother to vote & specially poors when such a massive voting does not bring any qualitative change in governance. The results of the research show following observations:

Different people vote for different reasons: In general people vote because power inversion takes place. It is the only day when people think that power has shifted from the hands of politicians into their hands. → Some people vote because they think that it is better to choose & dismiss the person who governs them. → Some vote because they think that it is a way of taking revenge.

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Some vote because of Election Commission. They feel that EC is doing great job

Some votes because of members of their caste & community is standing.

Some vote because of it is assertion of their citizenship rights.

English Educated middle class vote as a duty towards nation. they consider themselves as responsible voters & if they will not vote the entire edifies of Democracy in India will collapse.

More than rich, poors are strategic voters., they have more sophisticated understanding of politics. They are the one who deal with govts programmes. They understand the value of their vote. Poors have admitted that they take money & liquor but it does not impact their choice.

- Assessment of Indian Voters.

Prannoy Roy, David Butler & Ashok Lahiri in their book 'India Decides' suggest that the voting behaviour of Indians is many times more mature than the voting behaviour of pople in western countries.

According to Prof. M.P. Singh, the credit for success of India's Democracy go to the extra ordinary commonsense reflected by the ordinary voters in India. There is not a single election where voters have not taken the right decision.

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∴ Lokniti apart of CSDS (Centre for Study of Developing Societies) conduct surveys on regular basis Surveys of electoral behaviour specially of 2014 election fshow following trend:

(i) caste & Religion remains the major determinant.
(ii) No difference in the voting behaviour of urban & rural men & women.
(iii) Corruption is not a major issue.
(iv) Welfare policies also do not impact.
(v) Anti-incumbancy factor is also not a determinant.

According to Yogendra Yadav voters in India are moving towards identity plus politics. Identity remains important but they are also looking for governance related issues.

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* FEDERALISM *

- Constitutional provision
- Changing nature of centre-state relation
- Inter-state disputes

Q. Analyse the nature of Indian Federalism

Q. Do you think we are moving from co-op. federalism to competitive co-op federalism

Q. Discuss the areas of dispute in centre-state legislative, administrative and financial

Q. Discuss the changing trend of Indian federalism because of globalisation and changing party system

Q. Do you think article 3 of Indian constitution is non federal future. Substantiate your views

Q. Discuss the politics of state formation in India.

Q. Do you support smaller state.

Q. Why the post of governor remains controversial. Discuss prominent judgements of SC w.r.t institution of governor.

Q. Write short note on zonal council and their relevance

Q. Short note on interstate council and —"—

Q. Critically examine working of tribunal system w.r.t resolution of water dispute with the help of atleast 2 case studies. one from North Indian and other from southern

Q. Without altering the basic structure of const suggest reforms in the centre-state relations to meet aspirations of Indians in 21st century.

Q. Write / shortnote on Niti Aayog

Q. —"— Finance commission

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The term federation comes from Latin world Foedus which means contract. Federation is government by contract. U.S. is the 1st federation. Federation is described by taking USA as reference point. USA is known as coming together mode where India is known as folding together. In USA diff^n state combine to form federal govt. Constitution is contract document. Constitution determine power & functions of 2 diff^n govt. To ensure that they don't encroach in each others sphere, their exist and independent judiciary. Thus 3 essential component of Federation include written const., division of power and function, independent judiciary.

Division of power does not mean delegation/devolution of power. The source of power of subnational government is the constitutional itself unlike unitary form of govt where source of power is centre. Subnational govt. of have original source of power. They are not subordinate to national govt they are full fledged govt in their own context. Hence, federalism is also known as dual governance. Person is under 2 sets of government. Federation differs from confederation as in federation unit lose ~~their~~ their external sovereignty. Hence, in all federation in India division of power does not apply w.r.t international treaty and convention. Art 253 as differentiated by US SC. Federation is indestructible union.

*Unique ~~facilit~~ features of Indian federation:

Indian federation is known as co-operative federation.

What is co-operative federation?

To understand co-op federat^n

What is dual federation?

US Federation is a dual federation. The 2 sets of government have independent status they are 2 water tight compartments.

What is co-operative federalism?

If dual federalism is based an concept of independence. Co-op federalism is based on interdependence.

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Co-ope

7-March

Co-operative federalism is based on interlacking, interdependence and overlapping concepts. Union and state are not water tight compartment. Centre is dependant on state and state is dependent on centre. Union govt. is act as elder brother. Co-op federalism is adapted where

1) Sessionist trend exists.
2) Regional imbalance exists.

2) If USA is coming together model, India is holding together model. State came together to form federation in USA & in case of India, highly centralised system of adm. has been converted into federal model for

1] Administrative convenience
2] To meet regional aspiration.

3) USA is an example of symmetrical ~~e~~ federalism and India is an example of asymmetrical federation.

4) USA is known as centrifugal model because flow of power is towards the periphery of state. India is known as centripetal model because flow of power is towards the centre.

5) USA is known as legislative federalism as residuary power lies with state govt. whereas India is known as executive model because union govt. is dependent of state govt for implementation of its laws and policies.

Q. To what extent it is appropriate to call India quasi-federal?

K.C. Wheare called India quasi-federal. According to K.C. Wheare Indian constitution is federal in form but unitary in spirit. Indian constitution has prominent unitary feature and subsidary federal feature. Arguments ~~to~~ which suggests that India is quasi-federal:

1) Division of power is tilted towards union
2) Residuary power lies with union government.
3) Emergency power
4) Art 3
5) All India Services
6) Integrated judiciary
7) Governor appointed and removed by ~~central~~ Union
8) Single citizenship
9) Finance commission
10) CEC
11) CAG

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Despite above argument it is wrong to say that India is quasi-federal. According to Granvile Austin, there is no ward known as quasi-federal. Constitutions are either federal or unitary. K.C. Wheare's understanding of Indian federalism is based on wrong approach.

What are problems in K.C. Wheare approach?

1) His approach is ethnocentric. He treats US model as an ideal type and evaluate Indian model on the basis of US model.
2) His approach is legalistic and static. Federalism is a dynamic concept. There can be big difference in text and context. Neither Indian federation nor US federation is static. Over the period of time balance of power in USA has shifted towards federal govt. Formal US president Roosewelt coined the term 'new federalism'

Following factors has led to increase in power of USA federalism.

1) American civil war
2) Increasing role of USA in international politics
3) Doctrine of implied power applied by US ~~security force~~. SC.
4) US government adopting welfare approach.

Similarly since the breakdown of congress system there has been gradual increase in powers of state governments in India. The bargaining power of state govt has increased further since coalition politics has became the regular feature of Indian political system.

Every federation is unique. Every federation is shaped according to its requirement. Indian experiment is based on Indian need. India model is sue-generis.

According to SC, federalism form integral feature of doctrine of basic structure (SR Bommai case). Indian constitution fulfills all the 3 basic requirement of federalism.

1) Written constitution
2) Division of power
3) Independent Judiciary

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In India :

Q. Discuss how party system influence nature of federalism.

Conceptual framework : Ideally federalism works well with presidential form of govt and parliamentary form of govt stop functioning of federalism.

Parliamentary system is based on party politics, whereas presidential system ~~found~~ was found as an alternative system of parliamentary system / party politics. (No party politics in Presidential system)

Party system shapes the working of federation

- Situation 1: Same party act at union level and at the state level. Federation will work as co-op federalism.
- Situation 2: Different parties at union and state level. Federalism transform into bargaining federalism.
- Thus co-operative and bargaining federalism may exist simultaneously.

In case of India, there is actually no centre & state dispute, it is all party to party dispute. Hence none of the commission has ever suggested any fundamental change in basic design of centre & state relation.

Evolution of federalism with evolution of party system :

Stage-I : Party system = One party dominant system (till 1967)

co-op federalism was working smoothly

Stage-II : (1967-1989)

Breakdown of congress system and rise of regional parties

No The states where non-congress government existing union adopted bargaining technique to institution of governor, planning commission and frequent misuse of art 3

Stage-III - (1989 onwards)

Fragmentation of national parties and regionalization of party system

Coalition govt. has increased the bargaining power of state govt.

Flow of power from centre towards state.

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Q. Discuss dynamic, nature of Indian federalism and roles of various factor shaping Indian federalism.

Political system do not operate in vacuum they operate in an environment. They influence environment and get influenced. The functioning of federal system has been impacted by social economic, environment. There has also been role of external factors

What change is observed?

There has been the flow of power from centre towards the state govt as well as flow of power from state to union govt The dynamics is not operating in a single direction.

Factors bringing change

1) The most imp. factor has been changing ~~the~~ nature of party system. Coalition politics increase the bargaining power of state govt
2) Globalisation: Globalisation has impacted dynamics in diff^n ways
   i. Globalisation has resulted into change in economic policies based on LPG model. It has resulted into rolling back of state and intro. of public-private partnership. This reduces dependence of state govt on ~~union~~ union.
   ii. State govt can attract foreign investment which can also promote growth and infra. development
   iii) Structural adjustment ~~programme~~ programme require implementation of good governance. Good governance is not possible without administrative and financial devolution. Since state financial commission alternative devolution scheme have been introduced. There is continuous increase in share of state govt. in union taxes.
   iv) Expert bodies have consistently recommended a drastic reduction in centrally sponsored scheme & gives greater space for state government.
   v) For long, planning commission has been criticised for anti-federal and non-democratic character. Planning commission replaced with Niti Aayog Niti Aayog incorporate state in proactive role in policymaking

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Tax reform like GST also adds to power of state govt. with respect to imposition of service act

Globalisation has also increased powers of union government.

1) There are number of agreements on subject like agri which are core subject of state govt; but union gets an opportunity to dictate policies

2) Globalisation has also resulted into emergence of global security threats. The growth of transnational terrorism has led to in the establishment of NIA. NCTC is in pipeline

This permits union to encroach in the damain of state government

Present PM has given the vision of competitive, co-op. federalism based on the idea of सब का साथ सब का विकास.

Q. Do you think art 3 of Indian constitution is a non-federal feature of Indian constitution. Give arguments in support of your answer

Why art 3 is considered as non-federal feature?

The territorial integrity of states in India is not assured If USA is the indestructable union of indestructible state. India is indestructible union of destructible state.

If we think art 3 as a non-federal feature we are considering USA an ideal type- Every constitution is unique Indian federal system is based on India's unique history and Indias vision of its ~~feature~~ future.

US model:

US is known as coming together model In case of USA, states combine to form the federation However in case of India unitary form of govt- it has been converted into a federation for a administrative convenien.

It is to be noted that even princely states were under paramountcy

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Jerime

There was no sovereign entity existing at the time of formation of constitution. The flexibility with which internal map of India can be withdrawn show farsighted view of members of constituent assembly. Indian states and their boundaries based on conveniences of colonial administration. It was not based on aspiration of people in India. Linguistic reorganisation was one of the agenda of congress even before independence. Gandhi himself was in favour of linguistic reorganisation. the provincial committees of congress were based on linguistic line rather than territorial line Had arts not been there India would not have been able to survive the dangerous defeat. The internal map of country still remains unsettled. It has to be continuously organised to meet the genuine aspiration of people in India.

Q. Discuss the constitutional provision related to the state formation in India.

Q Discuss the politics of state formation in India.

Context: The internal map of India is being continuously change. even before independence congress has accepted linguistic basis of state reorganisation. However after independence. Pandit Nehru rejected demand for linguistic reorganisation

Q. Why Nehru rejected?

Louis Tillin in her book 'Remapping India remapping has analysed politics of state formation in India. State formation in India has never been a ~~straight~~ forward issue. Multiple calculation exist behind State formation in India. Process is too much shaped by interest of ruling party at the centre. Nehru opposed state formation because multi-lingual state were to act as showcases of Nehruvian vision of unity in diversity. Nehru was fearful of erruption of Inter-state dispute. Nehru was also fearful of future prospect of congress party. Louis Tillin has analysed the nature of state formation in India from diff^n perspective. She has classified the state formation in the form of 3 ways

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1)

Wave 1st: 1960s and 70s

First in the south and second in north. At that time official basis was linguistic reorganisation. It is tobe noted that state re-organisation commission the demand for creation of seperate state for Telangana. Nehru was concerned with interest of Congress party at Telangana was dominated by the communist

2nd Wave: 1980s and 1990s

Reorganisation on ethnic ground. In this wave reorganisation took place in N-E region. Even national security was factor shaping decision.

3rd wave:

The states in hindi beartland were reorganised on the ground of good governance and development. In the year 2000 Uttarakhand, Jharkhand and Chhattisgarh were formed. In 21st century main focus was on development. Even Telangana was created on the grounds of development.

Louis Tillin has summarised following perspective on state formation.

1) Sociological perspective: Sociological perspective is given by prof. Yagendra Yadav and Ramchandra Guha. They project state formation as the a reaction of a marginalised section of society who have been deprived of developmental gains wanted to create their own state. Pali

2) Political economy perspective: Atul Kohli. According to him creation of Chattisgarh and Jharkhand is guided by policy of liberalisation of and globalisation.

3) Administrative perspective: Former Home minister LK Advani and BSP leader Mayawati gives the logic of good governance.

4) Political perspective: Christophee Jaffrelot and Louis Tillin Both believe that only political calculations works. Even the timing of creation of state will depend on political calculation of ruling party

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Q.: Do you support the case for smaller state and should 2nd reorganisation commission be constituted?

It is a matter of debate

Arguments in favour of smaller states:

Mayawati, Advani, Ambedkar
Ramchandra Guha, Bibek Debroy

1) The most basic argument is good governance.
2) It will address the problem of lack of balanced regional development.
3) It will meet aspirations of people
4) It will establish federal balance.

Ambedkar held that north Indian state need to be organise in smaller state to address federal imbalance.

According to Bibek Debroy if we rationalise the no. of state and size of population India should have atleast 50 state. If we ~~stat~~ take example of UP in term of pop^n it will be 7th largest country in the world.

8-March

Assignment

National commission for woman

History, origin, act, composition, power, function,
critical evaluation,
Example of cases
Why it remains in controversy
suggestion for reforms.

EPW article - working of national commission of women.

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Arguments against smaller states

(Prof. M.P. Singh, Sudha Pai)

1) There is no relation between the size and good governance e.g. TN is a bigger state yet governed in a better way whereas Jharkhand is a smaller state; but poorly governed

2) No relation between size and development. Growth story of Punjab is over.

3) New ~~state~~ State means new ministerial post, new bureaucracy and unnecessary expenditure.

4) It will open the Pandora Box. The demands for smaller state will continue till each village becomes a state.

5) It will result into balkanisation of county and may threaten security.

6) Many new states are not economically viable, these state will be like UTs.

7) We have to seen consequences on the mother states

8) New state means new water disputes

9) Smaller states are politically unstable because defections are easy. Goa & Jharkhand has suffered from political stability.

* Road Ahead:

Since the ~~the~~ introduction of 73rd and 74th C.A. demand for smaller state carry limited relevance. There is no substitute to good governance and inclusive growth except democratic decentralisation. What is required is empowerment of these institution. There is no need to establish 2nd SRC. Govt may take up the case by case basis only ~~where~~ when there is genuine aspirations of people economic viability and no threat to national security case can be considered. The parameters suggested by SRC continues to be ~~re~~ relevant even at present.

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Q. Discuss the constitutional provisions with respect to resolution of water disputes.

Water is given in 1) State list entry 17: It deals with the use and consumption of water, Creation of system of irrigation, dams etc.

2) Water is also given in union list entry no 56. Union has powers w.r.t. regulation and development of interstate river and river valleys.

Most of the major rivers are interstate. Rivers are mobile resources unlike land, forest, minerals which are static.

Analysis of role of union:

Union has not played its expected role, It has preferred to treat water as if entirely a state subject. Union government has lot of scope to regulate interstate river and river valleys in the national interest. The purpose of keeping particular entry in union list is that issue must be looked from national perspective. So far union has gone for balancing competing interest of states and parties rather than treating water as strategic issue. In case of Australia union govt/federal govt. has adapted interstate river.

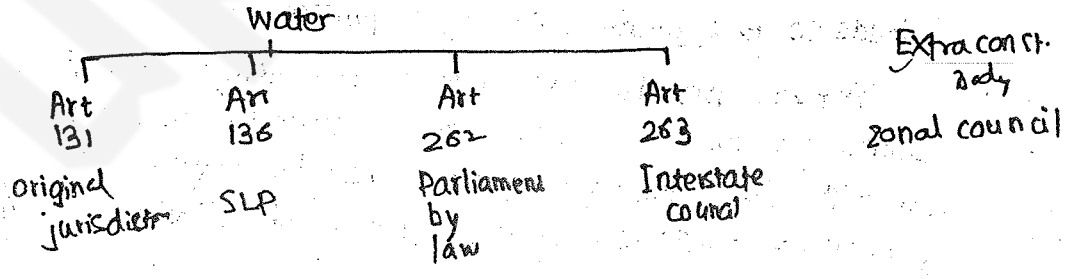
Constitutional mechanism to deal with water dispute.

Water is the only interstate dispute for which there is a special provision in constitution.

Significance of water

According to quote Ma by Mark Twin, "Whisky is to drink and water is to fight."

It is predicted that future wars will be water war.



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Art 131 the original jurisdiction of SC. SC is a federal court and its role is the resolution of dispute. It was the main body for the resolution of interstate water dispute till 1956.

What happened in 1956?

Parliament has passed 2 acts
1) Interstate water disputes act, 1956
2) River boards act, 1956

On what basis parliament enacted the law?

Under art 262 it is mentioned that parliament may by law make provision for the resolution of dispute. It also suggests that if parliament desire it can exclude jurisdiction of court including SC.

Parliament has enacted the law and excluded the jurisdiction of SC. However SC still entertains petition under special leave petition. Ideally SC should discourage the state. We can give example of US SC. In USA the only route available is original jurisdiction. Still SC in USA prefers to direct the state to bring out politicaly negotiated sol^n According to Fali Nariman, It is better to restore the pre 1956 system as lot of time and resources get wasted and still states approach to SC & SC entertain.

There are 2 schools of thought w.r.t. resolution of dispute.

1) Represented by H.M. Seervai ~~Sitwai~~ it is a misconception that political settlements will be more satisfactory.

2) Ramaswami Iyer. According to him adjudication is the unnecessary of dealing with such dispute. A negotiation of settlement is infinitely superior, Adjudication is divisive leads to exaggerate claims by all parties.

Art 263 provides for creation of interstate council. This mechanism would have been most preferred considering ease with which interstate council could be created. It just require presidential order Despite recommendation as well as Sarkaria commission, govt. has

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prolonged interstate council. It was created under V.P. Singh Govt. Even after creation platform has never been utilised

2) Zonal council: Created by state reorganisation act. One of the main agenda behind creation was resolution of water dispute. The then Home minister held that water rivers know no linguistic boundaries.

Uptil now not a single dispute has been handled.

River Board Act, 1956

Proactive approach to ensure that state become habitual of co-operation, river board ~~be~~ will be constituted for joint planning and development involving state sharing river basin under the leadership of union.

Q. Critically evaluate the working of tribunal system w.r.t interstate water dispute.

Salient features of interstate water dispute act

1) It gives list of dispute to be treated as water dispute under act. Many varieties of disputes are excluded.
e.g. In case Mulla-Periyar dam parties can directly approach to the SC. The act excludes the jurisdiction of SC and provides for the creation of tribunal.

Analysis of tribunal system:

1) In case there is a dispute, parties or party will approach to union government.
2) Initialy there was no time limit within which union govt will complete political negotiation and constitute tribunal Union govt. took extraordinary time to constitute tribunal
e.g. It took 20 years to constitute tribunal for Kaveri water and that to after intervention of SC. Hence since 2002 it has been made mandatory to constitute a tribunal within a year
Initialy there was no time limit within which, tribunal was to give award. e.g. Kaveri tribunal took 17 years to (am) give award. Its final award gave in 2007.

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In case of time of award amendment came in 2002 which held that tribunal has to give award in 3 years and an exceptional situation 5 years. 2002 amendment has plugged one loophole; but led left other loophole. Once award is given parties can seek clarification in specific time. However there is no timeframe within which tribunal has to come up with clarification. Act mandate that central govt should maintain a data bank for speedy action. No effort has been made to make data bank. Present govt. has announced that it will create a body with task of maintaining data rainfall, water availability. etc. Present govt. has also announced decision to constitute permanent tribunal and its benches to avoid unnecessary delay. Present govt has also announced resolution of dispute resolution committee to ~~avc~~ for political soln to avoid judicial process

* Composition of tribunal:

At present union govt. can ~~represent~~ request chief Justice of India. CJI can constitute tribunal comprising 3 judges One judge has to be one of SC. The other judges can be either from SC or HC. In the permanent tribunal which is proposed a retired judge of SC will be acting as a chairperson. Besides the 3 judges, tribunal also has to accessor to help judges in assessment.

Punchhi commission has recommended the intro. of multi-disciplinary tribunal comprising the members of civil society like social scientist, environmentalist, panchayat etc The award of tribunal is to be treated at par with decree or order of SC. and it is the duty of union government to get the award implemented. Tribunal has the power of civil court.

Earlier it was not clear whether tribunal can give interrim judgement. Now with the intervention of SC in case of Kavery water, it is clear that tribunal can give interim award. Whether it is an interim award or final award it becomes enforceable only with publication of award ~~with~~ in gazette.

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Is award subjected to Judicial review?

It is not subjected to judicial review; but SC can entertain the question w.r.t the working of tribunal.

What is the basis of SC judgement?

SC has supervisory jurisdiction over working of all tribunal and courts except army courts within territory of India. Recently in Dec 2016 on Kavery water issue SC held that it has unfettered power to hear appeal arising from the judgement of tribunal. It has clarified that the dispute only restrict SC from entertaining original complaint and suit on its own; but not its power to hear appeal against a tribunal judgement. As per above judgement now the awards also comes under the scope of judicial review.

What is the road ahead?

The amendments in the act present government are not enough because there is nothing to ensure the implementation. Either restore original jurisdiction of SC or govt should try to utilise platform of zonal or interstate council to arrive at politicaly negotiated soln. Tall

Talk dawn prescriptive, legalistic bureaucratic soln will not work. What is required is participatory democratic process involving all state holder any solution has to be taken keeping the water requirement of not only present generation; but also future generation; because we have to address problem from multiple perspective water for life, agri, industry and water for aquatic life. Solution has to be socialy, politicaly equitable and environmentaly just.

* Case study from south Indian state:

The Kaurey water issue is important because it has resulted into greater clarification w.r.t. different aspects of interstate water dispute act as well as the role of SC. Though act prohibits the role of SC; but SC had to intervene an number of occasion because of union govt to fulfill its statutory obligation. It show extraordinary delay in the constitution, award problems in implementation and still after 10 years in award it has not been possible to implement on ground.

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* Satlaj-Yamuna link canal

The problem started with state reorganisation in 1956 when Himachal Pradesh and Haryana were seperated. Haryana has been demanding share in water agreeing at the time of creation of state.

Tribunal have been constituted which has given its award. Haryana has also given advance payment to state of Punjab to construct link on its side.

In 2004, Punjab legislative assembly took an unpresident action terminating all agreement with all state. The matter has been refered to advisory jurisdiction of SC under art 143. In 2014, SC held that act is unconstitutional Present govt of Punjab has brought another act denatifying the land acquired for construction of canal. It has started returning land to original owners. It has also returned check to Haryana govt SC has asked Punjab govt to maintain the status quo. Neither ~~He~~ Punjab nor Karnataka is adhering to SC directives.

There are some examples where tribunal system has worked. It was possible because of tve role played by union govt.

Narmada: It could be solved because parties have first reached to soln then conctituted tribunal.

Krishna: Tribunal has to be constituted twice. The award of 1st was not accepted by any party. but the new problem has emerged because of creation of Telangana. Parties are MH, KR, AP, Telangana.

9-March

National commission for minorities
- History, speeches, objective

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There are other disputes also like territorial disputes for example dispute over Belgam betn MH & KR

Dispute over Abohar - Fazalika town betn Punjab & Haryana.

Dispute over Chandigarh

There are other varieties of disputes also like betn developed and BIMARU states.

Disputes betn producer and, manufacturing state & consumer state.

At times issues like resentment against immigrants.

doctrine of pit subser. & colourful legislatio.

UNION AND STATE RELATIONS

* Legislative relations
changing trend.

* Disputes betn centre and state in legislative sphere.

Constitutional scheme - it is tilted towards centre. Changing

Changing trend - original scheme tilted toward centre; but even there ha later an also there has been increase in power of union.

Pattern of distribution of power -

Given in 7th schedule

Union list: ~~Total number~~

Total number of entry: originally 97
present 101

State list

originally 66
present 61

concurrent list:

original 52 47
present 8752

Residuary power lies with union

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What are the concerns of state govt. in legislative sphere?

1) System is tilted in favour of centre.

2) Even an entries in the state list union can make laws even in normal situation.

(i) Art 249 (Rajya Sabha passes resoln. 2/3rd present & voting)

Thaugh there is a safeguard that it can be done only with resolution R.S. and validity of law will be for a limited yet the concerns of state governments is R.S. is hardly a federal chamber in real sense.

Permanent transfer

(ii) Art 252 (2 or more states passed resolution)

In this case the transfer of power w.r.t. these states is of permanent nature. Even states can not bring any amendment which can be done only by union. Hence if some party want to pursue another law or policy they can't do so.

(iii) Art 253:

Distribution of power & function shall will not apply in case of international treaties and conventions. Earlier it was not major concern because international treaties were limited to the strategic issues. Now they have expanded even to the issues which are core issues coming under state list. A problem arises when union govt. does not go for prior consultation before making such commitments.

(iv) Art 201:

Power of governar to reserve bill for consideration of president. Problem arises because such actions have been done in the interest of ruling party at the centre. There has been an arbitrary exercise of power. Similar bill of one state is reserve and other state is allowed. There is no time limit also within which pres has to give his assent and deny it.

* Observations by Sarkaria commission and Punchhi commission:

According to Punchhi & Sarkaria commission, there is no problem in provision of const. Hence, there is no need of amendment. Problem lies in the manner power is exercised. In democracy there should not be any arbitrary exercised power.

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Punchhi cammission has suggested maximum period of 6 month, within which president should take decision over bill.

* Centre and state administrative relations:

More confluctual than legislative relations - The major areas of disputes are

1) Unian's power to issue direction
2) Misuse of art 356
3) Institution of governar
4) All India Services
5) Deployment of union armed forces

* Problems with the power to issue direction:

Not only unians have power to issue dirn w.r.t exercise the executive power of state govt Unian also have power to punish state govt. in situation of ~~power~~ non-compliance

It will result into dissolution of not only govt; but also assembly.

Above provisions exists in constitution to manage extreme situation. It is expected that exercise of these power shall be in accordance to the spirit of federalism and parliamentary democracy.

* Cantroversy related to art 356

What is art 356?

Presidents rule

Nature of art 356

1) It is unique feature of Indian federation
2) It is colonial legacy

The position of constituent assembly

Members have raised observation over inclusion of art 356. Dr. B.R. Ambedkar has assured const assembly that above provision is introduced only as precaution and be expected that it will remain dead letter.

Actual practice:

It has not remained dead letter in less than 17 year of existence of republic it has been used for more than 100 times

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Manners of use:

There are numerous occasion when exercise of power under art 356 can be considered as arbitrary and in the interest of ruling party at union.

e.g. In 1977, when Janata Party came to power at union it has dissolved the legislative assemblies of 9 state ruled by congress in single row on the ground that congress has lost mandate.

When Indira Gandhi came to power in 1980 she has repeated act dissolving assembly in 9 states on similar ground.

What have been consequence of misuse of art 356?

It has not only undermined federal spirit of const. It has also undermined & threated national interest. It was one of the reason for growth of insurgency in J&K as well as in Punjab.

What is the current status?

As a result of judicial activism, presidential activism & coalition politics there has been reduction in misuse of art 356. But misuse has not been completely eliminated as we can see in case of Arunachal Pradesh & Uttarakhand in 2016.

What is the position of SC w.r.t. art 356?

In S.R.Bommai case in 1994 SC has declared federalism as integral component of the basic structure of constitution & not just an administrative convenience. It has led down the stringent condition for valid exercise of power under art 365.

1) Court may not inquire what advice was given by the council of minister to president; but court may required the prod^n of material evidence on the basis of which decision taken.
2) The material evidence should be speaking document which will force any rational person to take decision.
3) Assembly will not be dissolved immediately it will be kept suspended till the resol^n passed by both house.

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4) The only way to ascertain that the govt has lost the majority is floor testing.

5) If intention is found malafied SC suggests that govt has to be restored.

Uttarakhand & Arunachal Pradesh in 2016 became 1st example where dissolved assembly & govt re established by govt

SC observation on art 356 in S.R. Bommai case:

Federalism and secularism are the integral components of basic structure. The purpose of inclusion of art 356 is to preserve rather than subverd it. In art 356 there is latent capacity to deprive 2 basic feature of constitution. Hence, it is necessary that use of art 356 should be with caution and only when non-use will result into the harm to national interest. Not to be used, where other remedies are possible. Frequent elections undermine the faith in democracy it is the obligation of president to preserve const. & any misuse will bring havoc. SC held that ~~so are~~ sow a wind, reap a whirl wind

Other areas of disputes.

All India Services (315-323)

CM has very limited powers w.r.t. members of all India services. They primarily act as an agent of union. There have been instances where union govt has reinstated the official suspended by CM. SC has directed to constitute civil services board to deal with disciplinary matter related to members of all India services.

Deployment of armed forces:

States consider that law and order is state subject and there should be no suo moto deployment of members of armed forces

When members of armed forces deployed in states, their power, privilege, jurisdiction ~~deployed to~~ all determined by union govt & no consultation of state government

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Institution of governor.

Q. According to Sarkaria commission governor act as lynchpin in co-operative federalism.

Q. Discuss the ~~consti~~ controversy related to institution of governor and give suggestion to reform it.

Q. Give imp judgement of SC explaining diff aspect of institution of governor.

What is constitutional position of governor?

Governor is the head of state executive. In the similar manner president is head of union executive. Like in case of union where all executive action are done in the name of president, in case of state all executive action done in the name of governor.

What is the need of governor?

We have adopted parliamentary form of govt. even at state level. Parliamentary form of govt has 2 heads.

1) Tituler head or nominal head (President & governor)
2) The real head (PM / CM)

Peculiar situation in India:

India is not only parliamentary form of govt India is also federation.

Which type of federation?

Co-operative federalism.

What is the uniqueness of federalism?

interlocking

According to ~~Sarkaria~~ SC governor wears 2 hats on a single head. According to Sarkaria commission governor is a lynchpin of India's co-operative federalism. connecting link betn union and state.

What is the envisaged role of governor?

1) Governor has to act as a channel of commission betn union and state. It has to communicate the expectation of state govt to union & It has to bring national perspective at the state level.
2) According to Paul Brass Indian const. is not product of hopes and optimism it is a product of fear & insecurity At the time of independence there were secessionist challenges. Hence governor was to act as eye and ear of the union ~~at the~~ state level.

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Governar has to keep union government inform about local situation.

Why governars position is controversial?

Governar was expected to act as lynchpin of co-op. federalism; but governor became an institution of bargaining federalism. The institution of governor has misused by union party at union level. There has been huge resentment against misuse in states like J&K, TN, WB, Punjab

Where is the problem?

The problem is because of discretionary power enjoyed by governar under constitution.

The discretionary power: President does not enjoy much discretionary power. The only discretionary power of presidents are sending the bill and advice for reconsideration of executive and parliament.

President enjoys some situational discretion in case of hung parliament. Art 163 There shall be council of minister headed by CM to aid and advice the governar except in those situation under the constitution where governor is required to act as his discretion.

Nature of discretionary power:

Art 163(2): If any question arises whether any matter is matter where governor should have exercised discretionary power or should not have the decision of governor is final and it can't challenge in court of law. **If governors discretionary power is subjected to J.R?**

Yes. governors discretionary power is subjected to Judicial Review.

On what ground of malafied intention.

What are the situations under constitution where governor is required to use discretion?

Art 200: It is related to assent and reserving the

Art 201: Reserving the bill for presidents consideration

Art 174: Power to send call the session, prorogue the session & dissolve the session.

Art 175: Power to send messages to the house.

Art 356: SC has already settled that the use of discretionary power under art 356 (S R Bommai case) and art 174 (Arunachal Pradesh case) if subjected to Judicial Review.

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10-March

Why discretionary power has been the cause of conflict?

The manner in which power has been exercised has become an extremely controversial aspect in India's federal structure. It has been exercised in arbitrary manner in the interest of ~~union~~ ruling party at union. Misuse of institution has been one of factor for rise of militancy in J&K. Sdi. Sarabjee in his book 'the governar Sage or Saboteur' has highlighted the arbitrary exercise of power which has converted institution from inst. of co-op. federalism to the inst. of bargaining fed. Misuse of inst. started during the time of Pandit Nehru itself. In 1952 governar of Madras has used all possible ways to check communist coming to power. In 1957 inst was misused against the duly elected communist govt. in Kerala. The case of Andhra Pradesh in 1984 is classical example of arbitrary exe. of power. The the CM. N.T. Ramarao was abroad for medical treatment backhold governar has dissolved the assembly. Similarly governar Ramesh Bhandari of U.P. sacked govt. of Kalyan Singh and appt Jagdambika Pal as a chief minister which has brought SC into the picture & SC prescribed composite floor testing. In 2005 governar of Bihar Buta Singh dissolved the assembly even before the 1st meeting of assembly on the apprehension of horse trading. Similarly the governar of Arunachal Pradesh has prepaned the session of assembly assuming that governar has discretionary power someone prarogue & dissolve the assembly.

Consequences of the discretionary exercise of power:

According to SC such exercise of power will result into the breakdown of entire edifice of democracy in India.

What should be done?

1) Should constitution be amended to ead the discretionary powers of governor.

2) Should the position of governar be abolished?

Acco. to Punchhi commission, the problem lies not in the discretionary power problem lies in the arbitrary use of power. In a country with constitutionalism, there is a limited scope of used of discretionary power. Discretion power is given in democratic country only as safety valve. There is very limited scope the use of discretionary power. It should be, constructed narrowly. It should not happen that use of power appear

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Pandit Nehru assured that healthy convention will develop and eminent person of integrity will be appt. Nehru also proposed that such persons will be appointed who don't have active political background in recent past. Person from same state can't be appt as governor

Actual practice:

Healthy convention have not be followed. Rejected ~~politi~~ politician & retired administrator including judges have been appt. without cooling off period.

Suggestion:

Since healthy convention have not work it becomes necessary to put these qualification in black & white in the constitution

Manner of appt.

Art 155 governor shall be appointed by warrant by president under his hand & seal. ~~Since~~ Since the appt of governor in hands of ~~comp~~ union, union enjoys lot of bargaining power.

Raja Mannar committee, set up by Govt. of Tamil Nadu, had suggested that, the provision should be made by which consultation with CM of state be made, mandatory before the appointment. If CM is not comfortable, such person should not be appointed.

Punchhi commission has recommended that, the platform of interstate council can be utilised to select the name of person and to create a panel. Governor can be automatically appointed from names mentioned in panel.

~~Boss~~

System of removal - Art 156

Governor holds office during the pleasure of the president

Since, governor is entirely on the pleasure of the union govt.. Union govt has lot of bargaining power. It has been suggested that, governor should be provided security of tenure as in case of president Punchhi commission has suggested. governor can be given an opportunity to be heard before his removal.

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Observation of SC:

Pleasure of presi:

1) President should continue to possess power to remove governor at anytime.

2) No need to give opp. to governor to be heard. However it suggested that pleasure doctrine can't be applied in an arbitrary manner.

3) Even earlier in Brij Mohan Lal case SC held that application of pleasure doctrine is subjected to consti limitations

4) Power of removal should be exercised only in real and exceptional situations where valid & compeling reasons exist change in the govt. can't be the ground nor that governor has diff ideology from the ideology of ruling party he can be ground.

* Importance of the governor:

Sarkaria commission says governor is a lynchpin

Punchhi commission: The importance governor has not declined rather increased because there has been growth of internal security threat like communal violence in country. Hence governors role is critical in such situation.

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whimsical or fanciful. Utmost care has to be taken to ensure that it does not taken arbitrary. SC on the

SC on discretionary power of governor.

1) In Shamsher Singh vs union of India case, SC held that both governor as well as president are constitutional heads.

2) Hargovind Pant vs Raghukul Tilak 1979

Significance of the case:

It was the constitutional bench which judgement w.r.t. the satus of the governor under the constitution as well as the nature of his discretionary powers.

(i) Governor is appt by the union govt. and can be removed by union govt. This does not mean that governor is an employee of union.

(ii) Governor is an independent const. office of dignity

(iii) Even when governor holds office at the pleasure of president, he is not subordinate to the union govt nor he is bound to act on their discretion.

(iv) Governor's discretion is governor's discretion. It is not the discretion of the union govt. Governor is not

(v) accountable to the union for the manner in which he exercises his discretion.

3) Nebam Rabia vs. union of India case, 2016

The case it inquires into the nature of the discretionary power enjoyed by the governor. SC has strucked down the action of governor summoning the assembly without aid and advise of council of ministers. SC in a harsh language held that NDA/union govt action is 'Thrashing' to the constitution! If such action is allowed democracy will not survive in the country. SC has also taken into account the C.A. debates. They have given the reference of view of Sardar Patel. Sardar Patel has very clearly mentioned in his reply over the question of special power of governors that ministerial responsibility is a fundamental principle, governor can exercise his discretion only in few matters. Governors special powers can't be allowed to envade the principle of ministerial responsibility. According to SC the provision (Art 163) each clause 2 does not tell what it seems to say.

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According to SC governor is not all pervading super constitutional authority. SC mentions the doctrine of harmonius construction. Art 154 which gives executive power of State to governor also mention that governor will exercise of power acco. to provisions of constitution. Directionary power of governor should have been use in manner that democracy survives. Governor is neither not an elected representative He is only an executive nominee. He is neither a ombudsman of legislature nor mentor of the speaker. Governor can't require speaker to act in a specific manner. What happens within 4 walls of political party is none of governors concern He has to keep himself away from political horse trading. Governor is a titular head. Constitution never envisage governor wielding any significant power.

What is the solution?

Soli Sorabjee The governor: sage and Saboteur. If governor is good he can do lot of good, if governor is bad he can do lot of ~~far~~ harm.

Manmohan Singh: gave four mantras to the governors in the governor's conference in New Delhi

1) You are the sole judge of what is right & wrong.
2) It is your judgement to understand the mandate of the constitution.
3) You have to see what is in the best interest of county
4) You have to see what people expect from you.

It is suggested that system of appt and removal of governor has to be amended.

What is the system of appt?

Qualification (157)

There are only 2 qualification

1) Citizen of India
2) completed 35 years of age (157)

Members of constituent assembly raised objection e.g. Pandit Thakurdas Bhargava asked Pandit Nehru, we can't take it for granted that in future persons like Nehru & Patel will be exercising the choice of appt of governor. Hence, it is necessary to give the detailed qualification considering the nature of institution

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CENTRE-STATE

Q. Discuss the changing trend in Financial relations?
Q. Discuss the areas of disputes in financial relations?
Q. Discuss the impact of GST in Fiscal federalism.

Introduction

1) Most conflictual
2) Most dynamic area

What is the philosophy behind the distribution of financial power?

Co-operative federalism: Centre acts as a elder brother.

Why centre has a pre-dominant status?

At the time of independence there was urgency for faster economic growth and at that time consensus was in favour of centralised planning.

Regional imbalance:

Scheme of the distribution of resources:

Resources have been distributed in such a manner that high yielding taxes have been braught under the union government. However provision have been made by which all taxes levied by union will not be just for use of union rather it have to be shared with the states To ensure the equitable sharing a constitutional body i.e. finance commission has also been established.

Sources of revenue and funds available with the state governments.

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Social expenditure is not expenditure it is an investment.

* Concerns of state government

1) The taxes which come under state list are rigid and low yielding.

2) There are limitations on borrowing power of state govt e.g. State governments can borrow only from domestic market

If they have borrowed any loan from union government or they have taken any loan from market for which union has given counter guarantee. They can't see fresh loan even without permission of union

3) The present constitutional limit on profession tax is too low : i.e. 2500/- per annum.

4) Union govt. get exemption from payment of sales tax w.r.t. consumption of electricity.

5) There is a vertical and horizontal imbalance. State govt. social expenditure is more whereas their income is less.

6) Though finance commissions recommendation have been favourable to state govt yet state govt. have no representation in finance commission. It is entirely union govt. Upto now there have been concern w.r.t to role of planning commission. Planning commission has undermined not only federalism, but also parliamentary democracy Planning commission became super cabinet.

Present govt has replaced planning commission with Niti Aayog.

States have been given share in the union taxes 14th finance commission has made the sharable revenue to 42%. Originally all union taxes were not sharable; but with the recommendation of 14th FC. and amendment has been made ~~in the~~ 80th CA which has made all taxes sharable. Though amendment has made all taxes sharable, but it does not extend to the cess and surcharge.

At present state want share in cess and surcharge also. States are also authorised to get grants. There are 2 types of grant

1) Statutary grant ~~(275)~~ (art 275)
2) discretionary grant (art 282)

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The grants which have been given on recommendation of finance commission are statutory grant

11-March

* Changing trend in centre and state financial relations:

Since coalition government and new economic policy and the situation of state have got strengthened. Since, 10th finance commission states share in union tax revenue has been consistently increasing. Since, present govt. has come to power, govt has tried to strengthen co-op. federalism. One of the major initiative has been the abolishment of planning commission and estb. of niti aayog. The philosophy of present PM is competitive coop federalism based on the idea of 'sab ka sath, sab ka vikas'. The approach of 14th F.C. has been in favour of greater autonomy for the state. There has been redn in centrally sponsored scheme. Govt had accepted all the recommendations of 14th F.C. Another major change that is going to happen introduction of GST which aims at establishment of India as a single market 'one nation, one tax'. The argument of the govt is that it will increase GDP by appro. 2%. It will make goods cheaper by addressing the cascading effect of taxes there will be better administration of taxes. Indian good will become more competitive in international market. It will be win-win situation for govt, industry, consumer, state as well as union govt.

However there has been opposition by some states like GJ and, MH & TN as GST is a destination based tax which will benefit the states where consumption takes place at the cost of manu. states. One of the strongest opp. has come from state of TN. According to the govt of TN increase in the revenue, ease of doing business and better tax administration can't be the basis of undermining federalism in India. The concerns of state govt have been

1) Loss of revenue. However this concern can be managed.
2) Loss of fiscal autonomy. There is limited debate in the country over the matter. The basic purpose of choosing federalism is not uniformity; but unity in diversity. One of the major source of revenue of the state govt has been sales tax. The present institutional mechanism of GST council takes away the autonomy to determine the tax. According to the state of TN it defeats the purpose of federalism. States should have autonomy to determine its priority.

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It is to be noted that USA which is foremost capitalist region in the world still does not have GST.

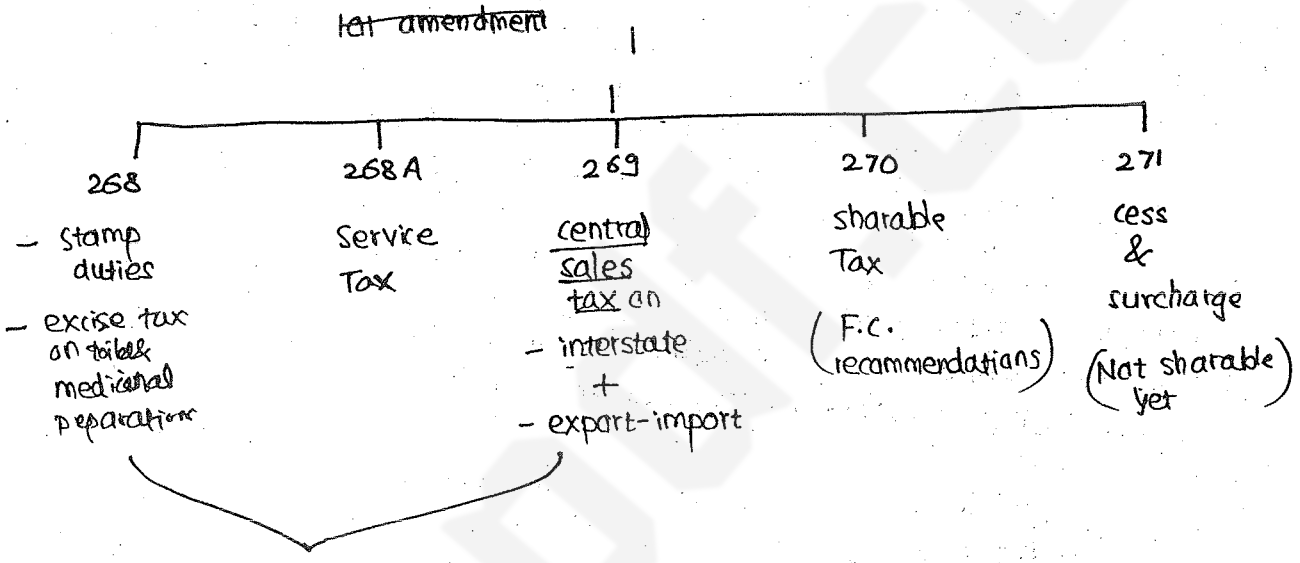
What changes 101 amendment act has introduced in the constitutional provisions on centre-state financial relations?

* Scheme of centre & state financial relation before 101 amendment act:

Art 268
Art 268(A)
Art 270
Art 271
Art 269

Art 268

~~101 amendment~~



* Changes introduced by 101 amendment act:

1) It introduced a new article ~~268~~ 246A
It grants parliament and state legislature power to make laws w.r.t. GST. for the first time a concurrent power of a tax has been given. Parliament's exclusive power to make law on subject on union list will be subjected to art 246A.

2) Changes in art 268A
For the time being stamp duty is left as it is but the provision for excise duty is eliminated.

3) 268A: has been omitted/submerged

4) Added 269A: adds the the tax with respect to the supplies of service in interstate trade and commerce and import & export.

5) 270 is left as it is

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5) art 271: Surcharge can be levied on certain duties and taxes with respect to GST.

6) 279 A: It will introduce GST council. GST council shall consists of following member

1) Union finance minister as a chairperson
2) State minister of finance or revenue or any other minister
3) Vice chairman to be selected from among state representative
4) Union minister of state in charge of finance and revenue if exist will also be a member.

* Role of GST council:

Recommendation to the union govt and state govt on

1) Rate of taxes
2) Goods to be exempted
3) Model GST laws
4) Any special rate for a specified period to raise additional resources during natural calamity or disaster
5) Special provisions with respect to N-E state, J&K, HP & Uttarakhand
6) Any other matter as council may decide.
7) It will recommend the date from which GST will be levied on crude petroleum, high speed diesel, petrol or motor, spirit, natural gas, aviation fuel.

* 2nd role

GST shall establish a mechanism for adjudication of any dispute between govt of India and govt of one or more states or any combination.

* Working procedure:

Internal working shall be determined by council. However act mention ~~qtr~~

1) quorum of council.
Half of total members will constitute the ~~fo~~ quorum.

2) Decision:
Concept of weighted voting has been introduced the weight of union is 1/3rd and weight of state is 1/3rd. Decision will be taken by not less than 3/4th of the weighted vote.

No proceeding shall be called in question because of any vacancy. any procedural irregularity if it does not affect merit of case.

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Amendment also makes changes in the 3 lists

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